In the Matter of A. D., Washington County Circuit Court No. 25JU04261
Formal Notice of Fabrication, Material Omission, and Required Action
Delivered Under the Sworn Standard Established by the Recipient's January 28, 2026 Recorded Commitment

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Enclosed Records (Exhibits A through S)

Exhibit A. Neuropsychological Evaluation / Parental Assessment of AshLe' Penn by Christopher K. Tongue, Ph.D., Licensed Psychologist (evaluation date 10/30/2021).

Exhibit B. Marie Penn (Mother of AshLe' Penn) Affidavit of Denial of Asserted Statements.

Exhibit C. Letter from Al-Quan Davis to AshLe' Penn dated January 15, 2023 (Alquan_Davis_2023.pdf).

Exhibit D. Audio excerpt of Sonya Faulkner's January 28, 2026 statement (Sonya_Faulkner_Byte.mp4).

Exhibit E. Audio recordings of January 28, 2026 and April 28, 2026 recorded calls (recantation and no-parental-capacity-assessment admissions).

Exhibit F. Kimberly Beck email of September 9, 2025 at 3:09 PM rejecting Mother's September 8, 2025 filing.

Exhibit G. Full October 31, 2025 jurisdictional trial transcript (Emily Marquand testimony; Judge Rini rulings).

Exhibit H. Rylan Duffy *Declaration of Diligent Efforts toward Service* (October 10, 2025).

Exhibit I. Kayla Miller *Affidavit Regarding Efforts to Serve Parent* (October 28, 2025).

Exhibit J. Sonya Faulkner emails of June 2, 2026 (10:33 AM and 3:19 PM).

Exhibit K. Copy of Notice of Tort Claim and § 1983 Pre-Suit Demand.

Exhibit L. Washington County HR fee-waiver denial letter from Aaron Mendes dated September 19, 2025 (referencing "evidence the County has in its possession").

Exhibit M. Washington County District Attorney's October 31, 2025 denial opinion signed by Deputy DA Sabina Khachaturova.

Exhibit N. Petitioner's October 17, 2025 Petition for Review of Fee Waiver Denials served on DA Barton.

Exhibit O. Text-message thread from ODHS Supervisor Heather Kitto documenting the 5:40 PM September 6, 2025 release text and the 5:59 PM reversal text (19-minute reversal window).

Exhibit P. Shelter Hearing transcript excerpts (September 8, 2025) confirming Mother's telephonic contact with the court and the unauthorized appearance of attorney Ireland Mahoney.

Exhibit Q. ODHS records reflecting the 3/26/2024 two-hour in-home interview at Mother's residence and the "Out of control not believed to be met" supervisor consultation finding.

Exhibit R. ARIA certification of completion of mental health services as directed by the court.

Exhibit S. Wolfpack Consulting and Therapeutic Services, LLC Progress Notes (Partial Records to establish participation - not disclose confidential information.)

Exhibit T. Mother's early attempts to resolve any services required, it would take the agency YEARS to establish the "treatment" it relied so heavily on as a barrier to return

RE: False Testimony, Material Omission/Selective Reporting, and Fabricated Evidence by ODHS Staff in *In re A.D.*, Case No. 25JU04261; Required Action Under Your Recorded Commitment of January 28, 2026

Sent by Email With Enclosed Recordings, Court Transcript, and Exhibits A through S
Proposed Stipulation to Vacate Attached as Appendix A

Ms. Faulkner,

"Parents and children have a well-elaborated constitutional right to live together without governmental interference. That right is an essential liberty interest protected by the Fourteenth Amendment's guarantee that parents and children will not be separated by the state without due process of law except in an emergency." *Wallis v. Spencer*, 202 F.3d 1126, 1136 (9th Cir. 2000). My family has been subjected to precisely the form of state interference the Ninth Circuit forbids. Al-mira's removal was based on an insufficient investigation, the repeated suppression of exculpatory facts, social workers' intentional misrepresentations of agency action, and a fabricated narrative about my family delivered to the court with knowledge of the truth.

The Ninth Circuit has addressed the precise constitutional injury that occurs when social workers lie to a dependency court in order to separate a parent and child. In *Hardwick v. County of Orange*, social workers told the dependency court that the mother had caused her daughters to miss a mandatory visit with their father, when the actual problem had been caused by the visitation monitor. The social workers further represented that the mother had turned the children against the monitor and had told them that their father was trying to take them away. The record showed that the social worker herself had made the inappropriate and threatening statements to the children. On the basis of those false representations, the dependency court concluded that the mother was "using" her children and immediately removed the girls from her custody. *Hardwick v. County of Orange*, 844 F.3d 1112, 1117–19 (9th Cir. 2017).

That is not a distant or abstract comparison. It is the same constitutional mechanism used here: ODHS social workers supplied the court with false accounts of my conduct, concealed or omitted the facts that contradicted those accounts, converted my efforts to protect my daughter and obtain information into evidence against me, and then relied on the resulting false narrative to establish jurisdiction, obtain default findings, keep Al-mira separated from me, and impose services upon me. ODHS also retaliated against me for exercising my right to decline voluntary, non-court-ordered engagement with the agency. Rather than acknowledge that I retained the right to demand a lawful basis for agency intervention, to communicate in writing, to decline unrequested services, and to withhold consent to agency demands not ordered by a court, ODHS portrayed my exercise of those rights as "non-engagement," "refusal," "lack of cooperation," and evidence that I was unwilling or unable to protect my daughter.

In *Hardwick*, the Ninth Circuit held that social workers were not entitled to absolute immunity for alleged fabrication of evidence, perjured testimony, and false representations made outside their legitimate quasi-prosecutorial role. The court further held that deliberate fabrication and use of false evidence to separate a parent from her children violates clearly established constitutional rights and is not protected by even qualified

immunity. *Hardwick*, 844 F.3d at 1118–23.

This is what happened here. Emily Marquand lied under oath. She gave the court factual assertions that were false, contradicted by ODHS's own records, that was even contradicted by her own testimony in the same period of testifying, or made without *any* evidentiary support. Those lies were material. They were used to establish jurisdiction over me, justify Al-mira's continued removal from my care, obtain default findings against me, impose services, and portray me as a parent who was unwilling or unable to protect my daughter.

The following are the specific lies, fabrications, omissions, and material misrepresentations ODHS presented to the court through Marquand's sworn testimony:

1. **Marquand testified that I "did not engage in any services" and "failed to do any of the services" in the prior dependency case.** She specifically identified parenting classes, stable housing, visitation, a neuropsychological evaluation, agency contact, victim/survivor services, releases of information, and participation in the children's services. That testimony is false. The agency possessed records showing, among other things, my completed neuropsychological evaluation with Dr. Tongue, parenting education, domestic-violence services, signed releases, agency contacts, and my self-initiated domestic-violence grant. The blanket assertion that I completed *none* of those services was not a reasonable characterization of the record; it was a material fabrication.

2. **Marquand then contradicted her own "no engagement" testimony.** In the same hearing, when discussing the twenty hotline calls related to Father, she testified that I had engaged in those assessments—then changed that to say that I had engaged "limitedly." ODHS cannot truthfully tell the court, on the one hand, that I did not engage in *any* services and, on the other, that I engaged in the assessments but only "limitedly." The first statement was used to portray me as wholly noncompliant; the latter confirms that the first was false.

3. **Marquand testified that I refused to pick Al-mira up from the hospital and refused to protect her.** That statement omits the actual circumstances and recasts my demand for an explanation of ODHS's claimed authority as parental abandonment. The agency contacted me after Al-mira had already been taken into protective custody; I demanded that ODHS explain the basis for continuing custody once I had been reached. I also arranged for her maternal great-uncle, Marcus Taylor, to go to the hospital at my request as he could reach her more immediately and thereby return her to my care much faster. The agency's own report confirms that he arrived at the hospital at my request. My insistence that ODHS articulate a lawful basis for continued custody is not evidence that I refused to protect or retrieve my child.

4. **Marquand presented speculation that I "coached" Al-mira to recant as though it were an established fact.** The actual record reflects that Al-mira told the agency that ODHS had lied to me about what she said and that she had not made the statement attributed to her. Marquand converted that denial into an accusation that I coached my daughter, despite identifying any direct evidence that I coached her and despite the absence of any finding establishing that accusation. Speculation from a hospital social worker or agency employee is not evidence that a Mother coached her child - it is gossip.

5. **Marquand used "32 calls" to create a false narrative of substantiated abuse, neglect, physical abuse, and substance use by Mother.** She testified that the calls concerned neglect, threat of harm, exposure to violence, physical abuse, and substance use. But a hotline call is not a founded finding. The number of calls cannot be presented as proof that their allegations were true **and** the number of calls attributed to Mother's lack of capacity to parent is severely misrepresented, as demonstrated below. The agency's own disposition history must distinguish founded, unfounded, unable-to-determine, screened-out, duplicate, pending, and otherwise unsubstantiated matters. Aggregating all calls into a single adverse "history" was materially misleading and an omission of the truth used to mislead the court.

6. **Marquand invoked substance use while admitting that ODHS had not assessed it.** She testified that there were "significant concerns around the substance use," but immediately admitted that the cases were pending and that ODHS had not had meaningful contact with me "to fully assess ...and get information about her substance use." In other words, ODHS presented substance use as a *concern*—which does not meet the threshold for removing a child through emergency protective custody—in support of jurisdiction while admitting it had not obtained the information necessary

to establish whether substance use existed, whether it affected parenting, or whether it posed any danger to Al-mira.

7. **Marquand testified that I failed to protect Al-mira from Father while omitting ODHS's own role in treating Father as a safe placement.** ODHS endorsed Father as a safe placement, participated in lifting the no-contact barrier after his first arrest and after she had been placed with me successfully for several months. It was ODHS that allowed Al-mira's return to Father's care and Marquand's testimony failed to mention the assessments that occurred after this placement with me, that there were no concerns for her while in my care and that it was the agency itself which knew of the escalations and even documented the need to take action but did not. Instead, the agency advocated for the removal of the no contact order which would lead to the later assault and strangulation allegations arising after Al-mira was back in her Father's care. ODHS cannot place a child with Father, characterize Father as safe, and then use the resulting danger as proof that Mother failed to protect her from the very placement ODHS endorsed all while omitting assessments and engagement from Mother *and while* testifying that Mother had not engaged whatsoever, refused to "cooperate" with the agency and was incapable of understanding her teenager's needs.

8. **Marquand faulted me for failing to modify the domestic-relations custody order while omitting the procedural and jurisdictional barriers to doing so.** She presented the existence of Father's sole custody as though it established my inability or unwillingness to protect Al-mira. But she did not identify any lawful mechanism available to me to unilaterally alter Father's custody order, nor did she acknowledge the jurisdictional barriers that prevented me from obtaining the relief ODHS now says I should have secured. This testimony provides an incomplete account. It omitted that Al-mira was *safely* placed with me, enrolled in school, and **evaluated and assessed <u>within</u> my home**. It also omitted that I submitted a request to Washington County Circuit Court to modify custody, but the court declined to accept it because it determined it lacked jurisdiction at the time of filing.

9. **Marquand testified that I made "very little" meaningful attempt at visitation while ODHS had not provided a workable visitation plan.** Not only has ODHS failed to substantiate the authority it claims it had when it exercised emergency protective custody of Al-mira on 9/6/25 but Marquand's testimony attribute visitation failures to me. So to minimize the fact that the agency had no authority to remove her from my care in the first instance and has not ventured to substantiate the emergency protective custody it now concedes is based on a statement that Al-mira denies making but Marquand also fails to inform the court that Al-mira's placement was more than thirty miles away and required several hours of bus travel and that I lacked transportation. ODHS provided absolutely no assistance in facilitating visitation with Al-mira. The agency restricted my contact with her while she was hospitalized without identifying what harm it claimed to be preventing by doing so. It then delayed or withheld a concrete visitation structure and treated the predictable absence of agency-facilitated visits as evidence against me. ODHS cannot withhold a plan, restrict contact, provide no transportation support, and then characterize the resulting lack of visits as Mother's lack of interest in her child.

10. **Marquand characterized my emails as "more demands than anything."** My written communications sought the factual basis for ODHS's actions, ODHS' position with regard to what authority it claimed to be exercising under with regard to the emergency removal, information about my daughter, the records necessary to understand the allegations, and documented communication with a system that I have—especially now—proven reasons not to trust. Calling those requests "demands" reframed my efforts to obtain information I am entitled to, but have yet to receive, and protect my legal relationship with my daughter as proof of non-engagement. It was a characterization designed to punish me for requesting accountability rather than evidence that I failed to parent or protect Al-mira.

11. **Marquand testified that Al-mira did not want to return to Mother, while later acknowledging that Al-mira was willing and wanting to live with Mother after family counseling.** Those statements cannot both be presented as a categorical basis for continued separation. The latter testimony is material because it confirms that Al-mira's position was not an absolute rejection of Mother, but a desire for support and counseling in restoring the relationship. This testimony also disregards several documented statements from my daughters describing their relationship with me to the contrary.

Ms. Faulkner, these are the representations that ODHS placed before the court while I was literally denied

notice (Al-mira's lawyer states in a letter to her that the agency attempted to serve me between 9/30/25 and 10/14/25 — nearly a month after her removal; this is not acceptable for an agency that claims that I refused to appear), the petition, the reports, the evidence, and a genuine opportunity to respond and defend against them. The defective service and default process did not merely create a procedural problem. It enabled these assertions to be presented without contradiction, testing, cross-examination, or correction, and then converted into jurisdictional findings against me.
Even more to this point, ODHS possessed and used language drawn directly from the court-ordered neuropsychological evaluation I completed during prior involvement with your agency, yet it mischaracterized the extent of my participation during that earlier period and portrayed me to the court as a parent who had failed to engage or complete services. It then tried to recast that prior history as evidence of a purported "pattern" in the present dependency proceeding, even though the record does not support that characterization **and** the agency is required to provide current proof of a non-speculative and serious threat that's likely to be realized.

Marquand's testimony identified *nothing* that demonstrated that any threat to Al-mira was current, likely to be realized or that threatened serious loss or injury. The testimony represented generalizations, speculation and outright falsifications of factual information (as with regard to the purpose of outstanding warrants and substance abuse that has **never** been established by your agency). ODHS also attributed at least two statements to my mother that she has now sworn, under oath, were never made. These are not harmless errors; they are knowing or reckless misrepresentations that foreseeably injure both parent and family. No good-faith defense can excuse falsifying a parent's history to mislead the court or inventing statements and attributing them to that parent's mother. For that reason, neither absolute nor qualified immunity should be understood to shield ODHS personnel from liability for this conduct.

On our recorded call of January 28, 2026, you stated[1]:

> *If I were to find any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the court.*

You added that you would review the representations at issue that were made to the court and presented at these proceedings and reconnect. In subsequent calls and emails, however, you did not engage the substance of those concerns or obtain access to the underlying records. You repeatedly pointed to the fact that the juvenile court had already taken jurisdiction, as though the existence of a jurisdictional finding were itself an answer to my claim that **ODHS obtained jurisdiction by presenting fabricated and misleading evidence and omitting the truth**. Jurisdiction entered on the basis of the presentation of false evidence is not self-justifying; it is the core of the due process violation I have been describing.

1. Emergency Protective Custody Was Taken on a Basis the Agency Never Authorized, Never Pleaded, and Never Placed Before Any Court

The protective-custody report describes the immediate event as an alleged violent incident between Al-mira and her father, his arrest, and the child's hospital evaluation. As to Mother, the report largely moves from statements such as "not open to engaging," inability to "fully assess," and generalized historical concerns to conclusory assertions that Mother lacked skills, would not protect Al-mira, and had criminal activity interfering with parenting. That distinction is crucial:

[1] See SonyaFaulknerByte.mp4.

What ODHS needed to establish	What the record does not establish
A present safety threat specifically tied to Mother	Specific conduct by Mother creating a current, non-speculative danger to Almira.
Why removal from Mother's care was necessary	A factual explanation of why Almira could not safely be released to Mother, with protective conditions or safeguards if needed.
Why less restrictive alternatives would not protect Almira	An analysis of placement with Mother, supervision, transportation assistance, safety planning, relative support, or other protective measures.
A meaningful opportunity for Mother to contest the allegations	Valid service; access to the petition, reports, and evidence; and a meaningful opportunity to appear, prepare, respond, and present evidence.

A. The agency told Mother the reason for custody, in writing, at the moment it decided: the child's self-harm statement — nothing about Mother's conduct.

At 5:40 PM on September 6, 2025, ODHS Supervisor Heather Kitto texted Mother: "we can release custody to you." Nineteen minutes later, at 5:59 PM, Kitto reversed that decision in writing: "We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns." Kitto's contemporaneous email states the same basis, and worker Bennett's note identifies "the high risk note for suicidal ideation" as the reason "the agency would maintain Protective Custody and request a Shelter Hearing." The stated basis was the child's self-harm risk — not Mother's conduct, and not any deficit in Mother's parenting capacity.[2]

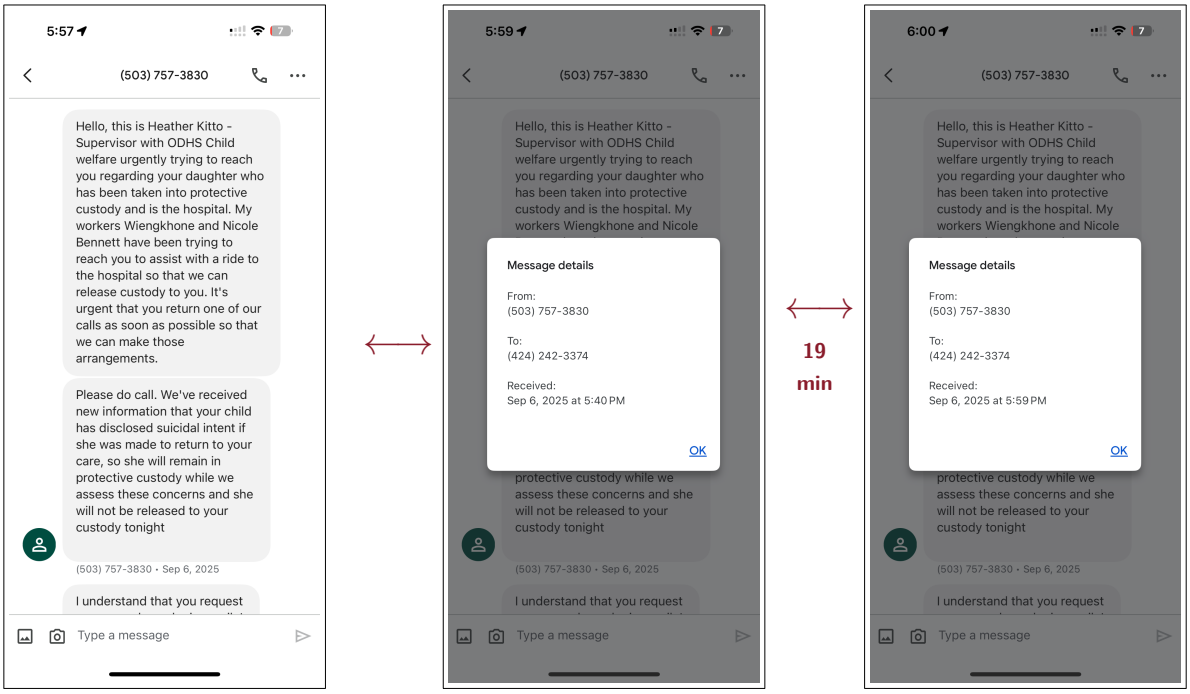


Figure 1. The nineteen-minute reversal, in the agency's own metadata. **Left:** the full text thread. **Center:** 5:40 PM, September 6, 2025 — "we can release custody to you." **Right:** 5:59 PM — the child "has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody." The reason ODHS gave Mother, in writing, is the child's self-harm disclosure; the agency states no deficit in Mother's parenting and identifies no dangerous act by Mother. *(Source: Kitto text messages; carrier message-details timestamps.)*

B. The agency told Mother a summons would be delivered — it never told her the hearing's date or time.

Across the emails and calls ODHS exchanged with Mother on September 6, 7, and 8, 2025, no worker gave Mother the date or the time of the shelter hearing. Kitto's written notice states only that "a worker will be coming to your home today with the court summons." Mother received no hearing date, no time, and

Record cite: Notice of Tort Claim p. 4 (Kitto texts); 2025-10-07 ODHS Report p. 2 (Kitto email); 2025-09-08 Protective Custody Report pp. 5, 7.

no appearance instruction. The promised summons is the sole reference to court process in the agency's contemporaneous communications, and the record does not establish that any summons was in fact delivered to Mother before the September 8 hearing. A parent cannot be treated as having declined to appear at a hearing whose date and time the agency never disclosed.[3]

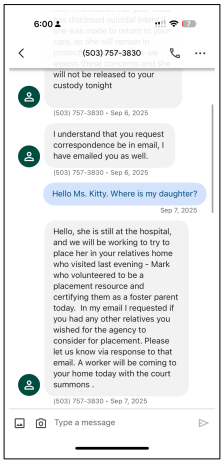


Figure 2. The only message in the record touching court process: "a worker will be coming to your home today with the court summons." No hearing date or time is given. The same message confirms ODHS was placing the child with the maternal relative ("Mark") and certifying him as a foster parent — corroborating that a relative resource was present and available. *(Source: Kitto text message, September 7, 2025.)*

C. The agency's own ORS 419B.171 form has a box for exactly that basis — and the agency did not check it.

The Protective Custody Report form directs the agency to mark the statutory predicate: (A) protect from abuse; (B) prevent the child from inflicting harm on self or others; (C) keep the child within reach of the court; (D) ICWA; (E) medical assessment of suspicious injuries. Option B is the self-harm predicate — the exact circumstance Kitto described. **The agency did not select it.** The Shelter Order entered September 8, 2025 instead marks that the child could not be safely returned without danger of "suffering physical injury or emotional harm" and "not remaining within the reach of the court." The agency removed on a self-harm rationale and then recorded the removal on grounds of *parental* harm and flight risk. The predicate it told Mother about is not the predicate it certified to the court.[4]

D. The self-harm basis was never pleaded as a jurisdictional allegation.

The three allegations found proven against Mother on October 31, 2025 are (A) lack of understanding/skills, (B) failure to protect from Father, and (C) criminal activity. None is the reason the agency gave Mother for taking her daughter. The self-harm statement — the operative emergency predicate, communicated in writing at 5:59 PM on September 6 — was never pleaded as a jurisdictional basis at all. It was never subjected to adversarial testing because it was never pleaded.[5]

E. The statement was recanted, and the agency knew it before the shelter hearing.

The attributed statement was that the child "would attempt suicide if she went home with her mom." Hospital social worker Leah Sathrum — the source of that attribution — documented that the account "was definitely not what child said initially" and that she was "worried the change in statements was due to parents' reaction." The child recanted to Sathrum and to Mother directly; both Sathrum and ODHS worker Bennett recorded the recantation. It appears *nowhere* in the September 8 shelter petition, the Shelter Order, or the diligent-efforts submissions. The agency held the exculpatory fact and withheld it from the court deciding whether to continue custody. [6]

F. You have already acknowledged the defect, on a recorded call.

Record cite: Kitto text message, September 7, 2025; see also the service defects catalogued below (first service attempt October 14, 2025).
Record cite: 2025-09-08 Protective Custody Report p. 2; 2025-09-08 Shelter Order p. 3, §6.
Record cite: 2025-09-08 Protective Custody Report pp. 3, 9; Notice of Tort Claim p. 8.
Record cite: 2025-10-23 ODHS Report pp. 12, 22–23; Notice of Tort Claim p. 4.

On our January 28, 2026 recorded call you acknowledged the recantation (19:18: "once there was a recantation for that to be considered"). That admission from the D16 Manager establishes that the agency never assessed the predicate it certified to the court and identifies no instance of dangerous conduct by Mother to support the "physical injury or emotional harm" ground it marked. [7]

G. Nineteen minutes.

Between the release decision at 5:40 PM and its reversal at 5:59 PM, the agency did not: assess Mother's protective capacity; consult a clinical professional about the attributed statement; determine present danger under OAR 413-015-0425; obtain the supervisor consultation OAR 413-015-0415 requires; weigh Mother's Certification in Suicide Prevention; offer or consider a safety plan; evaluate the maternal uncles physically present at the hospital (whom ODHS approved as the child's placement the next day); or contact Mother for an opportunity to respond. It reversed a release determination in nineteen minutes on an unverified conditional statement, took the child, and recorded the action on statutory grounds it had not assessed and could not support. [8]

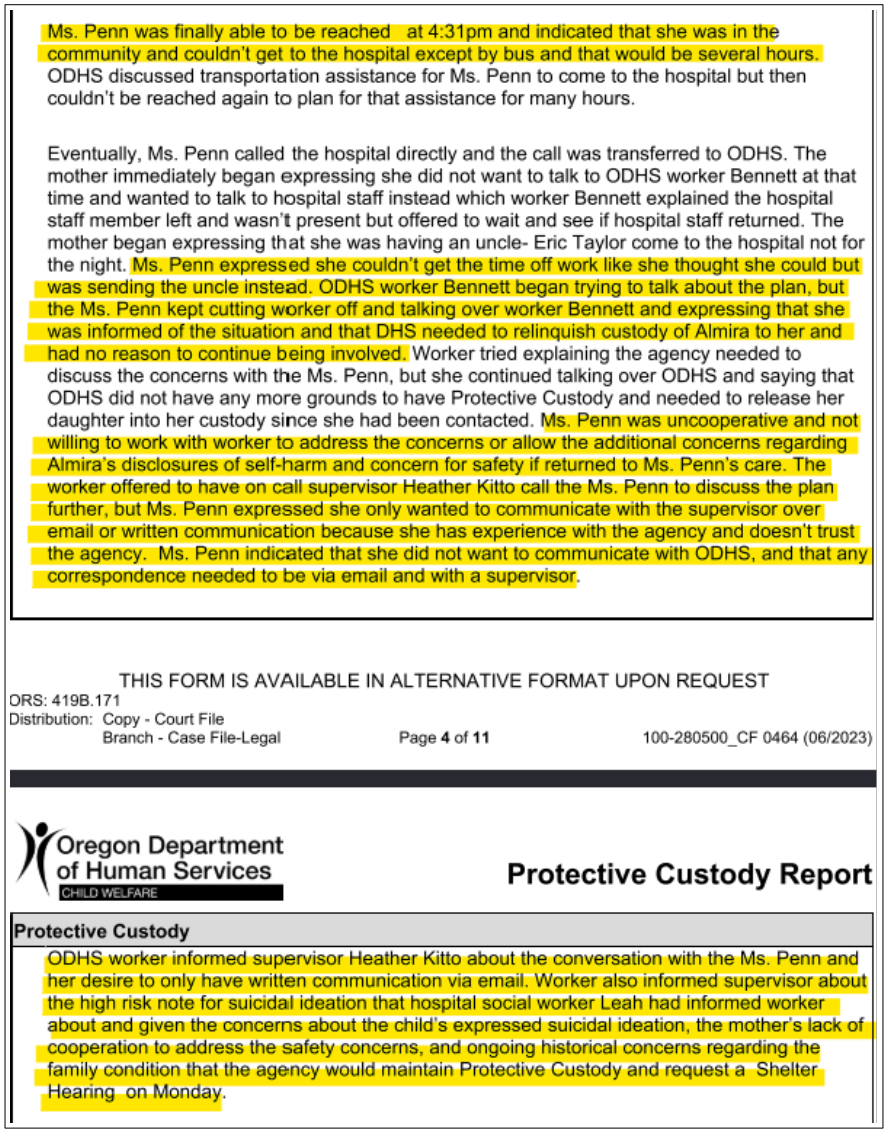
H. The consequence.

The original emergency protective custody has never been authorized. The predicate communicated to Mother corresponds to Option B, which the agency did not mark; the predicates it did mark were never assessed as to Mother, and you Ms. Faulkner, as its own D16 Manager has stated on a recorded call the agency acknowledges Al-mira denying making any statement of self-harm (which ODHS records also evidence my inability to have coached her to say, nor would I have coached her to say so in any event) and was no longer being relied on for familial separation. What's more, is you stated that David Milne, permanency worker, should be able to identify the conduct for which the allegations pleaded against me were based on. When I requested this information, he refers me back to you in a closed loop identifying that your agency is unaware exactly of the basis it claims authoritized ODHS to keep Al-mira from her family, which continues unlawfully today. Most critically here, is that your agency was aware that the basis for which it claimed to have the authority to exercise emergency protective custody (the self-harm statement that actually drove the removeal) was recanted before the hearing, withheld from the court and never pleaded. The agency cannot cure that defect by pointing to findings entered after the fact on grounds it never assessed.

I. The agency's own stated basis for emergency custody is not a lawful ground to remove a child.

A child may be taken or held in protective custody without a court order only where there is probable cause to believe the child is in *immediate* danger of serious loss or injury and that custody is necessary to prevent it. ORS 419B.150. The agency's Protective Custody Report states the basis on which it held Al-mira: "the concerns about the child's expressed suicidal ideation, the mother's lack of cooperation to address the safety concerns, and ongoing historical concerns about the family condition." None of the three is a lawful ground to remove a child from a parent. The child's self-harm disclosure — recanted the same day — concerned the child's mental health and called for a medical response, not removal from a non-offending parent. Mother's insistence on written communication with a supervisor and unwillingness to discuss *anything* with the agency are the exercises of Mother's right to decline engagement with the agency without any valid court order. **This is not evidence of immediate danger; especially in the absence of any worker identifying conduct by Mother that subjects Al-mira to the requisite threshold of danger required for state interference.** The agency has now memorialized in writing that Mother is being retaliated against for nothing other than the exercise of her rights while the agency conflates such a neutral act to be the very existence of immediate danger — while also claiming an inability to assess the level of danger exactly. What's more, Ms. Faulkner, is that, "ongoing historical concerns" are, by definition, not the present, immediate danger the statute requires. The agency removed on grounds that, taken together, describe a parent asserting her rights against a backdrop of old history (what the agency describes as "fighting the system") — not a child in immediate danger in that parent's care.

Record cite: 1_28_26 Sonya Faulkner Call (19:18, 20:08).
Record cite: Notice of Tort Claim p. 4.



Ms. Penn was finally able to be reached at 4:31pm and indicated that she was in the community and couldn't get to the hospital except by bus and that would be several hours. ODHS discussed transportation assistance for Ms. Penn to come to the hospital but then couldn't be reached again to plan for that assistance for many hours.

Eventually, Ms. Penn called the hospital directly and the call was transferred to ODHS. The mother immediately began expressing she did not want to talk to ODHS worker Bennett at that time and wanted to talk to hospital staff instead which worker Bennett explained the hospital staff member left and wasn't present but offered to wait and see if hospital staff returned. The mother began expressing that she was having an uncle- Eric Taylor come to the hospital not for the night. Ms. Penn expressed she couldn't get the time off work like she thought she could but was sending the uncle instead. ODHS worker Bennett began trying to talk about the plan, but the Ms. Penn kept cutting worker off and talking over worker Bennett and expressing that she was informed of the situation and that DHS needed to relinquish custody of Almira to her and had no reason to continue being involved. Worker tried explaining the agency needed to discuss the concerns with the Ms. Penn, but she continued talking over ODHS and saying that ODHS did not have any more grounds to have Protective Custody and needed to release her daughter into her custody since she had been contacted. Ms. Penn was uncooperative and not willing to work with worker to address the concerns or allow the additional concerns regarding Almira's disclosures of self-harm and concern for safety if returned to Ms. Penn's care. The worker offered to have on call supervisor Heather Kitto call the Ms. Penn to discuss the plan further, but Ms. Penn expressed she only wanted to communicate with the supervisor over email or written communication because she has experience with the agency and doesn't trust the agency. Ms. Penn indicated that she did not want to communicate with ODHS, and that any correspondence needed to be via email and with a supervisor.

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

ORS: 419B.171
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100-280500_CF 0464 (06/2023)

Oregon Department of Human Services
CHILD WELFARE

Protective Custody Report

Protective Custody

ODHS worker informed supervisor Heather Kitto about the conversation with the Ms. Penn and her desire to only have written communication via email. Worker also informed supervisor about the high risk note for suicidal ideation that hospital social worker Leah had informed worker about and given the concerns about the child's expressed suicidal ideation, the mother's lack of cooperation to address the safety concerns, and ongoing historical concerns regarding the family condition that the agency would maintain Protective Custody and request a Shelter Hearing on Monday.

Figure 3. The Protective Custody Report in the agency's own words: it maintained custody based on the child's (recanted) suicidal ideation, "the mother's lack of cooperation," and "ongoing historical concerns about the family condition." The same page records that Mother could not reach the hospital except by bus and "was sending the uncle instead." *(Source: 2025-09-08 Protective Custody Report, p. 4.)*

Marquand, instead of establishing a narrative consistent with the contemporaneous records related to the incident on 9/6/25 - this ODHS worker elected to frame Mother's statements as a "refusal" to pick up Al-mira from the hospital, being "unwilling" to safety plan for her daughter or overall care for her while she was in the hospital. Marquand reframed the facts recorded by ODHS that night to mislead the court as to Mother as well as ommitted that Mother communicated not a refusal to pick up her daughter - but ex-pressed that she was several hours away by bus, unable to leave work immediately and instead, as is her right to do, **requested the assistance of her family to come and help provide aid to Mother and Al-mira** - precisely in the form and fashion of a protective and engaged parent unable to immediately appear somewhere that would take several hours to reach but which was recognized to be a situation that required immediate presence. The agency would **certify the very family member who Mother dispatched in her place as the foster placement Al-mira would be placed in for several nearly a year.** This certification is itself at issue as your agency, is tasked with being aware that if there is a **mitigating family member available to prevent the need for removal from their home** then the agency is required to acknowledge this resource and is not permitted to remove a child notwithstanding this mitigating factor. Marquand, though, framed mother as non-engaged, non-protective and entirely unwilling when the record submitted to accompany her testimony demonstrates that Mother sent a family member whom the agency considered to be qualified as a full-blown foster placement to assist her with her daughter and the agency does not acknowledge that without Mother providing this mitigating family member, the agency would not have had an immediate relative placement for Al-mira - notwithstanding that the agency had no authority to remove her and place her with her great aunt and uncle under the circumstances as they were.

2. The Court Entered Jurisdiction Without Service — on a "Whereabouts Unknown" Default the Agency's Own Sworn Filings Disprove

A juvenile court may establish jurisdiction "only after service of summons." ORS 419B.815(1). Mother was never served. The agency knew it, and asked the court to proceed anyway under a statute that applies only when a parent cannot be found — while the agency's own sworn filings establish that it knew where Mother was, spoke with her by telephone, exchanged email with her, and tracked her daily movements.

A. Service of summons is the statutory precondition to jurisdiction.

"A court may make an order establishing jurisdiction *** only after service of summons." ORS 419B.815(1). Service must be accomplished by a method reasonably calculated to apprise the parent of the proceeding — personal, substituted, office, mail, or court-ordered alternative service. ORS 419B.823; ORS 419B.824. Actual service by an adequate method is required; the Court of Appeals sustained service in *Dept. of Human Services v. K.L.*, 272 Or App 216, 225 (2015), only because the agency there *actually* posted, mailed, and emailed the summons and petition. "Constructive notice", as DDA WADIA requested, is not among the authorized methods. It should be noted that in a communication between Al-mira and her attorney which Al-mira provided to Mother, her own attorney asserts "constructive notice is not a thing".

B. The agency concedes Mother was never served.

The agency does not claim it served Mother. Its Declaration of Diligent Efforts and its Affidavit Regarding Efforts to Serve Parent state the opposite: that "service cannot be made by any method of personal or substituted service, nor by office service or service by mail"[9]. The single attempt at personal service — by Barrister Support Service, at a unit in Mother's complex, September 30 through October 2, 2025 — failed.

C. The default rests on a predicate the agency's own affidavits disprove.

The juvenile court's decision to maintain Almira away from Mother rested on two failures that reinforced each other. Those two defects reinforced each other:

i. First, ODHS did not use methods reasonably calculated to notify Mother and allow her to defend. It bypassed her known, responsive email channel; used an erroneous address despite records reflecting the correct address; did not pursue alternative service methods reasonably likely to reach her; and then characterized its own unsuccessful efforts as diligent.

ii. Second, the agency did not establish a concrete, present danger posed by Mother or identify the type, nature, and duration of harm that removal from Mother's care was necessary to prevent. Instead, it substituted conclusory allegations, an asserted inability to assess Mother, and a default produced through defective notice. The court later recognized the address defect for the motion-to-dismiss hearing but never revisited the earlier diligent-efforts/default determination that depended on the same defective premise.

At the October 31, 2025 trial, AAG Wadia moved that Mother "be found in default, pursuant to ORS 419B.914," and Judge Rini found "the state has made diligent efforts under 419B.914, and therefore will find mother in default." ORS 419B.914 permits a court to proceed without service only where diligent efforts "have failed to reveal the identity or whereabouts" of the parent. The agency's sworn filings reveal Mother's whereabouts repeatedly: the CLEAR, Accurint, Medicaid, and open TANF records each returned Mother's current address at 17548 NW Springville Rd., #9; Mother's assigned state family coach supplied that address on October 13, 2025; caseworkers spoke with Mother by telephone on September 6, 2025 at approximately 4:30 and 5:30 PM; caseworker Kayla Miller emailed Mother on October 6, 2025 and Mother replied from her known email address; caseworker David Milne spoke with Mother by telephone on October 14, 2025; and the agency tracked Mother's daily debit purchases by store and time. A parent whose email is answered, whose telephone is picked up, whose address four agency databases and her own caseworker supply, and whose daily movements the agency tracks, is not a parent whose whereabouts "cannot be reasonably ascertained."[10]

D. The agency's two theories cannot both be true.

Miller Affidavit §3

Record cite: 2025-10-21 Declaration of Diligent Efforts (Duffy) ¶¶ 6, 10; 2025-10-28 Affidavit Regarding Efforts to Serve Parent (Miller), entries of 09/06, 09/30, 10/06, 10/13, 10/14, 2025; 10/31/2025 Jurisdictional Trial Transcript.

To default Mother under ORS 419B.914, the agency needed her to be an unlocatable, absent parent. To defeat Mother's objection to jurisdiction, the agency told the court that Mother "has constructive notice of these proceedings, that she has been attempting to file in the dependency case," and the court found that Mother "clearly knows of the proceedings as she keeps filing." A parent cannot be at once absent under ORS 419B.914 and a known participant with notice who is actively filing. If Mother was locatable enough to have notice and to file, the agency was required to complete service or obtain a court order for alternative service; if Mother was unlocatable, she did not have the notice the court imputed to her to justify proceeding. The agency and the court adopted whichever position defeated Mother at each step.

E. "Constructive notice" is not service, and the State's two arms advanced two incompatible theories.

AAG Wadia argued Mother had "constructive notice." The child's counsel, in a July 28, 2026 letter, argued the opposite — that Mother had "actual notice" and that "constructive notice is not a thing" — resting that theory on Mother's own filings. Neither theory is service of summons. And Mother's filings were special appearances contesting jurisdiction and service; a special appearance to challenge service does not waive the defect or confer jurisdiction. No provision of the Juvenile Code authorizes jurisdiction on constructive notice or on a parent's awareness of a case she is objecting to.

F. The agency identified the one lawful path to proceed without personal service — and did not take it.

Miller swore that service could not be made "by any method of personal or substituted service, nor by office service or service by mail as permitted under ORCP 7." That is the statutory predicate for *court-ordered alternative service* under ORS 419B.824(5). The agency never moved for alternative service, and the court never ordered it. The court named posting and publication as available methods; the agency requested none, and none was authorized. The agency laid the foundation for the only lawful route to proceed without personal service, then bypassed it and asked for default.

G. The agency circulated the wrong address and served Mother, alone, by mail rather than email.

The agency's Absent Parent Search circulated Mother's address as 17458 NW Springville Rd. — a transposition of Mother's actual address, 17548 NW Springville Rd., #9, which the agency's own CLEAR, Accurint, Medicaid, and TANF records each returned correctly and which Mother's family coach confirmed on October 13, 2025. The Postmaster reported that mail to the incorrect 17458 was "delivered to address given," and identified the correct 17548 address as Mother's. The agency then served its Declaration of Diligent Efforts on Mother by mail to the incorrect 17458 address — while serving father's counsel, the child's counsel, and CASA by email. The agency possessed Mother's email address, which Mother had answered on October 6, and used it for every party except the parent whose child was at issue.

H. The wrong-address error recurs across Mother's cases — and it manufactured the "warrant" and "evasion" the agency used to default her.

Mother has resided at 17548 NW Springville Rd., #9, Portland for more than three years and has not once changed residence. Every arm of the State that had reason to know her address had it correct. The Washington County Sheriff's own arrest-warrant affidavit records the incident residence as "17548 N Springville Rd, Apt 9, Portland" and lists Mother's "Last Known Address" as "17548 NW Springville Rd, Apt 9, Portland, OR 97229." The agency's diligent-efforts file returned the same address from CLEAR, Accurint, Medicaid, and Mother's open TANF case. Yet across three proceedings the State repeatedly sent notice somewhere else:

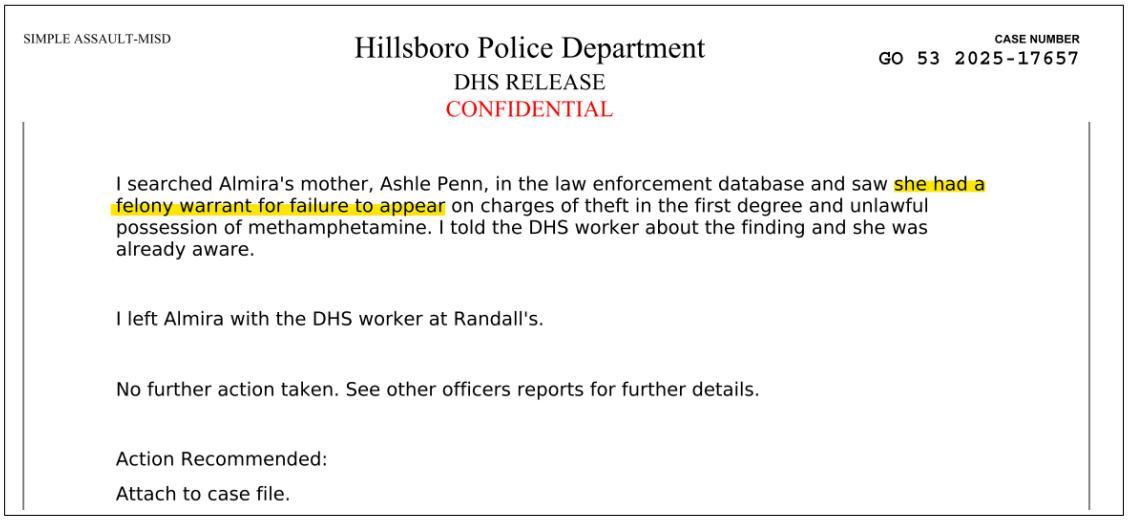
i. **This dependency case (No. 25JU04261):** the Absent Parent Search and the certificate of service used 17458 NW Springville Rd. — not Mother's 17548.

ii. **The criminal matter (*State v. Penn*, No. 24CR49043):** the court's June 11, 2025 Notice of Scheduled Court Appearance for the June 23, 2025 arraignment/show-cause was mailed not to Mother's residence but to 710 NW Autumn Creek Way, Apt. L304, Beaverton — an entirely different address in a different city.

iii. **The contempt matter (No. 25CN05790):** the Sheriff's December 2025 affidavit, by contrast, listed Mother's address correctly as 17548 NW Springville Rd., Apt 9 — confirming the State held the correct address the entire time.

Mother did not move; the State sent her court notices to addresses that were not hers while her correct address sat in the same files. And the error did not merely fail to reach her — it manufactured the predicate later used against her. The June 11, 2025 notice, mailed to the Beaverton address, did not reach Mother; her non-appearance on June 23, 2025 produced the arrest warrant in No. 24CR49043; and that same warrant is the "active warrant" AAG Wadia and Judge Rini invoked at the October 31, 2025 dependency trial to cast

Mother as "evading service" and to justify proceeding in her absence.[11] A misdirected notice in the criminal case supplied the "evasion" the agency used to take Mother's child in the dependency case. The agency knew of the warrant from the outset. On September 6, 2025 — the day it took Al-mira — a Hillsboro Police officer searched Mother in the law-enforcement database, found the felony failure-to-appear warrant, and, in the officer's words, "told the DHS worker about the finding and she was already aware." The agency thus advanced as proof of "evasion" a warrant it knew arose from a failure to appear at a hearing the court had noticed to the wrong address.



SIMPLE ASSAULT-MISD

Hillsboro Police Department

DHS RELEASE

CONFIDENTIAL

CASE NUMBER

GO 53 2025-17657

I searched Almira's mother, Ashle Penn, in the law enforcement database and saw she had a felony warrant for failure to appear on charges of theft in the first degree and unlawful possession of methamphetamine. I told the DHS worker about the finding and she was already aware.

I left Almira with the DHS worker at Randall's.

No further action taken. See other officers reports for further details.

Action Recommended:

Attach to case file.

Figure 4. Hillsboro Police report, September 6, 2025: the officer found Mother's felony failure-to-appear warrant and "told the DHS worker about the finding and she was already aware." The warrant traces to the June 11, 2025 hearing notice the court mailed to 710 NW Autumn Creek Way — not Mother's address. *(Source: Hillsboro Police Dept. GO 2025-17657.)*

That cascade refutes the agency's sworn representation. Asked whether any reason for Mother's non-appearance was "out of her control," caseworker Marquand answered, "No." A parent who does not appear because the State mailed notice to an address its own records show is not hers is absent through something entirely outside her control.

I. The "evasion" finding rested on a racialized assumption, not evidence.

The court's conclusion that Mother was "actively avoiding service" rested in part on the man who answered the door at an address that was not Mother's residence. The process server described that person only as "a 50 year old, male, African American, 6 foot, 240 pounds, bald," who stated that no Ashle Penn lived there. On that description alone, the court surmised that the man "matches the description of the daddy of her child" and Mother's "co-defendant," and imported a criminal-association narrative into a service determination. The record supplies no basis for that identification beyond the man's race, and the physical description does not match the individual the court named. Throughout the record the parents are identified as "mother" and "father"; the court applied the term "daddy" to no one else. Identifying an unidentified Black man by his race and presuming he is "the daddy of [Mother's] child" is stereotype, not evidence, and stereotype cannot supply the factual basis a jurisdictional finding requires. Mother is entitled to an impartial tribunal and to findings grounded in the record rather than in racialized assumption. U.S. Const. amend. XIV.

J. The default was defective when entered, and the court has never revisited it.

The defect was apparent on the face of the record the court relied upon: the agency's own diligent-efforts filings contained Mother's correct address while notice went elsewhere. A juvenile court may set aside its orders. ORS 419B.923. When the predicate for a default — that diligent efforts failed to reveal the parent's whereabouts, and that the parent had notice and evaded — is shown to be false, the court cannot let the default stand; a judgment premised on defective notice does not survive disclosure of the defect. The court later acknowledged that notice to Mother had been directed to the wrong address.[12] No order revisiting the October 31, 2025 default has issued, and every subsequent order — the review judgment and the permanency

Record: Notice of Scheduled Court Appearance, *State v. Penn*, No. 24CR49043 (mailed June 11, 2025 to 710 NW Autumn Creek Way, Apt. L304, Beaverton, OR 97006); Affidavit in Support of Arrest Warrant, No. 25CN05790 (Dep. David Rambin, Dec. 29, 2025) (listing Mother's address as 17548 NW Springville Rd., Apt 9); 2025-10-28 Affidavit Regarding Efforts to Serve Parent (Miller) (CLEAR, Accurint, Medicaid, and TANF records returning 17548 NW Springville Rd., #9).
Record cite to confirm: the hearing transcript in which the court acknowledged that notice to Mother had been sent to an incorrect address.

judgment — continues to rest on it. Continued reliance on a default the court has been shown rested on misdirected notice is not discretion; it is the maintenance of a judgment stripped of its predicate.

K. The consequence.

The court found Mother in default under a statute that applies only to a parent who cannot be found, on a record establishing that the agency found her repeatedly; entered jurisdiction without the service ORS 419B.815(1) makes a precondition; and treated Mother's filings as proof of notice for one purpose while dismissing them as "computer generated" for another. Every order that followed — the October 31, 2025 jurisdictional judgment, the dispositional orders, and the subsequent review and permanency judgments — rests on a default that no lawful predicate supports.

3. The Prima Facie Case Rests on Unsworn Reports Recited by a Witness With No Firsthand Knowledge

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No ODHS employee has sworn, in any written report, under penalty of perjury, to the truth of the factual assertions on which jurisdiction was founded. The Fact Finding and Protective Custody Reports are unsworn. The only oath in the record attaches to (1) the live testimony of caseworker Emily Marquand and (2) the diligent-efforts Declaration and Affidavit of Rylan Duffy and Kayla Miller.

A. Relaxed shelter-hearing evidentiary rules do not immunize the creation or submission of fabricated evidence.

ODHS may argue that the Oregon Evidence Code does not apply in full at an initial shelter hearing and that the Court was therefore permitted to receive the Fact Findings Report and Protective Custody Report. That argument confuses the Court's authority to receive a report with the truth, reliability, or legal sufficiency of the factual assertions contained in it. Oregon law permits the Court, at a shelter hearing, to receive relevant reports and other evidence under a relaxed evidentiary standard. ORS 419B.185(1)(g). The statute does not authorize ODHS to fabricate facts, misrepresent known information, or present materially false assertions to the Court.

Nor does ORS 419B.325(2) cure the defect. That provision concerns the receipt of reports and other material for purposes of determining the proper disposition of a ward. It does not eliminate the evidentiary requirements applicable to a jurisdictional determination. In *Department of Human Services v. J.B.V.*, the Oregon Court of Appeals recognized that the exception for receiving otherwise incompetent or irrelevant material does not apply to the jurisdictional determination. Accordingly, the agency cannot convert false or unsupported allegations into competent jurisdictional evidence merely by placing them in an agency report.

The same distinction applies to the testimony of Emily Marquand. To the extent Marquand lacked firsthand knowledge of the operative facts and merely recited information contained in reports authored by others, her testimony did not independently verify those facts. ORS 40.315 provides that a witness may not testify to a matter unless evidence supports a finding that the witness had personal knowledge of it. The agency therefore cannot rely on Marquand's repetition of unsworn reports as though it were firsthand proof of present danger.

The question is not whether the Court could physically receive the reports. The question is who created, supplied, approved, or knowingly presented the false material that the agency used to obtain or maintain state custody over the child. Responsibility does not disappear merely because the falsehood was embedded in an unsworn document or repeated by a witness who lacked personal knowledge. The responsible actor may be the person who authored or altered the report, the person who supplied the false information, a supervisor who knowingly approved its use, or another official who knowingly presented the material to the Court.

Testimonial immunity protects, at most, the act of giving testimony in the protected testimonial capacity. It does not immunize investigative fabrication or the deliberate creation of false evidence before the proceeding. *Devereaux v. Abbey*, 263 F.3d 1070, 1074–75 (9th Cir. 2001) (en banc); *Beltran v. Santa Clara County*, 514 F.3d 906, 908–09, 908 n.2 (9th Cir. 2008). Likewise, the AAG's role as advocate does not automatically immunize the underlying investigative conduct of ODHS personnel or the knowing submission of materially false information by a person acting outside the protected advocacy function.

The relaxed evidentiary standard at shelter may explain why the Court received the reports. It does not explain away the fabrication, does not establish the truth of the reports, and does not answer who authored, approved, or knowingly presented the false evidence. The agency cannot use the procedural permissibility of submitting a report as a defense to the substantive misconduct of filling that report with material falsehoods.

Marquand had no firsthand knowledge of any operative fact; she recited the contents of reports authored by others.

A witness may testify only to matters within her personal knowledge, OEC 602. An agency that proves

a jurisdictional case through a no-knowledge witness reading unsworn hearsay has not supplied competent evidence of present danger; it has supplied the *appearance* of evidence. This is not a shield for the agency. Testimonial immunity protects only the act of testifying; it does not reach the deliberate fabrication of the underlying reports, which violates due process whether or not the fabricated statement was made under oath. *Devereaux*, 263 F.3d at 1074–75. And the two documents the agency *did* swear — the Duffy Declaration and the Miller Affidavit — are the false-swearing exposure catalogued below. ORS 162.065; ORS 162.075.

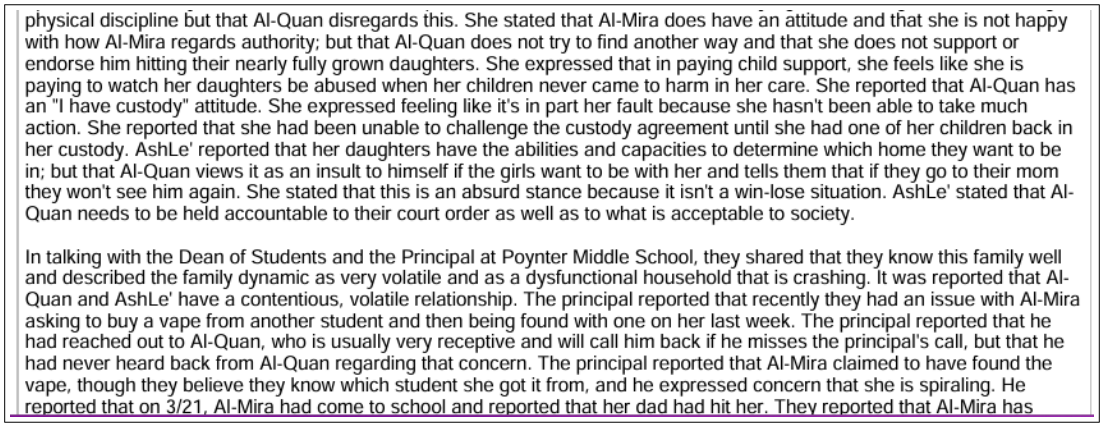
Because you claimed that the records required to review this information had not been made available to you, I am now providing the substance and direct proof of those records in accordance with your commitment. **The Citizen Review Board hearing in Case No. 25JU04261 is tomorrow.** I ask that you honor the commitment you made and act on this record *so that the review provided meaningfully engages agency and parental action.* Examining that fabricated record that misled the court; ensuring your agency's ethical and legal duties are met, and mitigating the Constitutional and statutory violations catalogued below are not discretionary.

Under *Corales v. Bennett*, 567 F.3d 554, 570 (9th Cir. 2009), a supervisor is liable for the acts of her subordinates if she participated in or directed the violations, *or* knew of the violations of subordinates and failed to act to prevent them. As of your receipt of this letter, you have that knowledge. What you do next determines whether your inaction converts your subordinates' conduct into your own.

Despite your having knowledge of my claims and rather than consulting the record which I present to you today, you communicated that you *"did not find that the concerns related to the employee's work conduct and decision making were substantiated,"* and later reframed my insistence that the agency's actions were unlawful as:

> *[a] lack of engagement in the process... limiting the ability to make progress toward reunification of your child into your home. Your decision to decline access to yourself and your home, along with your refusal to participate fully in the court process, limits ODHS's ability to assess your functioning, protective capacities, and whether your home is now safe for your child.*

Ms. Faulkner, your own words cannot both be true. You state that my conduct "limits ODHS's ability to assess [my] functioning, protective capacities, and whether [my] home is now safe." That is a concession that the agency has *not* assessed me. An agency that admits it has not conducted the requisite assessment of parental capacity by that very admission, cannot ethically and lawfully assert that I lack the capacity to parent and that I have acted dangerously subjecting my daughter to a non-speculative, serious threat of harm likely to be realized. ODHS would, if what you're saying is true and without identifying any specific conduct of mine to the contrary, have no factual basis to conclude that I present a danger to Al-mira. The agency bears the burden of reconciling its statement that an inability to assess amounts to evidence of risk with the evidence to the contrary.

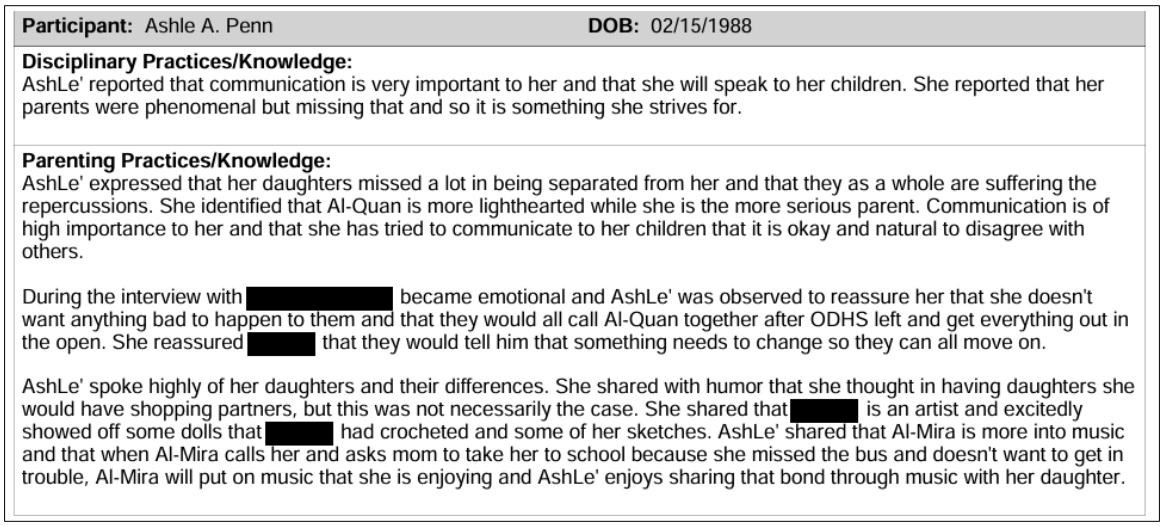


physical discipline but that Al-Quan disregards this. She stated that Al-Mira does have an attitude and that she is not happy with how Al-Mira regards authority; but that Al-Quan does not try to find another way and that she does not support or endorse him hitting their nearly fully grown daughters. She expressed that in paying child support, she feels like she is paying to watch her daughters be abused when her children never came to harm in her care. She reported that Al-Quan has an "I have custody" attitude. She expressed feeling like it's in part her fault because she hasn't been able to take much action. She reported that she had been unable to challenge the custody agreement until she had one of her children back in her custody. AshLe' reported that her daughters have the abilities and capacities to determine which home they want to be in; but that Al-Quan views it as an insult to himself if the girls want to be with her and tells them that if they go to their mom they won't see him again. She stated that this is an absurd stance because it isn't a win-lose situation. AshLe' stated that Al-Quan needs to be held accountable to their court order as well as to what is acceptable to society.

In talking with the Dean of Students and the Principal at Poynter Middle School, they shared that they know this family well and described the family dynamic as very volatile and as a dysfunctional household that is crashing. It was reported that Al-Quan and AshLe' have a contentious, volatile relationship. The principal reported that recently they had an issue with Al-Mira asking to buy a vape from another student and then being found with one on her last week. The principal reported that he had reached out to Al-Quan, who is usually very receptive and will call him back if he misses the principal's call, but that he had never heard back from Al-Quan regarding that concern. The principal reported that Al-Mira claimed to have found the vape, though they believe they know which student she got it from, and he expressed concern that she is spiraling. He reported that on 3/21, Al-Mira had come to school and reported that her dad had hit her. They reported that Al-Mira has

Figure 5. A demonstration of just one of the instances your agency documented spanning the several years ODHS has had an opportunity to *assess* my abilities as a parent. Please note the accountability that was taken by Mother contradicting the agency's supposition that Mother is unable to recognize the part she played in her children's being taken into state custody. Also please note Mother's intention and plans to modify the custody order once Feliciano was returned to her care. In a prior order with Washington County Circuit Court- Judge Pagan ordered that no physical discipline of the girls was permitted and the agency has overlooked this fact - allowing multiple instances of physical abuse to occur despite this court order. The agency has then advocated for contact between father and daughters and despite Mother's attempts to file for a modification in

custody has asserted that father is not a danger with regard to Amaiya and Al-mira being placed with him, but *is a danger* with regard to whether Mother can protect the girls from father.



Participant: Ashle A. Penn **DOB:** 02/15/1988

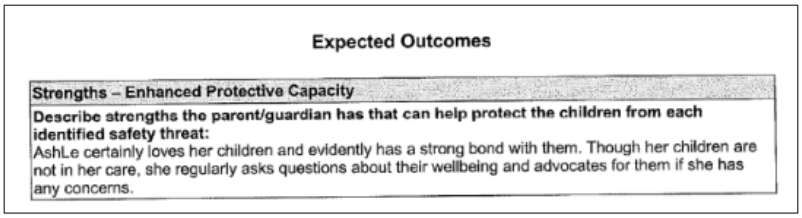
Disciplinary Practices/Knowledge:
AshLe' reported that communication is very important to her and that she will speak to her children. She reported that her parents were phenomenal but missing that and so it is something she strives for.

Parenting Practices/Knowledge:
AshLe' expressed that her daughters missed a lot in being separated from her and that they as a whole are suffering the repercussions. She identified that Al-Quan is more lighthearted while she is the more serious parent. Communication is of high importance to her and that she has tried to communicate to her children that it is okay and natural to disagree with others.

During the interview with [redacted] became emotional and AshLe' was observed to reassure her that she doesn't want anything bad to happen to them and that they would all call Al-Quan together after ODHS left and get everything out in the open. She reassured [redacted] that they would tell him that something needs to change so they can all move on.

AshLe' spoke highly of her daughters and their differences. She shared with humor that she thought in having daughters she would have shopping partners, but this was not necessarily the case. She shared that [redacted] is an artist and excitedly showed off some dolls that [redacted] had crocheted and some of her sketches. AshLe' shared that Al-Mira is more into music and that when Al-Mira calls her and asks mom to take her to school because she missed the bus and doesn't want to get in trouble, Al-Mira will put on music that she is enjoying and AshLe' enjoys sharing that bond through music with her daughter.

Figure 6. During the interview...AshLe' was observed to reassure her that she doesn't want anything bad to happen to them and that they would all call Al-Quan together after ODHS left and got everything out in the open. She reassured...they would tell him that something needs to change so they can all move on.

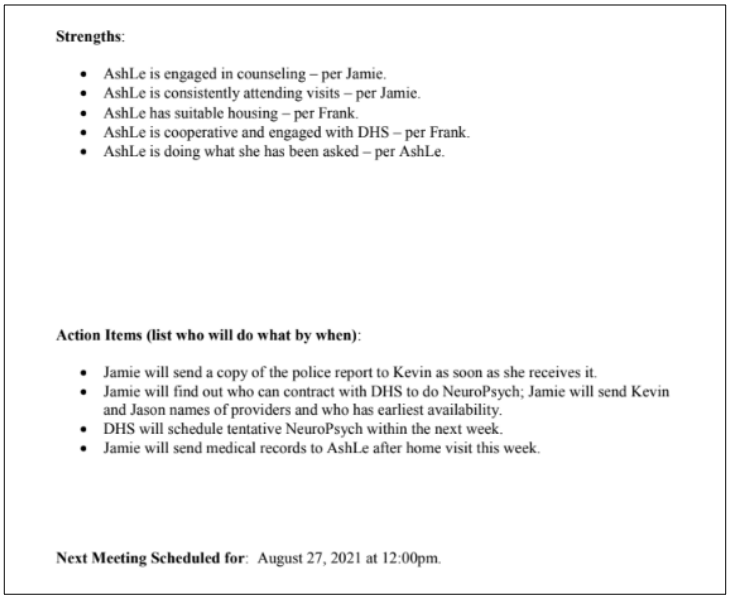


Expected Outcomes

Strengths – Enhanced Protective Capacity

Describe strengths the parent/guardian has that can help protect the children from each identified safety threat:
AshLe certainly loves her children and evidently has a strong bond with them. Though her children are not in her care, she regularly asks questions about their wellbeing and advocates for them if she has any concerns.

Figure 7. ODHS's own note acknowledging that Mother loves her children—the bond the agency's allegations deny. *(Source: ODHS case notes.)*



Strengths:

- AshLe is engaged in counseling – per Jamie.
- AshLe is consistently attending visits – per Jamie.
- AshLe has suitable housing – per Frank.
- AshLe is cooperative and engaged with DHS – per Frank.
- AshLe is doing what she has been asked – per AshLe.

Action Items (list who will do what by when):

- Jamie will send a copy of the police report to Kevin as soon as she receives it.
- Jamie will find out who can contract with DHS to do NeuroPsych; Jamie will send Kevin and Jason names of providers and who has earliest availability.
- DHS will schedule tentative NeuroPsych within the next week.
- Jamie will send medical records to AshLe after home visit this week.

Next Meeting Scheduled for: August 27, 2021 at 12:00pm.

Figure 8. ODHS has documented mother's consistent engagement with the agency, records that testifying witness Marquand should have had knowledge of as it is a requirement to review a family's prior involvement with ODHS during a child welfare assessment for abuse/neglect. *(Source: ODHS case notes.)*

3/25/24 3:30 PM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Unscheduled Contact Occurred
Approximately 3:30pm, made contact with AshLe' at her home, visit scheduled for tomorrow at 10am. 4:06pm, worker texted AshLe' requesting to meet at 11am tomorrow					

Figure 9. ODHS's own record scheduling the in-home interview at Mother's residence—the agency arranged, and Mother permitted, the very home assessment it now claims it "cannot" conduct. *(Source: 2025-09-08 Fact Findings Report.)*

Tuesdays and Thursdays at 10am and will last for 30 minutes. Jamie will send the video visit information to AshLe. The calls will occur via Skype. Shawna thanked Jamie for setting that up and asked if there was any way they could hold a Skype visit prior to next Tuesday. Jamie said she would ask.

Shawna asked if AshLe and Feliciano can have a physical visit, and what can be done in order to arrange an in-person visit. Jamie said the guidelines for visits continue to change but currently say visits cannot occur at the office and SSAs cannot supervise in person visits. AshLe stated that she understands the importance of protecting onself against Covid 19 and stated that is why it is more important for her to see her son. She said exposing her son to a new Safety Service Provider (SSP) or care provider could also be dangerous (with the virus).

AshLe said she will forward the names of her possible SSPs to Jamie to be vetted.

Frank said DHS is handling the issue on a case-by-case basis and any in-person contact must be approved at the Program Manager level. He said that DHS must ensure that AshLe and anyone within the household is healthy. He said the foster parent also must approve as it could bring exposure into their home.

AshLe offered to go to the care provider's home for visits. Tanya reviewed the most recent DHS guidelines for visitation and clarified that any exceptions related to in-person visitation would need to be staffed and approved by the Program Manager. Shawna asked DHS to look into this as soon as possible.

Marie said that she has other family members willing to provide care for the baby. Jason said he is not in support of moving Feliciano. Marie clarified that she has other family members who could be SSPs. Marie will send the information about potential SSPs to DHS to have them vetted.

AshLe will send potential SSPs to Jamie and Jamie will work on vetting them.

In between the two meetings (4/16 and 4/20) AshLe and Feliciano had a phone visit. AshLe said she talked to Feliciano for about 20 minutes and it went well. She said when Feliciano saw her his face lit up and he reached out to touch her face and tried to feed her through the screen. She said she knows he misses her terribly. She said he's a happy guy because I've loved on him and she was glad to have a moment with him.

Jamie said Feliciano is doing well and is happy. She said the video call between AshLe and Feliciano was positive.

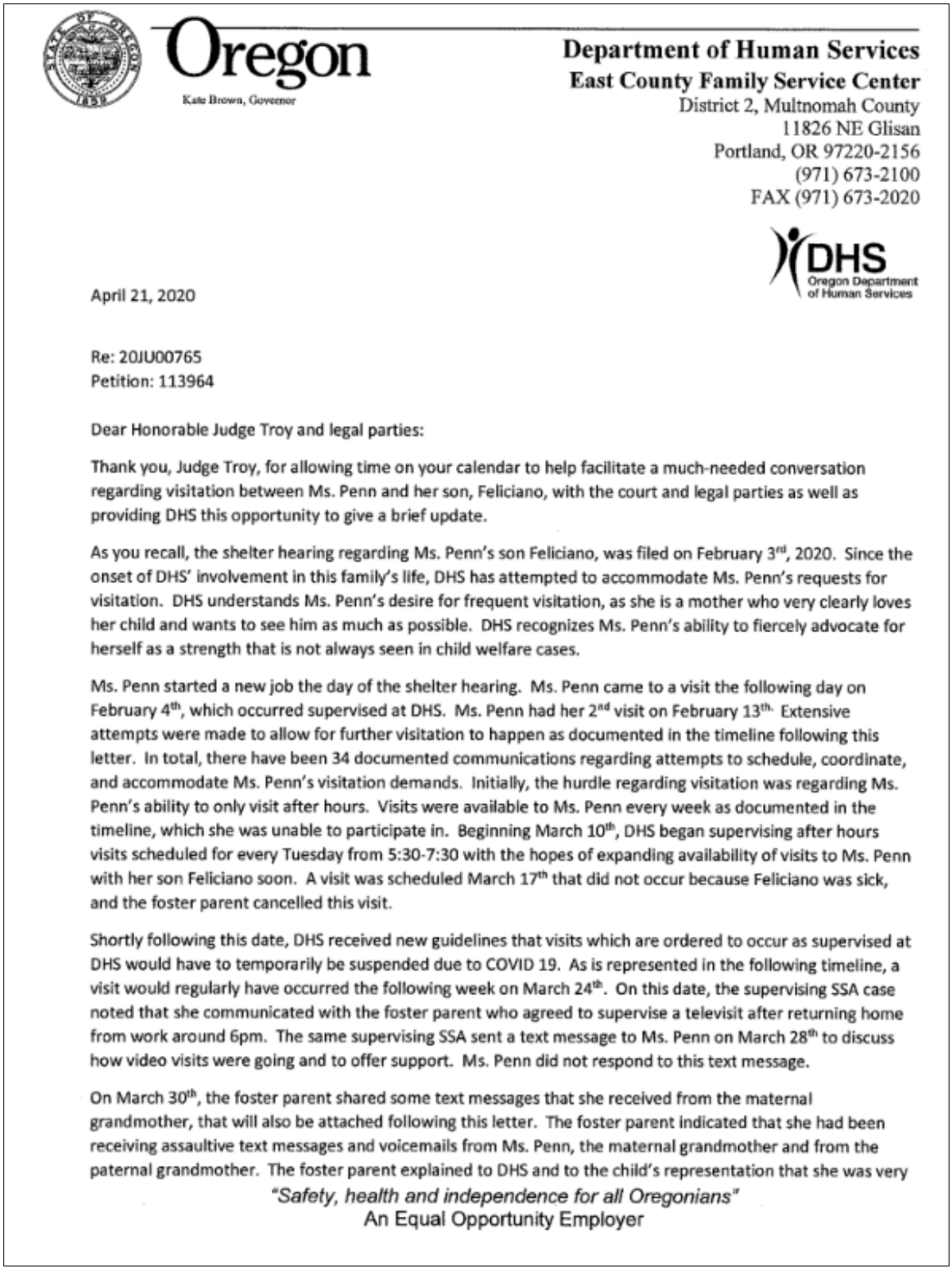
AshLe asked how long Feliciano has been at respite care and asked if the respite care providers had been approved by DHS. Jamie said all respite care providers are approved to provide care.

Figure 10. ODHS's own record of scheduled video visits—further contradicting the "zero visits / no contact" narrative. *(Source: ODHS visit notes.)*

Parent Updates

Update from parents, discussion of strengths, and discussion of challenges and needs of the parents
The Family Engagement Meeting was split into two meetings, with the initial meeting occurring on 4/16/20 and the continuation occurring on 4/20/20. The notes include information from both meetings. ASHLE UPDATE AshLe is working from home. She is working with Ana to get into a new apartment. She said she wants her son home as soon as possible so things can get back to normal. Ana said AshLe is trying to get approved for housing. Ana asked if AshLe had seen her last email. AshLe said she is working and can't check her email as often as she would like. AshLe spoke to the challenges of finding housing that is in her price range and is close enough to work. Shawna asked if there would be issues with AshLe looking for housing in Vancouver since her job is there. Carissa said there could be challenges if AshLe moves to Vancouver as it is out of state and ICPC would become involved, creating restrictions. Tanya explained that Oregon would need to follow ICPC, so would send that State of Washington information through the ICPC process and then Washington would be in charge of approving or denying Feliciano moving there. Tanya said it is common for the approval process to take 3 months or more, and Oregon would have no control over the decision the State of Washington makes. Tanya said it can become problematic and complicated. Ana said there is usually a DV shelter option but wasn't sure of the status. Ana asked AshLe if she would be interested in shelter housing. AshLe said she explored that with the Gateway Center and isn't pursuing it. Elena said she agreed with this and said she had staffed it with her supervisor as well. Elena said the shelter is not the right place for someone who currently has stable housing. She suggested, if AshLe must move, that perhaps the Gateway Center could help AshLe with funding for a hotel for a week or so. Jamie asked AshLe if she would be interested in a referral for Housing and Stability through Self Enhancement Inc (SEI). AshLe said she has not heard about the program and will look into it. She asked that Jamie send in the referral.

Figure 11. Evidence of a pattern of fabrication and reckless disregard for the truth. Corissa Ponting participated in a family planning meeting with mother in which Mother's use of shelters was addressed directly. Mother pursued the resource and was told by her advocate that she is not a candidate for such subsidy. *(Source: FDM planning notes April 16, 2020 and April 20, 2020.)*



Oregon
Kate Brown, Governor

Department of Human Services
East County Family Service Center
District 2, Multnomah County
11826 NE Glisan
Portland, OR 97220-2156
(971) 673-2100
FAX (971) 673-2020

DHS Oregon Department of Human Services

April 21, 2020

Re: 20JU00765
Petition: 113964

Dear Honorable Judge Troy and legal parties:

Thank you, Judge Troy, for allowing time on your calendar to help facilitate a much-needed conversation regarding visitation between Ms. Penn and her son, Feliciano, with the court and legal parties as well as providing DHS this opportunity to give a brief update.

As you recall, the shelter hearing regarding Ms. Penn's son Feliciano, was filed on February 3rd, 2020. Since the onset of DHS' involvement in this family's life, DHS has attempted to accommodate Ms. Penn's requests for visitation. DHS understands Ms. Penn's desire for frequent visitation, as she is a mother who very clearly loves her child and wants to see him as much as possible. DHS recognizes Ms. Penn's ability to fiercely advocate for herself as a strength that is not always seen in child welfare cases.

Ms. Penn started a new job the day of the shelter hearing. Ms. Penn came to a visit the following day on February 4th, which occurred supervised at DHS. Ms. Penn had her 2nd visit on February 13th. Extensive attempts were made to allow for further visitation to happen as documented in the timeline following this letter. In total, there have been 34 documented communications regarding attempts to schedule, coordinate, and accommodate Ms. Penn's visitation demands. Initially, the hurdle regarding visitation was regarding Ms. Penn's ability to only visit after hours. Visits were available to Ms. Penn every week as documented in the timeline, which she was unable to participate in. Beginning March 10th, DHS began supervising after hours visits scheduled for every Tuesday from 5:30-7:30 with the hopes of expanding availability of visits to Ms. Penn with her son Feliciano soon. A visit was scheduled March 17th that did not occur because Feliciano was sick, and the foster parent cancelled this visit.

Shortly following this date, DHS received new guidelines that visits which are ordered to occur as supervised at DHS would have to temporarily be suspended due to COVID 19. As is represented in the following timeline, a visit would regularly have occurred the following week on March 24th. On this date, the supervising SSA case noted that she communicated with the foster parent who agreed to supervise a televisit after returning home from work around 6pm. The same supervising SSA sent a text message to Ms. Penn on March 28th to discuss how video visits were going and to offer support. Ms. Penn did not respond to this text message.

On March 30th, the foster parent shared some text messages that she received from the maternal grandmother, that will also be attached following this letter. The foster parent indicated that she had been receiving assaultive text messages and voicemails from Ms. Penn, the maternal grandmother and from the paternal grandmother. The foster parent explained to DHS and to the child's representation that she was very

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Figure 12. The April 21, 2020 DHS letter to the court (Re: 20JU00765) — the full document from which the "too good for a shelter" characterization is drawn. The same letter records that "DHS understands Ms. Penn's desire for frequent visitation, as she is a mother who very clearly loves her child," and documents thirty-four contacts and consistent visitation efforts during the very period the agency later recast as non-engagement. *(Source: April 21, 2020 ODHS letter to the court.)*

At the PTC/SLC on March 9th, Ms. Penn acknowledged that DV had occurred however identified it as not being a current problem. Ms. Penn later came to the second bifurcated hearing scheduled for Mr. Washington that he did not appear for. From the perspective of keeping a very small, vulnerable child safe, Ms. Penn's presentation on this day added more doubt to Ms. Penn's previous statement that she was not having contact with Mr. Washington. The confusion,concern and worry here being that Ms. Penn has said that violence is occurring, has said she is not seeing Mr. Washington, has said the violence is not a problem, and then appears at Mr. Washington's hearing which he was unable to appear for. DHS later received information from Mr. Pierson which has been discovered that on 2/16/2020 and 3/1/2020, Mr. Washington was observed at Ms. Penn's residence. Furthermore, Mr. Washington has failed to communicate any current address to DHS and DHS has no reason to believe he is not currently living with her, given he cites his address as her current address in various legal documents.

It may seem that DHS is "victim-blaming" Ms. Penn for her continued involvement with Mr. Washington. DHS is as fearful for Ms. Penn's safety as they are for her child's, however, is only tasked with ensuring Feliciano is safe. It is known according to current research that domestic violence victims are seven times more likely to be killed by their abuser in cases of strangulation. It is known that this has happened to Ms. Penn more than once and that this was witnessed by her children and that it happened in the presence of Feliciano.

It is important that the pattern of inconsistent information being reported to DHS along with the severity of this violence be considered regarding utilizing Safety Service Providers. Ms. Penn has shown over and over that despite knowing she should not be around Mr. Washington; she is unable to stop him from coming around and she is unable to stop herself from being around him. During the early stages of this case, Ms. Penn was encouraged to seek safe shelter at a domestic violence shelter. Ms. Penn has refused this option, and it has been reported to DHS that Ms. Penn is "too good" for a shelter in as recent as a staffing with DV advocates on 4/20/20. Ms. Penn is also refusing to go to a hotel because she has current housing. DHS is confused by the notion that anyone is "too good" for turning to a shelter if it is what is required to keep someone from potentially being killed, however understands why leaving ones home under this circumstance is definitely not convenient or the desired choice to make.

Ms. Penn is asking for increased visitation because she undoubtedly loves her child. DHS is extremely concerned about what violence will occur injuring the mother and potentially child by the father if visits are to be expanded in the community and supervised by safety service providers. Mr. Washington appears to know where Ms. Penn is, and Ms. Penn appears to make herself available to him.

DHS maintains grave concern as to what outcome will occur if visits occur away from DHS and acknowledges being unable to offer in person visits at this time. DHS believes that Feliciano's physical and emotional safety rises above the desire to have visits in the community supervised by Safety Service Providers. DHS recognizes that the transition to televisits could have been more seamless and that communication has at times been strained between the agency and Ms. Penn. Given the unprecedented nature of the COVID 19 crisis, the agency is adapting services in alignment with quarantine orders which are difficult to all involved, though none as significantly as families such as Ms. Penn's. A committed plan is in place currently to support televisits for Ms. Penn and Feliciano moving forward.

Figure 13. The very next day after the family planning meeting occurred, Corissa Ponting submits a letter to the court stating that Mother believed she was "too good" to be housed in a shelter. This representation was made in an attempt to fabricate mother's attitude toward the agency and participation with the agency. Mother *had pursued the resource* and it was said to be unavailable to her. This evidence is offered, again, to demonstrate the pattern of misrepresentation, fabrication and prejudice the agency fosters when there is a reckless disregard for the truth. *(April 21, 2020 letter to the court from ODHS)*

Reporter believes that there is a history of domestic violence that has already been reported to child welfare. It's reported that mom is not in the home at this time. Dad controls when the girls can see and talk to her and will use this as a form of discipline.

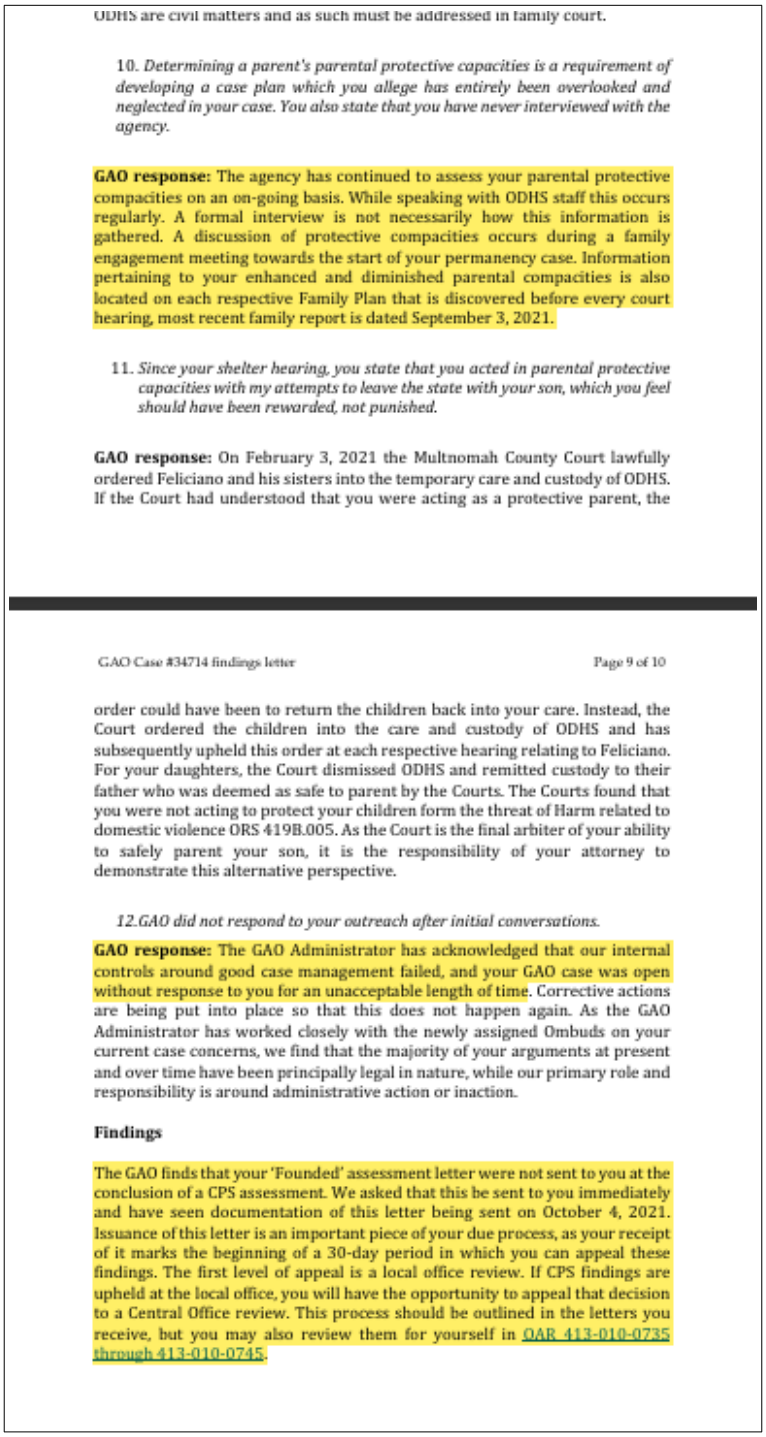
Figure 14. ODHS's own record that Father used Mother's home as discipline—contradicting the portrayal of Mother "showing up" without permission. *(Source: Fact Findings Report, p. 28.)*

Participant: Alquan A. Davis **DOB:** 09/04/1978

Disciplinary Practices/Knowledge:
Al-Quan reported that he used to be able to just threaten the girls that he would spank their butt and that was enough, but AshLe' pointed out to them that he was just saying that and in doing so took away his power. Al-Quan reported that he has tried talking to the girls or taking things away, but that this has no impact on them.

AshLe' reported that she does not approve of Al-Quan hitting their daughters and that she has tried to counsel him that it is not appropriate to hit them or lock them out of the home, but that he will not find another way.

Figure 15. ODHS's own record that Mother disapproved of Father's physical discipline of the children—contradicting Allegation B that Mother "fails to recognize" Father's threat. *(Source: ODHS case notes.)*



ODHS are civil matters and as such must be addressed in family court.

10. *Determining a parent's parental protective capacities is a requirement of developing a case plan which you allege has entirely been overlooked and neglected in your case. You also state that you have never interviewed with the agency.*

GAO response: The agency has continued to assess your parental protective compacities on an on-going basis. While speaking with ODHS staff this occurs regularly. A formal interview is not necessarily how this information is gathered. A discussion of protective compacities occurs during a family engagement meeting towards the start of your permanency case. Information pertaining to your enhanced and diminished parental compacities is also located on each respective Family Plan that is discovered before every court hearing, most recent family report is dated September 3, 2021.

11. *Since your shelter hearing, you state that you acted in parental protective capacities with my attempts to leave the state with your son, which you feel should have been rewarded, not punished.*

GAO response: On February 3, 2021 the Multnomah County Court lawfully ordered Feliciano and his sisters into the temporary care and custody of ODHS. If the Court had understood that you were acting as a protective parent, the

GAO Case #34714 findings letter Page 9 of 10

order could have been to return the children back into your care. Instead, the Court ordered the children into the care and custody of ODHS and has subsequently upheld this order at each respective hearing relating to Feliciano. For your daughters, the Court dismissed ODHS and remitted custody to their father who was deemed as safe to parent by the Courts. The Courts found that you were not acting to protect your children form the threat of Harm related to domestic violence ORS 419B.005. As the Court is the final arbiter of your ability to safely parent your son, it is the responsibility of your attorney to demonstrate this alternative perspective.

12.GAO did not respond to your outreach after initial conversations.

GAO response: The GAO Administrator has acknowledged that our internal controls around good case management failed, and your GAO case was open without response to you for an unacceptable length of time. Corrective actions are being put into place so that this does not happen again. As the GAO Administrator has worked closely with the newly assigned Ombuds on your current case concerns, we find that the majority of your arguments at present and over time have been principally legal in nature, while our primary role and responsibility is around administrative action or inaction.

Findings

The GAO finds that your 'Founded' assessment letter were not sent to you at the conclusion of a CPS assessment. We asked that this be sent to you immediately and have seen documentation of this letter being sent on October 4, 2021. Issuance of this letter is an important piece of your due process, as your receipt of it marks the beginning of a 30-day period in which you can appeal these findings. The first level of appeal is a local office review. If CPS findings are upheld at the local office, you will have the opportunity to appeal that decision to a Central Office review. This process should be outlined in the letters you receive, but you may also review them for yourself in OAR 413-010-0735 through 413-010-0745.

Figure 16. Confirmation that no founded-disposition letter ever issued against Mother—the only founded finding in the record is the 2019 threat-of-harm tied to Barry Washington in which Mother was not afforded due process in being notified of the founded allegation so that she had an opportunity to be heard and challenge this administrative finding. *(Source: GAO #34714.)*

The inability to assess parental capacity is the *absence* of evidence and does not meet the standard that when a parent's alleged risk-causing conduct is at issue, DHS has the burden of demonstrating a nexus between the parent's conduct and the threatened harm to the child. *Dept. of Human Services v. L.E.F.*, 307 Or App 254, 258, 476 P3d 119 (2020). ODHS' burden to establish a present, non-speculative threat of serious harm rests with the agency—and both historically documented conduct as well as an admitted evidentiary void cannot carry it. At the same time, the reasonable-efforts inquiry focuses on DHS's conduct, and a parent's resistance to DHS's efforts does not categorically excuse DHS from making meaningful efforts toward that parent. *Dept. of Human Services v. R. W.* , 277 Or.App. 37, 44, 370 P.3d 543 (2016). Even when child is ward of court, preference for placement with natural parents is still recognized, therefore standard is compelling circumstances for removal rather than best interest of child. *State ex rel Juv. Dept. v. Lauffenberge*r, 308 Or 159, 777 P2d 954 (1989).

Moreover, when evaluating whether a parent's alleged behavior may cause harm to the child sufficient to support dependency jurisdiction, we must consider that "[t]he fact that a parent engages in behavior that could negatively affect his or her parenting does not necessarily mean that the behavior can serve as a basis for juvenile court jurisdiction over a child." *Dept. of Human Services v. A. F.*, 243 Or App 379, 387, 259 P3d 957 (2011). We examine the totality of the circumstances to determine if there is a reasonable likelihood of harm to the child's welfare. *C.J.T.*, 258 Or.App. at 61–62, 308 P.3d 307 (citing *Dept. of Human Services v. C.Z.*, 236 Or.App. 436, 440, 236 P.3d 791 (2010)).

You *cannot* remove and withhold my child on a finding of danger while simultaneously conceding that the requisite assessment has not been accomplished where such a finding would require. To establish jurisdiction, DHS must present evidence "sufficient to support a conclusion that the child's condition or circumstances expose the child to a current threat of serious loss or injury that is likely to be realized." *Dept. of Human Services v. A. W.* , 276 Or.App. 276, 278, 367 P.3d 556 (2016). DHS must establish the "type, degree, and duration" of the harm at issue. *Dept. of Human Services v. S. D. I.* , 259 Or.App. 116, 121, 312 P.3d 608 (2013). It must establish "a nexus between the allegedly risk- causing conduct and the harm to the child." *Dept. of Human Services v. C. J. T.*, 258 Or.App. 57, 62, 308 P.3d 307 (2013). It also must prove that the risk of harm is "nonspeculative"; that is, there must be "a reasonable likelihood that the threat will be realized." *Dept. of Human Services v. A. L.* , 268 Or.App. 391, 397, 342 P.3d 174 (2015) (internal quotation marks omitted).

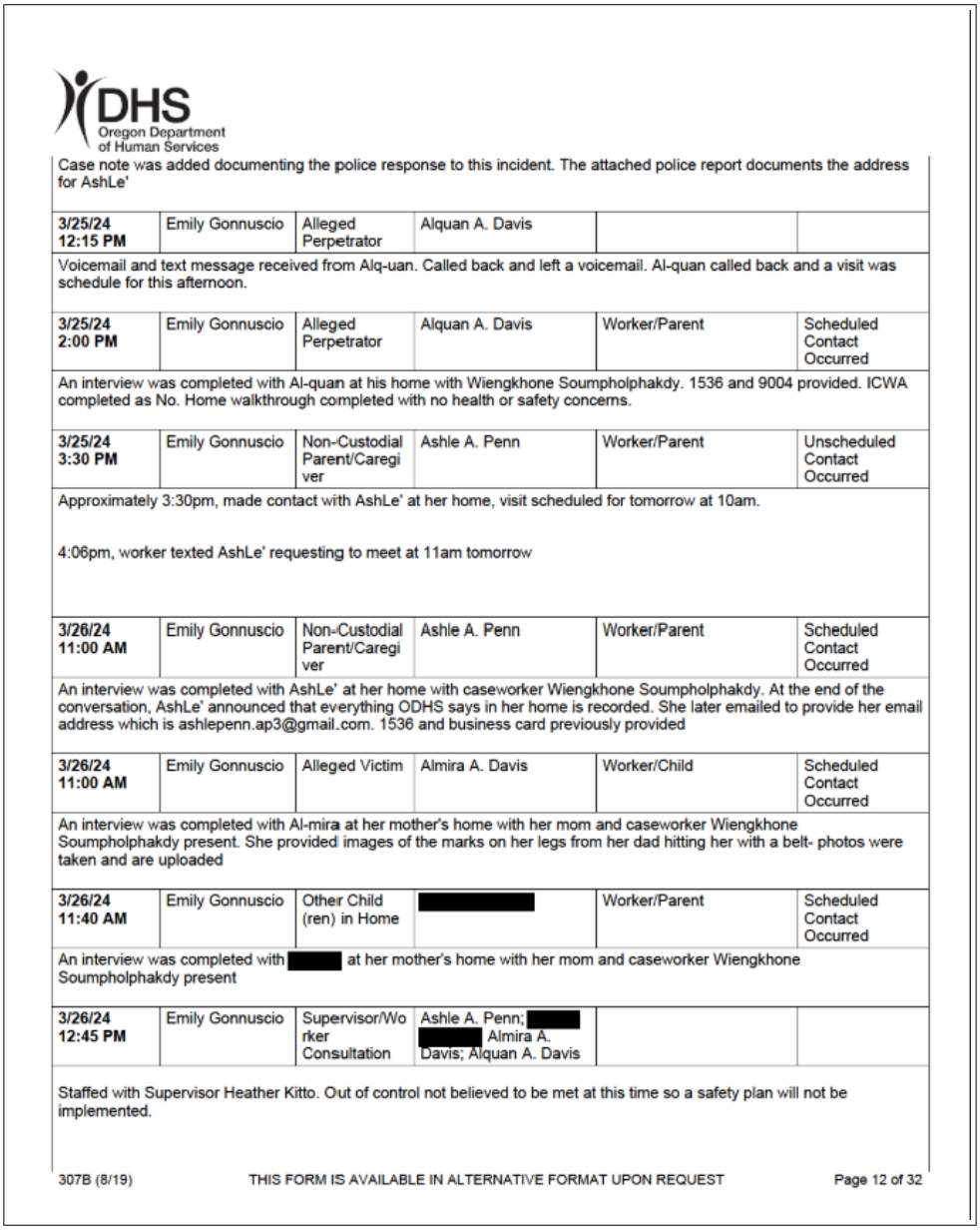
An assertion of Fourth Amendment rights is legally neutral. It is the absence of evidence, not evidence of risk. The agency cannot condition the return of a child on a prospective waiver of constitutional protections unless it has first established a current, non-speculative threat through independent, competent evidence. By converting Mother's assertion of a constitutional right into the sole justification for maintaining custody, ODHS is engaging in unconstitutional conditions and retaliation.

4. The "Cannot Assess" Contradiction

The agency's "cannot assess" position is internally incoherent in four ways, each documented in its own file. First, ODHS previously assessed my home and caregiving—in connection with Al-Mira's very placement with me—and found it satisfactory. Second, it now asserts it was unable to assess my home. Third, it treats that alleged inability as evidence that I am dangerous and lack capacity. Fourth, it treats the prior satisfactory assessment as though it does not exist, without identifying any intervening fact that changed it. Those positions do not reinforce one another; they negate one another.

3/26/24 11:00 AM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Scheduled Contact Occurred
An interview was completed with AshLe' at her home with caseworker Wiengkhone Soumpholphakdy. At the end of the conversation, AshLe' announced that everything ODHS says in her home is recorded. She later emailed to provide her email address which is ashlepenn.ap3@gmail.com. 1536 and business card previously provided					

Figure 17. Evidence that the agency has knowledge that I have not categorically barred the agency from accessing my home. I informed the agency the girls would be willing to go to CARES and coordinated a multi-hour interview in my home of which the agency fails to acknowledge took place - and, directly after Al-mira was removed from her father the first time he was arrested and placed with me. She was enrolled in school, happy and thriving - until the agency removed the no-contact order allowing her to return.



DHS
Oregon Department of Human Services

Case note was added documenting the police response to this incident. The attached police report documents the address for AshLe'

3/25/24 12:15 PM	Emily Gonnuscio	Alleged Perpetrator	Alquan A. Davis		
Voicemail and text message received from Alq-uan. Called back and left a voicemail. Al-quan called back and a visit was schedule for this afternoon.					
3/25/24 2:00 PM	Emily Gonnuscio	Alleged Perpetrator	Alquan A. Davis	Worker/Parent	Scheduled Contact Occurred
An interview was completed with Al-quan at his home with Wiengkhone Soumpholphakdy. 1536 and 9004 provided. ICWA completed as No. Home walkthrough completed with no health or safety concerns.					
3/25/24 3:30 PM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Unscheduled Contact Occurred
Approximately 3:30pm, made contact with AshLe' at her home, visit scheduled for tomorrow at 10am. 4:06pm, worker texted AshLe' requesting to meet at 11am tomorrow					
3/26/24 11:00 AM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Scheduled Contact Occurred
An interview was completed with AshLe' at her home with caseworker Wiengkhone Soumpholphakdy. At the end of the conversation, AshLe' announced that everything ODHS says in her home is recorded. She later emailed to provide her email address which is ashlepenn.ap3@gmail.com. 1536 and business card previously provided					
3/26/24 11:00 AM	Emily Gonnuscio	Alleged Victim	Almira A. Davis	Worker/Child	Scheduled Contact Occurred
An interview was completed with Al-mira at her mother's home with her mom and caseworker Wiengkhone Soumpholphakdy present. She provided images of the marks on her legs from her dad hitting her with a belt- photos were taken and are uploaded					
3/26/24 11:40 AM	Emily Gonnuscio	Other Child (ren) in Home	[redacted]	Worker/Parent	Scheduled Contact Occurred
An interview was completed with [redacted] at her mother's home with her mom and caseworker Wiengkhone Soumpholphakdy present					
3/26/24 12:45 PM	Emily Gonnuscio	Supervisor/Worker Consultation	Ashle A. Penn; [redacted] Almira A. Davis; Alquan A. Davis		
Staffed with Supervisor Heather Kitto. Out of control not believed to be met at this time so a safety plan will not be implemented.					

307B (8/19) THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST Page 12 of 32

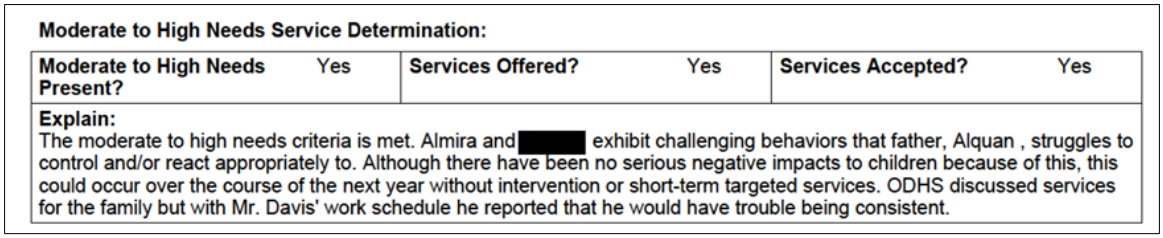
Figure 18. ODHS worker Emily Gonnuscio's own 307B case-note form documenting the March 26, 2024 in-home interview: the interview was "completed with AshLe' at her home," Mother present and cooperating, and Supervisor Heather Kitto's contemporaneous consultation recorded "Out of control not believed to be met at this time so a safety plan will not be implemented." The agency entered and assessed Mother's home and found no safety threat warranting a plan. *(Source: 2024-03-26 ODHS 307B case note, p. 12 of 32.)*

An agency cannot rely on the prior assessment when it helps its narrative, disregard it when it does not, and then treat the manufactured absence of that assessment as proof of danger. If ODHS contends conditions changed, it must identify and prove the intervening facts; it cannot replace that missing proof with the prior assessment's unexplained disappearance from its narrative. Inability to assess is the *absence* of evidence, not evidence of risk.

The burden to establish a present, non-speculative threat of serious harm, and a nexus between my conduct and that harm, rests with the agency. *Dept. of Human Services v. L. E. F.*, 307 Or App 254, 258 (2020); *A. W.*, 276 Or App 276, 278 (2016). Oregon law also favors placement with a fit parent and relatives, ORS 419B.192(2), a preference an alleged evidentiary void cannot displace where the record contains a satisfactory assessment. You cannot remove and withhold my child on a finding of danger while conceding the assessment such a finding requires was never made - even after it has been conducted. For years your agency has had countless opportunities to assess my ability to mother my children and consistently stated that I am a capable mother.

5. Affirmative State-Inflicted Harm and Manufactured De-

The agency's allegation under Allegation B asserts that Mother is 'unwilling or unable to protect the child from father's unsafe behaviors.' This allegation is an inversion of a risk history manufactured entirely by the State's own contradictory actions and cross-county procedural failures.



Moderate to High Needs Service Determination:

Moderate to High Needs Present?	Yes	Services Offered?	Yes	Services Accepted?	Yes

Explain:
The moderate to high needs criteria is met. Almira and [redacted] exhibit challenging behaviors that father, Alquan , struggles to control and/or react appropriately to. Although there have been no serious negative impacts to children because of this, this could occur over the course of the next year without intervention or short-term targeted services. ODHS discussed services for the family but with Mr. Davis' work schedule he reported that he would have trouble being consistent.

Figure 19. Even prior to removing the no contact order after Father's initial arrest in May 2025, the agency documented its awareness of the situation and its escalation. Presently, though, the agency purports that mother fails to protect Al-mira from her father, while also advocating for her placement with him. Father is only dangerous, according to the agency, with regard to Mother's failure to protect, otherwise father has been identified as the safer placement choice despite Mother having nothing to do with the incidents which brought Al-mira into care presently.

A. The State Reintroduced the Danger

In April 2024, it was ODHS that actively moved to lift the no-contact order between Father and A.D., endorsing Father as a 'safe placement.' The physical danger that manifested on September 6, 2025, was a direct, foreseeable result of the State's affirmative endorsement. The State cannot legally bootstrap a danger it reintroduced into the child's life into an allegation of parental unfitness against the non-offending mother.

B. Procedural Extinguishment of Mother's Remedies

When Mother proactively sought to modify the custody order in Washington County in January 2025 to establish permanent protective boundaries, the Washington County Circuit Court declined jurisdiction. The court explicitly asserted that exclusive jurisdiction remained transferred to Multnomah County. Mother was jurisdictionally barred from obtaining a family court remedy due to the state's fractured record.

C. Unlawful Assumption of Jurisdiction

Despite asserting in January 2025 that it lacked power over the matter, Washington County assumed jurisdiction in September 2025 without a lawful, recorded transfer of venue back from Multnomah County under ORS 419B.118. The state blocked Mother's protective efforts in January under a claim of no jurisdiction, then seized the child in September in the same county without curing the defect. The resulting dependency is entirely state-inflicted.

6. The September 2025 Emergency Proceedings Violated Statutory Subject-Matter Jurisdiction Under ORS 419B.118.

Upon Mother filing for a modification of the custody order in January 2025 in Washington County the Washington County Court claimed that they had no jurisdiction due to jurisdiction having been transferred to Multnomah County related to the prior involvement of ODHS with Mother's family. Then in September that same year, without any record that jurisdiction had been transferred back to Washington County as the court stated would be required before hearing any matters with regard to these children, The Washington County Circuit Court assumed jurisdiction.

A juvenile court cannot act if another circuit court retains exclusive jurisdiction over the wardship/family under ORS 419B.118. The record contains no order transferring jurisdiction back from Multnomah County to Washington County before Washington County acted in September 2025. Mother preserves her objection to Washington County's exercise of jurisdiction on that basis. The dispositive defect, developed below, is narrower and does not depend on the transfer question: the court entered orders establishing jurisdiction before

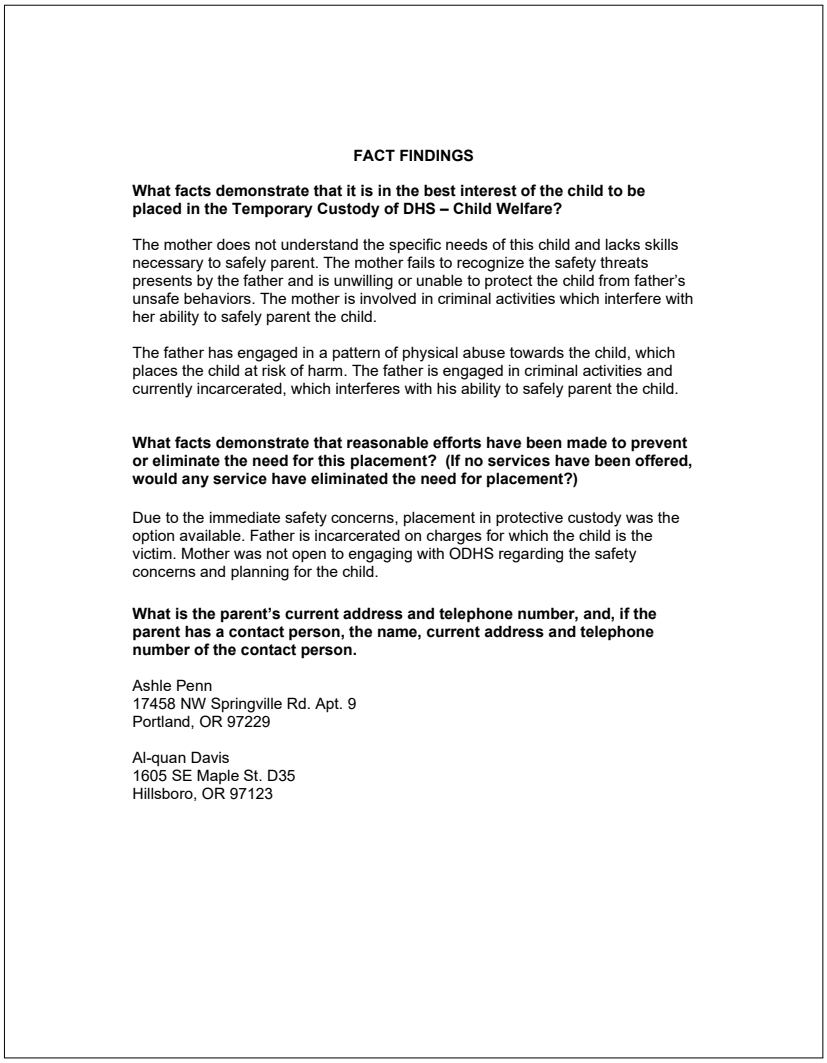
Mother was ever served with summons. *See* ORS 419B.815(1) ("A court may make an order establishing jurisdiction *** only after service of summons.").

7. The Fabrication Record

Each item states the ODHS statement or agency conduct at issue, identifies the source document with pin cite, and identifies the contemporaneous ODHS record, expert report, or Father's own writing that contradicts it. Timecodes reference the October 31, 2025 trial transcript.

A. Fabrication of Reasonable Efforts — The False Statement of Fact by AAG

At the shelter hearing on September 8, 2025, Assistant Attorney General Nicholas Rischiotto represented to the court in their opening statement: Reasonable efforts have been made to prevent the need for removal.



FACT FINDINGS

What facts demonstrate that it is in the best interest of the child to be placed in the Temporary Custody of DHS – Child Welfare?

The mother does not understand the specific needs of this child and lacks skills necessary to safely parent. The mother fails to recognize the safety threats presents by the father and is unwilling or unable to protect the child from father's unsafe behaviors. The mother is involved in criminal activities which interfere with her ability to safely parent the child.

The father has engaged in a pattern of physical abuse towards the child, which places the child at risk of harm. The father is engaged in criminal activities and currently incarcerated, which interferes with his ability to safely parent the child.

What facts demonstrate that reasonable efforts have been made to prevent or eliminate the need for this placement? (If no services have been offered, would any service have eliminated the need for placement?)

Due to the immediate safety concerns, placement in protective custody was the option available. Father is incarcerated on charges for which the child is the victim. Mother was not open to engaging with ODHS regarding the safety concerns and planning for the child.

What is the parent's current address and telephone number, and, if the parent has a contact person, the name, current address and telephone number of the contact person.

Ashle Penn
17458 NW Springville Rd. Apt. 9
Portland, OR 97229

Al-quan Davis
1605 SE Maple St. D35
Hillsboro, OR 97123

Figure 1.

> *Reasonable efforts have **not** been made to prevent the need for removal.*

AAG Nicholas Rischiotto did not say there were any recognized exceptions to the agency's ministerial duty to prevent removal, thereby rendering any preventative efforts as being *excused*. He did not say any emergency relieved the agency of that same duty. He said efforts were made. That is a factual assertion about what the agency did, and it is false on the face of the agency's own exhibit. AAG Wadia would later, in her opening statement offer the same factual assertion that the agency fulfilled preventative efforts obligations.
Contradiction: The Oregon Department of Human Services Protective Custody Report — submitted as State's

Exhibit 1 at the shelter hearing — answers the form field titled **"What facts demonstrate that reasonable efforts have been made to prevent or eliminate the need for this placement? (If no services have been offered, would any service have eliminated the need for placement?)**" with three sentences, in full:[13]

> *Due to the immediate safety concerns, placement in protective custody was the option available. Father is incarcerated on charges for which the child is the victim. Mother was not open to engaging with ODHS regarding the safety concerns and planning for the child.*

Parental non-engagement is not an enumerated basis permitting statutory bypass. Under ORS 419B.171 and the federal counterpart at 42 U.S.C. § 671(a)(15), the agency's duty to make reasonable efforts to prevent removal is relieved only in two circumstances:

1. Case-specific futility finding under ORS 419B.171(3)(b) — the agency must show that "no services would have eliminated the need for protective custody." This is a fact-driven determination about services, not a character judgment about the parent. It requires the agency to show that no available service, plan, or support — including family placement — could have prevented removal.
2. Aggravated-circumstances bypass — narrow enumerated grounds codified in Oregon at ORS 419B.340(5) and federally at 42 U.S.C. § 671(a)(15)(D). These are extreme, categorical predicates such as aggravated abuse, prior termination of parental rights, murder or manslaughter of another child of the parent, and felony assault causing serious bodily injury to the child or a sibling. Each category is a specific factual predicate that must be found and supported.

"Mother was not open to engaging" fits neither. It is not a service, it is not a futility finding, and it is not an aggravated circumstance. It is a description of the agency's failure to make the very engagement effort the statute requires.

The agency did not list a single service offered, attempted, or considered.[14] The narrative does not identify any reasonable efforts contemplated or exhausted. The agency asserts, in a written report, only bypass rationale to the requirement that it try and prevent removal. This report identified the absence of any efforts and states a reason for the absence — immediate danger (it does not acknowledge the mitigating family resource present and available who they would certify within 24 hours as her foster placement; evidencing that the agency didn't even contemplate any alternatives to removal). The agency also did not make the court aware of the statement of self-harm being the basis for *emergency protective custody* that it was required to substantiate before moving into any further basis for its petition that the state assert jurisdiction over Al-mira. The initial protective custody of Al-mira was executed based on a statement the agency does not assert to the court is at issue at the shelter hearing and so therefore never received judicial endorsement for Al-mira's initial emergency removal that, again, was mitigated by family who was present as provided by mother.

i. Any Defense From the Agency That an Emergency Excused Any Preventative Efforts - Fails on Its Own Terms.

As stated in ODHS' fact finding report, the agency will argue the emergency at removal excused any duty to make efforts. That argument does not reach the misrepresentation, and it does not survive the record.

First, the argument does not reach the misrepresentation. AAG Wadia did not tell the court efforts were excused. She told the court efforts were made. A representation that "reasonable efforts have been made" is not made truthful by a later argument that no efforts were required. The two propositions are legally distinct findings under ORS 419B.171(3)(a) and (3)(b). The false statement is the one counsel actually delivered. RPC 3.3(a)(1) is not neutralized by a defense counsel could have argued but did not.

Second, the emergency was the father's conduct, not the mother's. The precipitating incident on September 6, 2025 was an assault by Alquan Davis against Al-mira. Mr. Davis was arrested and incarcerated on charges for which the child is the victim. That emergency was neutralized by law enforcement before the agency exercised protective custody. An emergency created by father's conduct does not excuse the agency from making reasonable efforts to place the child with the fit, non-offending mother. Nothing in ORS 419B.171(3)(b) authorizes preventative efforts bypass on the theory that one parent has committed a crime against the child. The bypass looks at whether any service could have prevented removal — not at whether one parent is unavailable. Father's unavailability made mother the placement question. It did not make protective custody the answer.

See 2025-09-08 – ODHS Protective Custody Report, p. 9, section duplicated in 2025-09-08 – ODHS Fact Findings Report, p. 1.

See Shelter hearing, 9/8/2025, opening statement of AAG Nicholas Rischiotto (transcript pending certification — see gap notes).

ii. The Case-Dispositive Fact — the Maternal Great-Uncle Was Physically Present the Night of Removal.
The agency cannot honestly say no service could have prevented removal, because the service that would have prevented removal was already present at the hospital due to mother's coordination **prior to** the agency's execution of protective custody as demonstrated by agency worker Nicole Bennett's contemporaneous report: At approximately 6:30–7:00 PM on September 6, 2025, maternal great-uncle Eric Taylor arrived at the hospital at mother's request; a second maternal great-uncle, William "Markus" Taylor, was also present. Mother had told the worker she could not get time off work and was sending her uncle in her place. The fabrication incorporated by caseworker here is the certification in writing that Mother was "not open to engaging" while simultaneously hiding the fact that Mother had sent certified relative resources to the hospital to take the child. The AAGs' statements that reasonable efforts had been made to prevent the removal were breaches of their individual Duties of Candor to the Tribunal (Oregon RPC 3.3) for falsely citing the caseworker's investigative fabrication and misrepresenting the agency's actions to the court.

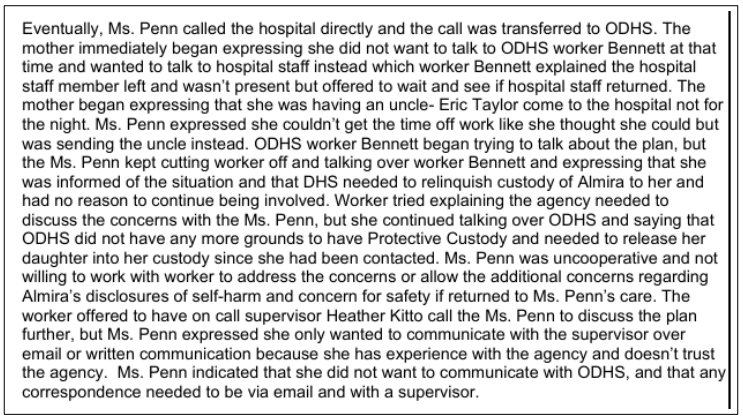

Eventually, Ms. Penn called the hospital directly and the call was transferred to ODHS. The mother immediately began expressing she did not want to talk to ODHS worker Bennett at that time and wanted to talk to hospital staff instead which worker Bennett explained the hospital staff member left and wasn't present but offered to wait and see if hospital staff returned. The mother began expressing that she was having an uncle- Eric Taylor come to the hospital not for the night. Ms. Penn expressed she couldn't get the time off work like she thought she could but was sending the uncle instead. ODHS worker Bennett began trying to talk about the plan, but the Ms. Penn kept cutting worker off and talking over worker Bennett and expressing that she was informed of the situation and that DHS needed to relinquish custody of Almira to her and had no reason to continue being involved. Worker tried explaining the agency needed to discuss the concerns with the Ms. Penn, but she continued talking over ODHS and saying that ODHS did not have any more grounds to have Protective Custody and needed to release her daughter into her custody since she had been contacted. Ms. Penn was uncooperative and not willing to work with worker to address the concerns or allow the additional concerns regarding Almira's disclosures of self-harm and concern for safety if returned to Ms. Penn's care. The worker offered to have on call supervisor Heather Kitto call the Ms. Penn to discuss the plan further, but Ms. Penn expressed she only wanted to communicate with the supervisor over email or written communication because she has experience with the agency and doesn't trust the agency. Ms. Penn indicated that she did not want to communicate with ODHS, and that any correspondence needed to be via email and with a supervisor.

Figure 20. Worker Bennett's contemporaneous narrative: Mother, reached out hours later, sent her uncles in her place. Before this call the agency had no basis to assert "unwillingness." Therefore, because the agency could not, prior to this call assert any unwillingness - it cannot also assert that protective custody was lawfully executed with regard to maintaining Al-mira from Mother before Mother had already positioned family to assist in Al-mira's release to her. The agency was therefore obligated to release custody to mother through the family she sent who would be certified as placement within 24 hours.

15

The agency then designated the placement type as "Relative Resource Care" with the recorded rationale that "placement with a relative is the least intrusive option available." The placement date on the report is 09/06/2025 — the same night the maternal relatives were present at the hospital.[16]
The agency cannot maintain both positions. It cannot represent that no service could have prevented removal, and simultaneously certify that a relative resource caregiver was suitable for placement on the same date. If a relative was certifiable that night for foster placement, a relative was available that night as a family-plan support to prevent removal.

B. Fabrications About Mother's Engagement With the Agency and With Services

See 2025-09-08 Protective Custody Report, pp. 4–5
Record cite: 2025-09-08 – ODHS Protective Custody Report, pp. 9–10, § 11.



NOTES	☑ Case	☐ Provider	Name:	PENN, ASHLE	Number:	798764
					Correction Note: ☐	
Date & Time Occurred:		04/06/2022 01:40 PM		Worker Making Contact:	Jamie Ruiz	
Category:	Case Management			Type:	Plans and Services	
Case Participants & Relationship (if applicable):						
ASHLE A. PENN (Self)						
Face to Face Type (if applicable):				Face to Face Result:		
For Assessment Notes Only:						
Contact Name & Title:						

Note Text

I received a copy of a certificate of completion stating:

AshLe Penn has completed ARAI: Assessing Relationships: Information and Abuse
4 hours of Domestic Violence Training

From: Adams Janell <Janell.Adams@dhsoha.state.or.us>
Sent: Wednesday, April6, 2022 1:41 PM
To: Ruiz Jamie L <Jamie.L.Ruiz@dhsoha.state.or.us>; ashlepenn.ap2@gmail.com
Subject: ARIA Cert

AshLe,

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

CF6790_Notes
05/06/2020
09/15/2022

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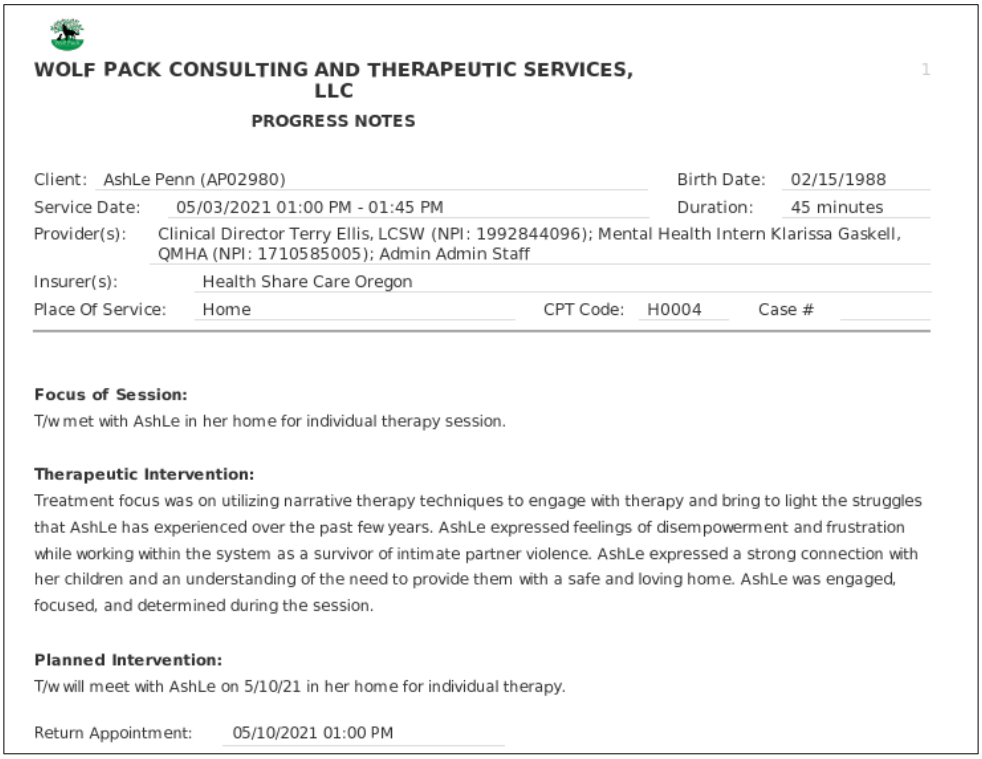
001038

DHS
Oregon Department
of Human Services

Congratulations on completing ARIA. Please see the attached certificate. I look forward to witnessing your progress and wish you a joyful future. Please feel free to contact me if you need support.
Take care

Janelle Adams
Senior DV/SA Advocate
DHS Co-Located DV/SA Advocate

Figure 21. Mother's completion of DV Services as ordered by the court and required by the agency



WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

1

Client: AshLe Penn (AP02980) Birth Date: 02/15/1988

Service Date: 05/03/2021 01:00 PM - 01:45 PM Duration: 45 minutes

Provider(s): Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff

Insurer(s): Health Share Care Oregon

Place Of Service: Home CPT Code: H0004 Case #

Focus of Session:

T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:

Treatment focus was on utilizing narrative therapy techniques to engage with therapy and bring to light the struggles that AshLe has experienced over the past few years. AshLe expressed feelings of disempowerment and frustration while working within the system as a survivor of intimate partner violence. AshLe expressed a strong connection with her children and an understanding of the need to provide them with a safe and loving home. AshLe was engaged, focused, and determined during the session.

Planned Intervention:

T/w will meet with AshLe on 5/10/21 in her home for individual therapy.

Return Appointment: 05/10/2021 01:00 PM

Figure 22. Proof that testimony asserting that Mother had not completed/engaged in *any* services was made with reckless disregard for the truth.



WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

1

Client: AshLe Penn (AP02980) Birth Date: 02/15/1988

Service Date: 05/10/2021 01:00 PM - 01:45 PM Duration: 45 minutes

Provider(s): Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff

Insurer(s): Health Share Care Oregon

Place Of Service: Home CPT Code: H0004 Case #

Focus of Session:

T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:

Treatment focus was on continuing to engage in narrative therapy to establish AshLe's concerns and understanding of her well-being following several traumatic incidents from her previous partner and the child welfare system. T/w and AshLe talked through her past experiences and what lead up to DHS involvement, creating and understanding AshLe's values and concerns for her family. AshLe expressed an understanding of the weight the IPV incidences carry and have put on her and her family. She continues to educate herself on IPV, reading peer reviewed articles that we discussed in session.

Planned Intervention:

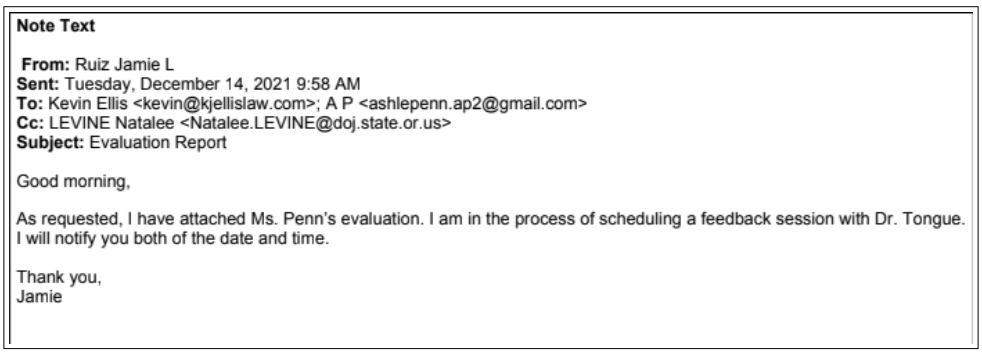
T/w will meet with AshLe on 5/17/21 in her home for individual therapy.

Return Appointment: 05/17/2021 01:00 PM

Figure 23. Wolfpack services was only one of two mental health services Mother engaged with overlapping timeframes - seeing both Cemented Rose and Wolfpack simultaneously and also completing ARIA services as above.

i. Marquand sworn testimony (10/31/2025 Trial):

"Caseworker Marquand testified and included in the written report that Mother did not "engage in any services and actually failed to do any of the services. Those services that were ordered were parenting classes, stable housing, visitation, a neuropsychological, maintaining contact with the agency, engaging in DV counseling, victim services or survivor services, signing releases of information and engaging in the children's services."



Note Text

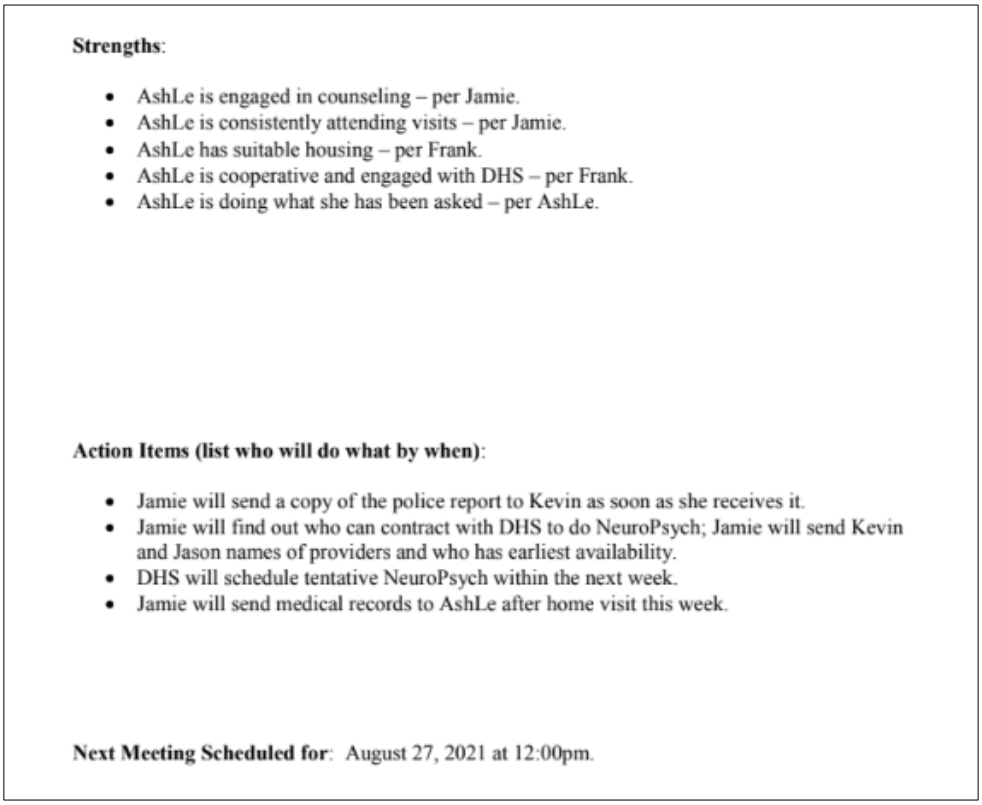
From: Ruiz Jamie L
Sent: Tuesday, December 14, 2021 9:58 AM
To: Kevin Ellis <kevin@kjellislaw.com>; A P <ashlepenn.ap2@gmail.com>
Cc: LEVINE Natalee <Natalee.LEVINE@doj.state.or.us>
Subject: Evaluation Report

Good morning,

As requested, I have attached Ms. Penn's evaluation. I am in the process of scheduling a feedback session with Dr. Tongue. I will notify you both of the date and time.

Thank you,
Jamie

Figure 24. ODHS's own record confirming the agency knew the court-ordered neuropsychological evaluation was complete—contradicting sworn testimony that Mother "did not do" the neuropsychological. *(Source: ODHS case notes.)*



Strengths:

- AshLe is engaged in counseling – per Jamie.
- AshLe is consistently attending visits – per Jamie.
- AshLe has suitable housing – per Frank.
- AshLe is cooperative and engaged with DHS – per Frank.
- AshLe is doing what she has been asked – per AshLe.

Action Items (list who will do what by when):

- Jamie will send a copy of the police report to Kevin as soon as she receives it.
- Jamie will find out who can contract with DHS to do NeuroPsych; Jamie will send Kevin and Jason names of providers and who has earliest availability.
- DHS will schedule tentative NeuroPsych within the next week.
- Jamie will send medical records to AshLe after home visit this week.

Next Meeting Scheduled for: August 27, 2021 at 12:00pm.

Figure 25. ODHS's own note demonstrating that the "no services" testimony is contradicted by the agency's file that Mother actively engaged in counseling. *(Source: 2025-09-08 Fact Findings Report.)*

Contradiction: Dr. Tongue's court-ordered evaluation (Exhibit A) completed 10/30/2021 — a neuropsychological Mother did complete; year-long Lifeworks parenting class in 2018; 17 sessions of DV counseling with Sherri Lynn Blanton, QMHP; DV grant Mother initiated on her own (Milne First Call transcript, p. 2–3); signed ROIs for Morrison and WolfPack (2025-09-08 Fact Findings Report, p. 14); 900+ documented agency contacts across the case history.

ii. **Fact Findings Report:**
"Ashle did not engage in the assessment and has a pattern and history of not engaging with the agency. The following information is taken from past assessment/ agency knowledge and collaterals." *Source:* 2025-09-08 Fact Findings Report, pp. 44, 45, 96.
Contradiction: The same report, at p. 13, records the March 26, 2024 in-home interview with Mother present, cooperative, and permitting the assessment. The report therefore contradicts itself by claiming a pattern of non-engagement while simultaneously documenting Mother's participation in an agency interview.
More importantly, the agency's framing unlawfully equates Mother's refusal to participate in non-court-ordered services, safety planning, or agency questioning with parental deficiency. Mother's decision not to assist the agency's investigation is not merely an exercise of judgment; it is the exercise of her constitutional right to direct the care, custody, and control of her child. Under *Troxel v. Granville*, a fit parent is presumed to act

in the child's best interests, and the State may not invert that presumption by treating the parent's refusal to submit to agency intrusion as evidence of unfitness.
The agency's own admission that the information is drawn from "past assessment/ agency knowledge and collaterals" defeats any claim that the statement is harmless because it predated the March 26, 2024 interview. Once the agency repackaged that historical statement in the 2025 Fact Findings Report and presented it to the court as current evidence of a pattern, the agency was no longer merely preserving history; it was using historical material as an adverse factual allegation. And even if a refusal to engage could ever be treated as relevant to danger, it still would not establish a current danger at the time of the 2025 filing. The agency's theory depends on stale information being treated as present risk, which is exactly the kind of temporal distortion the record does not support.

iii. **2025-10-23 ODHS Report (Crafton/Giles):**
"CW's were not able to make meaningful contact with Ashle' …She has overtly avoided contact with the agency."
Contradiction: Supervisor Heather Kitto reached Mother by text and phone on September 6, 2025 at 5:39–5:40 PM (Exhibit D); Kitto's release text at 5:40 PM: "we can release custody to you" (Exhibit N).

iv. **Fact Findings Report:**
"An attempt was made to contact Ashle via telephone for interview but her current listed number was not operational." (pp. 69, 100.)
Contradiction: Same phone line used successfully by Supervisor Kitto on 9/6/2025 at 5:40 PM and 5:59 PM. Crafton emailed Mother at the same email address on 9/8, 9/9, and 10/1/2025.

v. **2026-02-12 ODHS Report:**
"Mother is choosing not to have any contact with the Agency" (repeated at every field in pp. 9–10).
Contradiction: Your own admissions on the January 28, 2026 and April 28, 2026 recorded calls: "visits have been extremely limited" and "I did ask him to move forward with setting up regular meeting times with you and also regular visitation." The February 2026 Report itself contradicts p. 10 by reporting "Number of Face-to-Face Contacts with Caseworker (last 6 months): 1" at p. 9. But even more than that, the assertion that Mother is choosing not to have any contact with the agency is vastly contradicted by the several calls conducted between mother and yourself, Laurie Hernandez, David Milne and Mother's participation through written filings in court. It is indefensible to assert that I have not engaged the agency when more accurately described, I have not engaged the agency in a manner the agency prefers but I certainly have engaged your agency. I've requested through a number of written emails and recorded calls, for your agency to substantiate the initial emergency protective custody from me and name the conduct of mine at issue that warranted your agency's interference into my home.

C. Fabrications About the Safety Plan

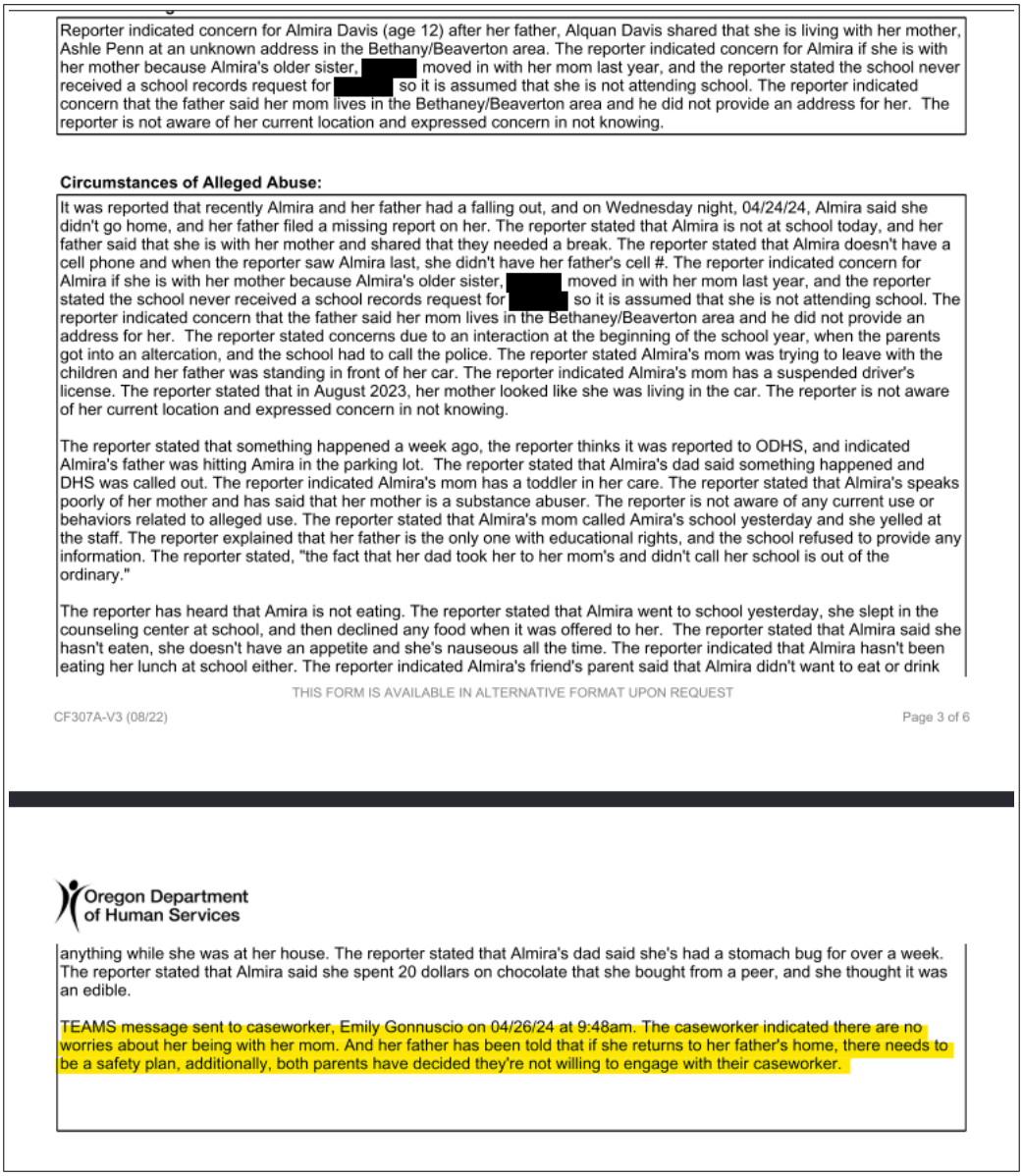
i. Shelter Hearing testimony (9/8/2025):
DHS represented that Mother had "refused a safety plan."
Contradiction: Caseworker Milne confirmed in writing that the first safety plan was transmitted October 1, 2025 — twenty-five days after removal. **A parent cannot refuse what has not been offered.**

ii. Safety Plan / C4R (5/6/2026).
Multiple "Not Met" conditions for return based on "Mother's refusal to engage with ODHS."

iii. Contradiction:
Before September 6, 2025, ODHS conducted a two-hour in-home interview of Mother's children with Mother present and cooperating (Fact Findings Report, p. 13; Exhibit P). Under Oregon law, a parent cannot be compelled to participate in services absent a court order. *SOSCF v. J.C.*, 258 Or App 328, 337 (2013).

D. Fabrications About Mother's Parenting Capacity

i. **Jurisdictional Allegation A (proven 10/31/2025):**
"The mother does not understand the specific needs of this child and lacks skills necessary to safely parent."



Reporter indicated concern for Almira Davis (age 12) after her father, Alquan Davis shared that she is living with her mother, Ashle Penn at an unknown address in the Bethany/Beaverton area. The reporter indicated concern for Almira if she is with her mother because Almira's older sister, [redacted] moved in with her mom last year, and the reporter stated the school never received a school records request for [redacted] so it is assumed that she is not attending school. The reporter indicated concern that the father said her mom lives in the Bethaney/Beaverton area and he did not provide an address for her. The reporter is not aware of her current location and expressed concern in not knowing.

Circumstances of Alleged Abuse:

It was reported that recently Almira and her father had a falling out, and on Wednesday night, 04/24/24, Almira said she didn't go home, and her father filed a missing report on her. The reporter stated that Almira is not at school today, and her father said that she is with her mother and shared that they needed a break. The reporter stated that Almira doesn't have a cell phone and when the reporter saw Almira last, she didn't have her father's cell #. The reporter indicated concern for Almira if she is with her mother because Almira's older sister, [redacted] moved in with her mom last year, and the reporter stated the school never received a school records request for [redacted] so it is assumed that she is not attending school. The reporter indicated concern that the father said her mom lives in the Bethaney/Beaverton area and he did not provide an address for her. The reporter stated concerns due to an interaction at the beginning of the school year, when the parents got into an altercation, and the school had to call the police. The reporter stated Almira's mom was trying to leave with the children and her father was standing in front of her car. The reporter indicated Almira's mom has a suspended driver's license. The reporter stated that in August 2023, her mother looked like she was living in the car. The reporter is not aware of her current location and expressed concern in not knowing.

The reporter stated that something happened a week ago, the reporter thinks it was reported to ODHS, and indicated Almira's father was hitting Amira in the parking lot. The reporter stated that Almira's dad said something happened and DHS was called out. The reporter indicated Almira's mom has a toddler in her care. The reporter stated that Almira's speaks poorly of her mother and has said that her mother is a substance abuser. The reporter is not aware of any current use or behaviors related to alleged use. The reporter stated that Almira's mom called Amira's school yesterday and she yelled at the staff. The reporter explained that her father is the only one with educational rights, and the school refused to provide any information. The reporter stated, "the fact that her dad took her to her mom's and didn't call her school is out of the ordinary."

The reporter has heard that Amira is not eating. The reporter stated that Almira went to school yesterday, she slept in the counseling center at school, and then declined any food when it was offered to her. The reporter stated that Almira said she hasn't eaten, she doesn't have an appetite and she's nauseous all the time. The reporter indicated that Almira hasn't been eating her lunch at school either. The reporter indicated Almira's friend's parent said that Almira didn't want to eat or drink

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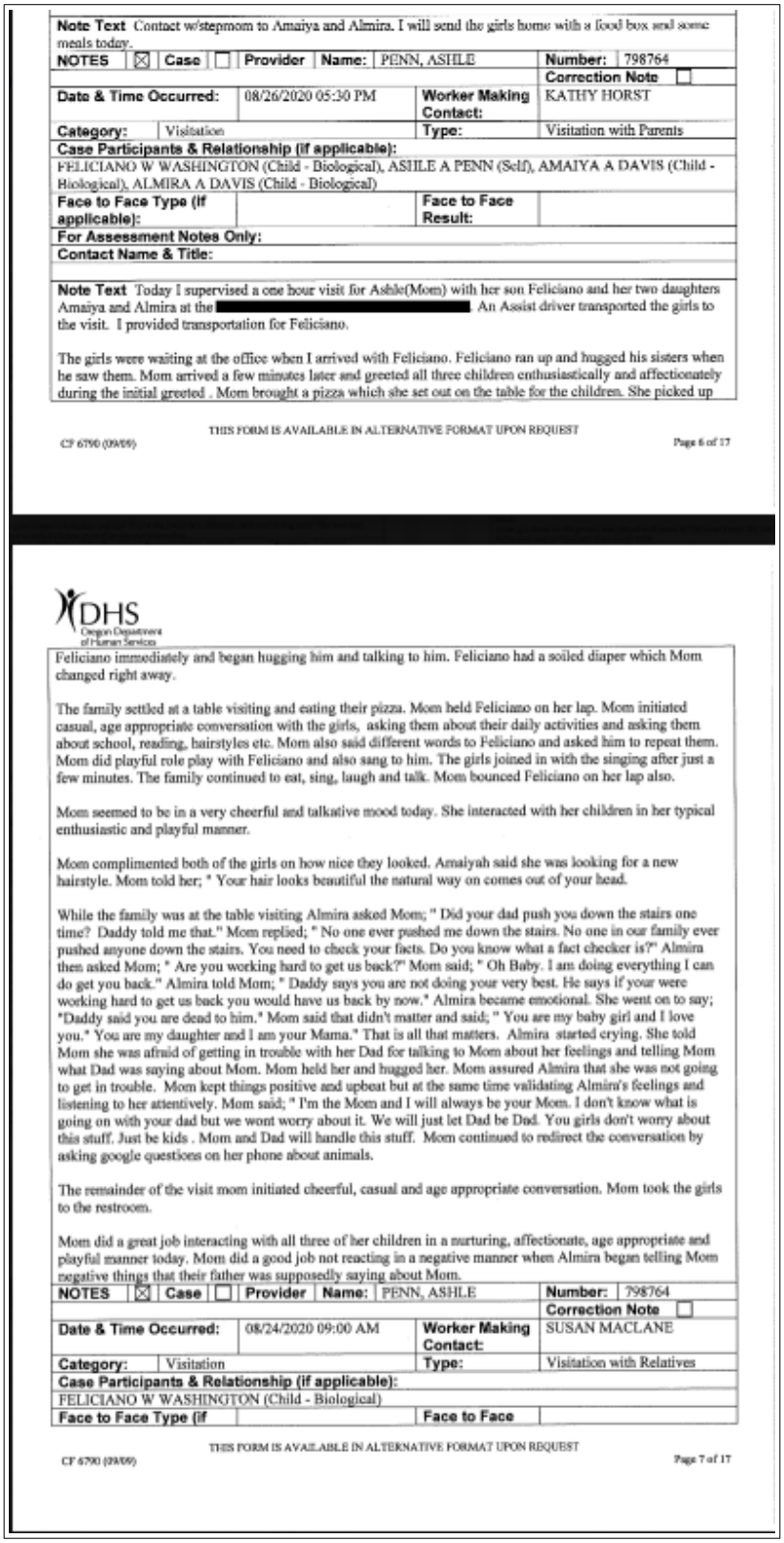
Oregon Department of Human Services

anything while she was at her house. The reporter stated that Almira's dad said she's had a stomach bug for over a week. The reporter stated that Almira said she spent 20 dollars on chocolate that she bought from a peer, and she thought it was an edible.

TEAMS message sent to caseworker, Emily Gonnuscio on 04/26/24 at 9:48am. The caseworker indicated there are no worries about her being with her mom. And her father has been told that if she returns to her father's home, there needs to be a safety plan, additionally, both parents have decided they're not willing to engage with their caseworker.

Figure 26. The one caseworker who assessed Mother's home, Emily Gonnuscio, documented on April 26, 2024 that "there are no worries about [Almira] being with her mom," and that it was Father's home that "needs to be a safety plan." The "substance abuser" assertion appears only as Father's uncorroborated report to an intake screener — consistent with the intake history, which contains no substance-abuse allegation against Mother. *(Source: 2025-09-08 Fact Findings Report.)*

Contradiction — Dr. Tongue's court-ordered evaluation (Exhibit A): "does not merit referral for parent training"; "adequate understanding of child development and parenting practices"; "I do not see any evidence in the profile or in diagnostic interview that Ms. Penn has any difficulty recognizing ordinary stages of child development or that she has any unusual attitudes toward parenting practices and discipline." Under OEC 702–703, a lay caseworker opinion on a clinical question does not overcome a licensed psychologist's controlled psychometric findings.



Note Text Contact w/stepmom to Amaiya and Almira. I will send the girls home with a food box and some meals today.

NOTES	☒	Case	☐	Provider	Name:	PENN, ASHLE	Number:	798764
							Correction Note	☐
Date & Time Occurred:		08/26/2020 05:30 PM			Worker Making Contact:		KATHY HORST	
Category:	Visitation				Type:		Visitation with Parents	

Case Participants & Relationship (if applicable):
FELICIANO W WASHINGTON (Child - Biological), ASHLE A PENN (Self), AMAIYA A DAVIS (Child - Biological), ALMIRA A DAVIS (Child - Biological)

Face to Face Type (if applicable):		Face to Face Result:	

For Assessment Notes Only:

Contact Name & Title:

Note Text Today I supervised a one hour visit for Ashle(Mom) with her son Feliciano and her two daughters Amaiya and Almira at the [redacted]. An Assist driver transported the girls to the visit. I provided transportation for Feliciano.

The girls were waiting at the office when I arrived with Feliciano. Feliciano ran up and hugged his sisters when he saw them. Mom arrived a few minutes later and greeted all three children enthusiastically and affectionately during the initial greeted . Mom brought a pizza which she set out on the table for the children. She picked up

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Feliciano immediately and began hugging him and talking to him. Feliciano had a soiled diaper which Mom changed right away.

The family settled at a table visiting and eating their pizza. Mom held Feliciano on her lap. Mom initiated casual, age appropriate conversation with the girls, asking them about their daily activities and asking them about school, reading, hairstyles etc. Mom also said different words to Feliciano and asked him to repeat them. Mom did playful role play with Feliciano and also sang to him. The girls joined in with the singing after just a few minutes. The family continued to eat, sing, laugh and talk. Mom bounced Feliciano on her lap also.

Mom seemed to be in a very cheerful and talkative mood today. She interacted with her children in her typical enthusiastic and playful manner.

Mom complimented both of the girls on how nice they looked. Amaiyah said she was looking for a new hairstyle. Mom told her; " Your hair looks beautiful the natural way on comes out of your head.

While the family was at the table visiting Almira asked Mom; " Did your dad push you down the stairs one time? Daddy told me that." Mom replied; " No one ever pushed me down the stairs. No one in our family ever pushed anyone down the stairs. You need to check your facts. Do you know what a fact checker is?" Almira then asked Mom; " Are you working hard to get us back?" Mom said; " Oh Baby. I am doing everything I can do get you back." Almira told Mom; " Daddy says you are not doing your very best. He says if your were working hard to get us back you would have us back by now." Almira became emotional. She went on to say; "Daddy said you are dead to him." Mom said that didn't matter and said; " You are my baby girl and I love you." You are my daughter and I am your Mama." That is all that matters. Almira started crying. She told Mom she was afraid of getting in trouble with her Dad for talking to Mom about her feelings and telling Mom what Dad was saying about Mom. Mom held her and hugged her. Mom assured Almira that she was not going to get in trouble. Mom kept things positive and upbeat but at the same time validating Almira's feelings and listening to her attentively. Mom said; " I'm the Mom and I will always be your Mom. I don't know what is going on with your dad but we wont worry about it. We will just let Dad be Dad. You girls don't worry about this stuff. Just be kids . Mom and Dad will handle this stuff. Mom continued to redirect the conversation by asking google questions on her phone about animals.

The remainder of the visit mom initiated cheerful, casual and age appropriate conversation. Mom took the girls to the restroom.

Mom did a great job interacting with all three of her children in a nurturing, affectionate, age appropriate and playful manner today. Mom did a good job not reacting in a negative manner when Almira began telling Mom negative things that their father was supposedly saying about Mom.

NOTES	☒	Case	☐	Provider	Name:	PENN, ASHLE	Number:	798764
							Correction Note	☐
Date & Time Occurred:		08/24/2020 09:00 AM			Worker Making Contact:		SUSAN MACLANE	
Category:	Visitation				Type:		Visitation with Relatives	

Case Participants & Relationship (if applicable):
FELICIANO W WASHINGTON (Child - Biological)

Face to Face Type (if		Face to Face	

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

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Figure 27. 'Mom initiated cheerful, casual, and age appropriate conversation...Mom did a great job of interacting with all three of her children in a nurturing, affectionate, age appropriate and playful manner today. Mom did a good job of not reacting in a negative manner when Almira began telling Mom negative things that their father was supposedly saying about Mom.

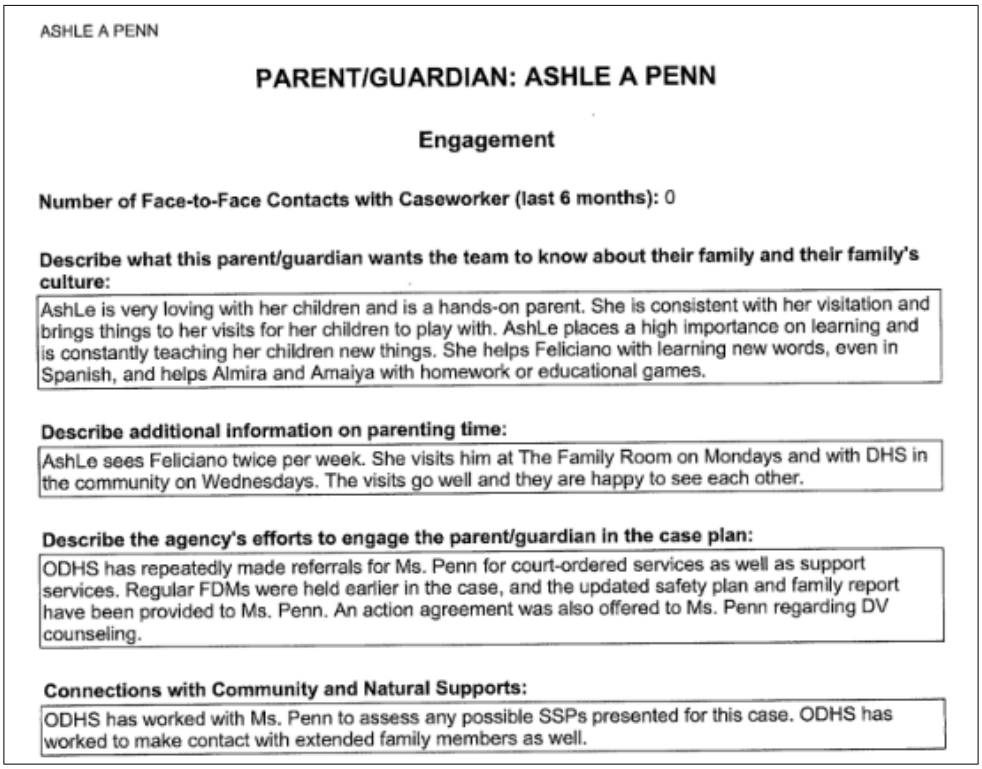
ii. Selective quotation and material misquotation of the Tongue evaluation.

[17] DHS misled the court when it elected to quote only a single interpretive paragraph from Dr. Tongue's MCMI-IV section, taking it out of its context and changing its meaning.

Omitted findings: Full Scale IQ 116 (86th percentile); Processing Speed Index 140 (99.6th percentile — very superior); Verbal Comprehension 110; Working Memory 111; "no deficit in fine motor control, motor speed, language, attention, learning, memory, executive functioning, mental flexibility, set shifting, or planning";

2025-09-08 Fact Findings Report, p. 22, and 2025-10-23 ODHS Report, p. 19

DSM-5 diagnoses limited to sub-clinical "Features of compulsive and paranoid personality"; "I do not recommend participation in substance abuse treatment or mental health counseling, given the lack of evidence for mental disorder"; "I do not see strong evidence that she would be unable to put the needs of her children ahead of her own."



ASHLE A PENN

PARENT/GUARDIAN: ASHLE A PENN

Engagement

Number of Face-to-Face Contacts with Caseworker (last 6 months): 0

Describe what this parent/guardian wants the team to know about their family and their family's culture:

AshLe is very loving with her children and is a hands-on parent. She is consistent with her visitation and brings things to her visits for her children to play with. AshLe places a high importance on learning and is constantly teaching her children new things. She helps Feliciano with learning new words, even in Spanish, and helps Almira and Amaiya with homework or educational games.

Describe additional information on parenting time:

AshLe sees Feliciano twice per week. She visits him at The Family Room on Mondays and with DHS in the community on Wednesdays. The visits go well and they are happy to see each other.

Describe the agency's efforts to engage the parent/guardian in the case plan:

ODHS has repeatedly made referrals for Ms. Penn for court-ordered services as well as support services. Regular FDMs were held earlier in the case, and the updated safety plan and family report have been provided to Ms. Penn. An action agreement was also offered to Ms. Penn regarding DV counseling.

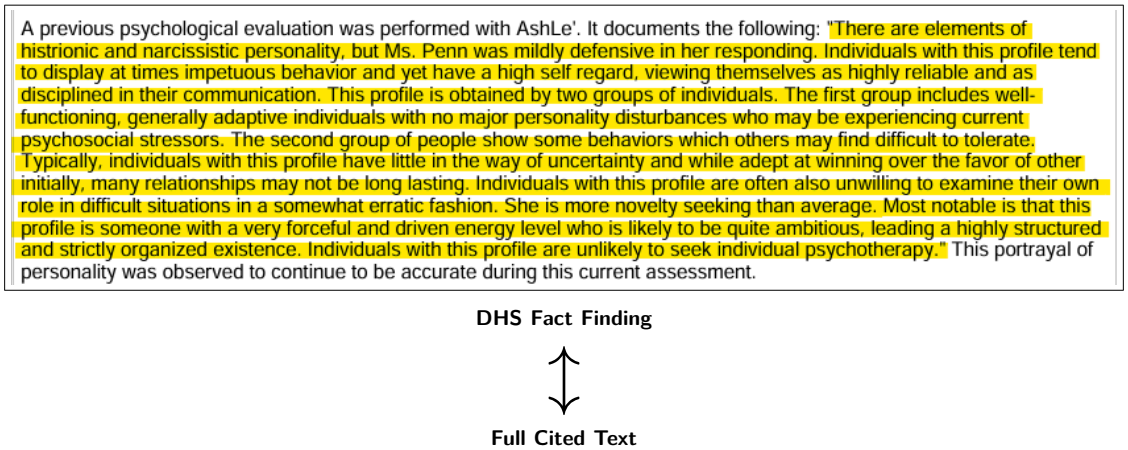
Connections with Community and Natural Supports:

ODHS has worked with Ms. Penn to assess any possible SSPs presented for this case. ODHS has worked to make contact with extended family members as well.

Figure 28. ODHS's own record describing Mother as loving and attentive, contradicting Allegation A. *(Source: ODHS case notes.)*

E. Material misquotation:

ODHS quotes "unwilling to examine their own role in difficult situations in a somewhat erratic fashion." Dr. Tongue's actual words: "unwilling to examine their own role in difficult situations *that they find themselves in which involve prolonged distress and may respond by behaving in* a somewhat erratic fashion." The excised phrase changes the meaning.



A previous psychological evaluation was performed with AshLe'. It documents the following: "There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of other initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations in a somewhat erratic fashion. She is more novelty seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy." This portrayal of personality was observed to continue to be accurate during this current assessment.

DHS Fact Finding

↕

Full Cited Text

Ms. Penn denies any current mental health symptoms, although she reports distress about missing her children. She denies any trauma history and describes normal sleep and appetite. Ms. Penn presented with a normal rate and rhythm of speech and no abnormal motor behavior. She shows good self-care, grooming, and personal hygiene, and a normal range of affect. She displayed some carelessness in her approach to the evaluation at times, taking a longer lunch than was anticipated and arrived somewhat late as a result of traffic. Ms. Penn's measured overall intellect falls in high average range. She shows no deficit in fine motor control or motor speed and high average to superior range functioning in the domain of language. There is no evidence of any deficit in attention span, and she shows no impairment in sequential reasoning. Visual spatial ability also falls well within normal limits. She shows a solidly average range capacity for abstract reasoning and a high average range fund of information. Tests of learning and memory for both visual and verbal material show no deficit. Tests of executive functioning were similar, insofar as there is no evidence of any deficit in her capacity for processing speed, mental flexibility, set shifting, or planning and organization. A measure of personality functioning was answered in a mildly defensive fashion but did not indicate the presence of any clinical diagnoses. She has a personality style characterized by compulsive and paranoid personality traits and is highly mistrustful of others. She appears to display a degree of inflated self-regard. Individuals with her profile are sometimes unwilling to examine their own role in complicated or adverse circumstances in which they find themselves. The narrative of her involvement with Child Welfare was somewhat hard to follow but she has now dismissed several attorneys representing her and has had a fraught relationship with a variety of caseworkers and social service providers. She describes her relationship with her youngest child's father as estranged, at odds with reports from Child Welfare, and claims no intent to reconcile with him but believes they could coparent responsibly as separated individuals. A self-report measure related to parenting and the overall risk of abusive behavior did not yield a valid profile, but specific perusal of item endorsement did not indicate that Ms. Penn is at risk of harming her child.

The record — Neuropsychological Evaluation

The agency's version (top) versus the record (bottom). *At the October 31, 2025 trial, ODHS testified under oath that I "did not engage in **any**" of the services the court ordered. Yet its own Fact Finding (top) quotes the neuropsychological evaluation I completed (bottom)—which it possessed, relied upon, and then denied under oath— while omitting that same evaluation's findings of no deficits, no clinical diagnosis, no need for parenting classes or mental-health treatment, and that "item endorsement did not indicate that Ms. Penn is at risk of harming her child."*[18]

i. Internal contradiction — inactive *vs.* directive.

"Ashle Penn is not playing an active parenting role, therefore does not discipline the children" (Fact Findings Report, pp. 71, 102) *vs.* "The girls are doing exactly what she tells them to do, they undermine Alquan's authority as a parent" (*id.* p. 48). Mother cannot simultaneously be inactive and directive.

F. Fabricated Third-Party Statements

1. **Fabricated statement attributed to the maternal grandmother.** 2025-08-19 Fact Findings Report (Crafton), p. 22: "CW Crafton spoke with Ashle's mother on the phone who was very upset with the agency. She stated that she had been trying to get custody of Ashle's children for years because she is not fit to be a mother but was denied custody by the agency."

   Contradiction: The maternal grandmother denies making this statement and will so attest by signed affidavit [19]. Attributing to a named witness a statement she did not make is the *Beltran*/*Spencer* fabrication vector — invented witness evidence presented to support removal.

G. Fabrications and Internal Contradictions About Mother's Home

2. **"Amusement park fun" *vs.* "prison."** Father reports (Fact Findings Report, p. 70): "amusement park fun." Same document, p. 17: A.D. returned to father's home because she felt Mother's house was a "prison."

3. **"Homeless" *vs.* stable address.** Fact Findings Report, p. 96 ("homeless"); p. 133 (address of record 17548 NW Springville Rd Apt 9); p. 58 ("resides close to the family").

4. **"In hiding" *vs.* "constantly showing up."** Fact Findings Report, pp. 24, 142 (in hiding); p. 143 (constantly showing up).

5. **"Little to no discipline" *vs.* directive.** Fact Findings Report, p. 45 (permissive) *vs.* p. 48 ("girls are doing exactly what she tells them to do").

A historical unwillingness to engage is not sufficient to establish a *current*, non-speculative, serious threat of harm likely to be realized.

PLACEHOLDER

H. Fabrications About Mother's Presence at Father's Home

6. **Fact Findings Report, pp. 47, 72, 74:** Mother "shows up sporadically" and "taking the children without permission." 2025-10-23 ODHS Report, p. 28: "Mother is using their father's home as a punishment."

   Contradiction — Father's own letter to Mother, January 15, 2023 (Exhibit B): "Goal with this meeting is for the two of us to work together and co-parent." Father set behavioral guidelines for Mother's visits: "Be respectful of my apartment. Clean up after yourself"; "Don't bring food when the kids tell you they are hungry… I would prefer that you come over and teach them how to cook"; "Stick to your word…"; "Per our agreement I need you to get the girls on the weekend, NO excuses"; "DO NOT overstay your welcome. Unless you have spoken with me about spending the night, when I tell you it is time to go, please respect that and leave."

   The letter *invites* and *regulates* Mother's presence at Father's home. It does not prohibit it. The agency has never presented this letter to the court.

7. **Internal contradiction:** Father simultaneously described as wanting more contact and as the victim of unauthorized contact. Fact Findings Report, p. 47 ("he wants the girls to see their mom more often because 'she's their mom' ") *vs.* p. 47 ("Ashle will sometimes 'just show up' ").

8. **Independent screener and law-enforcement contradiction.** Fact Findings Report, p. 197: "reporter is not aware of any no contact order etc that would suggest there would be a legal issue with allowing Ashle inside of the home." Same document, p. 181: "police would not forcibly remove the children from her."

I. Fabrication of "Unwilling or Unable to Protect" from Father

9. **Jurisdictional Allegation B (proven 10/31/2025):** "The mother fails to recognize the safety threats presents by the father and is unwilling or unable to protect the child from father's unsafe behaviors."

   Direct causation contradiction: In April 2024, an ODHS worker transported A.D. from grand jury proceedings directly to Mother's home. ODHS itself then took the position that Al-Quan "was a safe placement" and moved to remove the no-contact order — restoring Father's contact with A.D. Approximately five months later, on September 6, 2025, Father was arrested at his home for Criminal Mischief in the First Degree and Strangulation of A.D. **The Department cannot allege that I am "unwilling or unable" to protect A.D. from a father whom the Department itself endorsed as a safe placement.**

J. Fabrication and Concealment of the September 6, 2025 Recantation

10. **The 19-minute reversal without disclosure of the same-day recantation.** Kitto text 5:40 PM: "we can release custody to you." Kitto text 5:59 PM: "suicidal intent if she was made to return to your care." Hospital social worker Leah Sathrum documented the statement "was definitely not what child said initially and worried the change in statements was due to parents' reaction" (2025-10-13 ODHS Report). **You yourself acknowledged the recantation on our January 28, 2026 recorded call** at transcript time 19:18 ("once there was a recantation for that to be considered") and 20:08 ("even given the recantation"). You also said: "we didn't actually look at mom's parental capacity" and "we really don't have any instances of her acting dangerously with regard to the safety of this girl." The recantation appears *nowhere* in the September 8, 2025 shelter petition, the September 8, 2025 shelter order, or the diligent-efforts submissions.

K. Fabrications in the Diligent-Efforts Sworn Submissions

11. **Rylan Duffy *Declaration of Diligent Efforts toward Service* (10/10/2025) and Kayla Miller *Affidavit Regarding Efforts to Serve Parent* (10/28/2025)** omit five known channels of contemporaneous contact:

    (a) Mother's September 8, 2025 1:44 PM written filing received by the Washington County juvenile clerk;

    (b) Clerk Kimberly A. Beck's September 9, 2025 3:09 PM email acknowledging receipt of the filing;

    (c) Mother's September 8, 2025 3:34 PM email to Supervisor Kitto: "I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing";

    (d) Mother's telephonic contact with the juvenile court during the shelter hearing ("Apparently, Mom is called into the court, not to the court hearing");

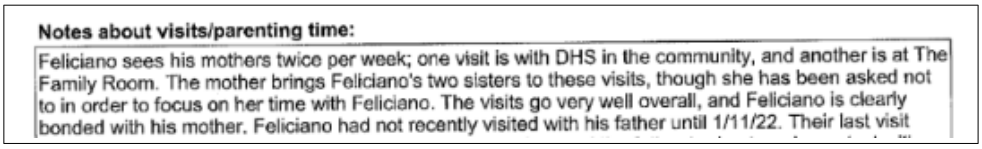
    (e) The text and email channels through which ODHS itself had communicated with Mother on September 6, 7, and 8, 2025.

    Omission of five known channels of contemporaneous contact from sworn diligent-efforts submissions — while representing to a court that a parent could not be located — is judicial deception under *Hardwick*

v. County of Orange, 844 F.3d 1112, 1116–17 (9th Cir. 2017), and warrants review under ORS 162.065 (Perjury) and ORS 162.075 (False Swearing).

L. Fabrications About the Visitation Record

12. **Zero visits.**[20]


Notes about visits/parenting time:

Feliciano sees his mothers twice per week; one visit is with DHS in the community, and another is at The Family Room. The mother brings Feliciano's two sisters to these visits, though she has been asked not to in order to focus on her time with Feliciano. The visits go very well overall, and Feliciano is clearly bonded with his mother. Feliciano had not recently visited with his father until 1/11/22. Their last visit

Figure 29. ODHS's own record of Mother's consistent visitation—contradicting the "zero visits" entries certified to the court. *(Source: ODHS visit notes.)*

Contradiction 1 — no visitation plan ever provided: Penn Supplement, p. 4 ("No visitation plan has been provided to Mother. Zero visits have occurred in ten months."). *Contradiction 2 — contact restricted without court authorization:* Kitto text of September 7, 2025 at 10:50 AM imposed a contact restriction before any court order authorized restriction. No detriment finding under ORS 419B.090(3) has been made. *Contradiction 3:* 2026-06-18 ODHS Report simultaneously states "0" family time visits with Ashle Penn on p. 5 *and* "Mom has visited with Almira twice" on p. 5.

M. Fabrication About the Child's Preference

13. **2026-02-12 ODHS Report, p. 30 (Hopkins 90-day staffing note, 1/26/2026):** "Almira does not want to go to mom — just wants to be with dad."

    Contradiction — Marquand's own sworn testimony 10/31/2025: Timecode 20:14–20:36: "she has also said that she will go live with her mother but wants to do family counseling first before that… but the child is willing and wanting to engage in that service." *Contradiction — A.D. directly:* 2025-09-08 Protective Custody Report, p. 6: "if she couldn't go home to her dad she wanted to go home with her mom."

N. Fabrication About the "Criminal Activities" Allegation

14. **Jurisdictional Allegation C (proven 10/31/2025):** "The mother is involved in criminal activities which interfere with her ability to safely parent the child."

    Marquand's own sworn admission (Timecode 13:35–13:44): "the agency has not had meaningful contact with the mother to fully assess her and get information about her substance use." **The Department obtained jurisdiction on an unassessed inference.** This fails the standard of *Dep't of Human Servs. v. A.W.*, 276 Or App 276, 278 (2016), requiring a "current, non-speculative threat of serious loss or injury that is likely to be realized."

O. Fabrication About the "Refused DV Grant"

15. **Historical assertion carried into current risk narrative:** Mother refused a DV grant.

    Contradiction: Milne First Call transcript, p. 2–3: "I went and initiated that DV grant on my own… It was never offered to me, nor did I refuse it." ODHS records confirm: "Al Quan will not be receiving the DV grant as Ashle has applied for and received one recently" (2025-10-07 ODHS Report, p. 131).

P. Fabrication Regarding Mother's Access to the Case File

16. **Implicit representation that ODHS has adequately served Mother with case information.**

    Contradiction: I submitted a formal records request in May 2025 — five months before removal (2025-10-07 ODHS Report, p. 14). It has not been fulfilled. Judge Rini conditioned my inspection on physical appearance at the Washington County courthouse — exposing me to arrest on an unrelated warrant I am constitutionally contesting. I obtained the case record only when Al-mira's attorney provided her a zip drive that she delivered to me. I learned the pleaded allegations only when you read them to me on a recorded call.

Q. Fabrications About the September 8, 2025 Clerk Rejection and Service

2026-02-23 Review Judgment, p. 3; 2026-06-29 Permanency Judgment, p. 5; 2026-06-18 ODHS Report, p. 8.

17. **Fabrication that my failure to appear at the shelter hearing was voluntary and appropriately treated as default.**

    Contradiction: I filed a timely written special appearance at 1:44 PM on September 8, 2025 — before the shelter hearing concluded. The filing was received by the clerk, not docketed, and rejected the next day by Clerk Beck without citation to any statute or rule. The clerk's office subsequently accepted a substantively identical filing (Initial Rejected Filing, pp. 13, 29). I telephonically contacted the court during the shelter hearing itself, as the transcript records: "Apparently, Mom is called into the court, not to the court hearing." No Webex link was provided to me despite Washington County Presiding Judge Order No. 343 mandating Webex generation for all hearings.

18. **Jurisdiction was taken without service of summons.** "A court may make an order establishing jurisdiction *** only after service of summons. ORS 419B.815(1). The first attempt to serve Mother occurred October 14, 2025 — after the September 8 shelter hearing — and on that same date Judge Rini stated on the record that "mom still has not been served, which AAG Wadia confirmed. Milne acknowledged the service defect on recorded calls of December 8 and December 25, 2025 ("I want to accept service. I have never evaded service.).

R. Emily Marquand's Sworn Testimony (October 31, 2025 Trial)

19. **Sworn witness-tampering allegation delivered without foundation.** *Marquand, Timecodes 6:56–7:05 and 9:56–10:04:* "There is significant concern that the mother did coach the child to recant these statements after the conversation that the mother had with the child via phone… The agency does have concerns that the mother has coached this child. There has been ongoing concerns over the years related to that."

    Contradiction: No agency record contains any evidence — no witness statement, no recording, no independent observation — that Mother coached A.D. Hospital social worker Sathrum's own case note documents the recantation as her contemporaneous observation; her speculative note about "parents' reaction" is not a finding of coaching. Marquand's sworn assertion delivered under oath without foundation, and repeated as "ongoing concerns over the years" without supporting record, is the *Beltran* fabrication vector: a social worker delivering unsupported speculation as sworn fact. The coaching theory is impossible on the agency's own timeline. ODHS recorded at 2:30 PM on September 6, 2025 that hospital staff had raised a concern about Al-mira recanting based on what Mother would say — yet Mother's first contact with the child did not occur until approximately 5:00 PM that day, roughly two and one-half hours later. The agency documented a coaching concern before any communication existed through which Mother could have coached. A concern that predates the only conduct that could have caused it is not evidence of that conduct; it is fabrication.[21]

20. **Sworn testimony contradicted by the same witness thirty seconds later.** *Marquand, Timecode 7:53–8:05:* "the mother did not engage in any services and actually failed to do any of the services." *Marquand, Timecode 12:37–12:41 (same witness, same trial):* "The mother has engaged in those assessments. The mother has, I will say limitedly, has engaged in those assessments."

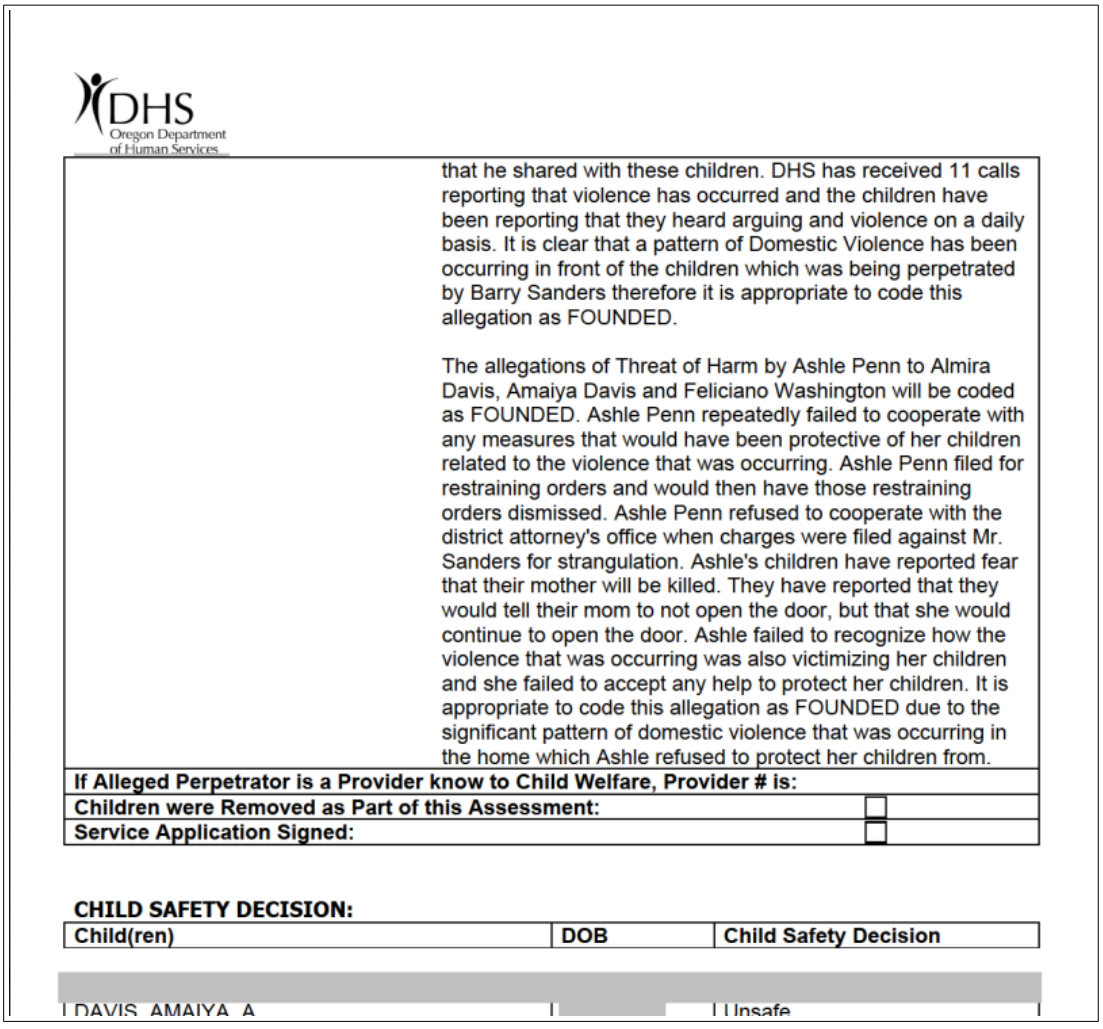
21. **Marquand's testimony that ODHS "motioned to dismiss the case" undermines the "no engagement" claim.** Marquand, Timecode 8:41–8:54: "the agency petitioned or motioned to dismiss the case." Agencies do not move to dismiss where a parent has completed nothing.

22. **False "32 calls" testimony offered as proof of parental deficiency.** Marquand — a caseworker of eight and one-half years, required to review a family's prior child-welfare history — testified that "32 calls" were logged under Mother, "19 of those calls being assigned for assessment," and "20 calls" under Father, "10 of which have been assigned," and presented the count as proof that Mother "does not understand" her child's needs and "lacks skills."[22]. The count proves no such thing, and the agency's own intake history — which Marquand was obligated to read — establishes that it does not. Of the nineteen reports screened in under Mother's case between 2011 and 2025, the **sole** founded allegation against Mother is a single 2019 Threat of Harm — a *failure to protect* her children from the domestic violence of Barry Washington (whom the agency's own report elsewhere miscalls "Barry Sanders"). That finding is six years old, arose from a third party's violence, and issued without the founded-disposition letter that would have allowed Mother to challenge it. The finding is not evidence of abuse or neglect by Mother in any event: the agency's own narrative founds it because Mother "refused to cooperate with the district attorney's office when charges were filed against" her abuser for strangulation, and because she obtained and then dismissed restraining orders against him. It founds a domestic-violence survivor for her abuser's violence and for declining to

Record cite (Mother to confirm exact page): ODHS Report documenting the 2:30 PM September 6, 2025 hospital-staff note; Mother's first contact with the child occurred at approximately 5:00 PM September 6, 2025.
Marquand testimony, Timecodes 7:24–7:31, 11:17–11:31

assist his prosecution. A survivor's response to her own abuser is not a parenting deficiency, and the agency's failure to send the mandatory founded-disposition notice left even this finding insulated from the challenge Mother was entitled to bring. Every other screened-in report closed *unfounded* or *unable to determine*; the present case is *pending*. No substance-abuse allegation appears anywhere in the history — the "substance abuser" label originated as Father's uncorroborated report. Father's own case carries a nearly identical volume (nineteen reports, nine screened in), confirming the count reflects a high-conflict household and the agency's practice of filing every report under the mother's name, not a deficiency in Mother. A tally of contacts is not a finding, and it cannot establish the present, non-speculative danger jurisdiction requires. *A. W.*, 276 Or App at 278.

Agency intake history (CF307A)	Mother (Penn)	Father (Davis)
Total reports, 2011–2025	32	19
Screened in for assessment	19	9
Closed at screening	13	10
Founded against the parent	1 (2019 failure-to-protect)	—
Substance-abuse allegations	0	—



DHS
Oregon Department of Human Services

that he shared with these children. DHS has received 11 calls reporting that violence has occurred and the children have been reporting that they heard arguing and violence on a daily basis. It is clear that a pattern of Domestic Violence has been occurring in front of the children which was being perpetrated by Barry Sanders therefore it is appropriate to code this allegation as FOUNDED.

The allegations of Threat of Harm by Ashle Penn to Almira Davis, Amaiya Davis and Feliciano Washington will be coded as FOUNDED. Ashle Penn repeatedly failed to cooperate with any measures that would have been protective of her children related to the violence that was occurring. Ashle Penn filed for restraining orders and would then have those restraining orders dismissed. Ashle Penn refused to cooperate with the district attorney's office when charges were filed against Mr. Sanders for strangulation. Ashle's children have reported fear that their mother will be killed. They have reported that they would tell their mom to not open the door, but that she would continue to open the door. Ashle failed to recognize how the violence that was occurring was also victimizing her children and she failed to accept any help to protect her children. It is appropriate to code this allegation as FOUNDED due to the significant pattern of domestic violence that was occurring in the home which Ashle refused to protect her children from.

If Alleged Perpetrator is a Provider know to Child Welfare, Provider # is:
Children were Removed as Part of this Assessment: ☐
Service Application Signed: ☐

CHILD SAFETY DECISION:

Child(ren)	DOB	Child Safety Decision
DAVIS, AMAIYA A		Unsafe

Figure 30. The agency's own Fact Findings narrative: the sole Threat-of-Harm finding coded against Mother is a *failure to protect* her children from the "significant pattern of domestic violence" perpetrated by Barry Washington — a past finding arising from a third party's violence, not from any act of Mother's. *(Source: 2025-09-08 Fact Findings Report.)*

Oregon Department of Human Services

Date	Report Type	Report ID	Screening Decision	Case Name	Case ID	Allegations	Disposition	Founded Perpetrators
7/31/2025	CPS-Familial	3906249	Assign	Davis, Alquan A	1007213	Physical Abuse	Pending	
7/31/2025	CPS-Familial	3905973	Assign	Penn, Ashle A	798764	Neglect	Pending	
5/28/2025	CPS-Familial	3885167	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
3/10/2025	CPS-Familial	3852024	Assign	Penn, Ashle A	798764	Physical Abuse, Sexual Abuse	Unfounded	
3/4/2025	CPS-Familial	3849650	Assign	Penn, Ashle A	798764	Physical Abuse, Sexual Abuse	Unfounded	
2/26/2025	CPS-Familial	3847161	Closed at Screening	Penn, Ashle A	798764	N/A	N/A	
11/5/2024	CPS-Familial	3807141	Closed at Screening	Penn, Ashle A	798764	N/A	N/A	
9/19/2024	CPS-Familial	3789159	Assign	Penn, Ashle A	798764	Neglect	Unfounded	
6/4/2024	CPS-Familial	3754797	Closed at Screening	Penn, Ashle A	798764	N/A	N/A	
4/26/2024	CPS-Familial	3739543	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
4/25/2024	CPS-Familial	3739063	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
3/26/2024	CPS-Familial	3727696	Assign	Davis, Alquan A	1007213	Neglect, Physical Abuse	Founded	Alquan A. Davis
3/22/2024	CPS-Familial	3726396	Assign	Davis, Alquan A	1007213	Neglect, Physical Abuse	Founded	Alquan A. Davis
3/21/2024	CPS-Familial	3726123	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
9/13/2023	CPS-Familial	3657579	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
9/8/2023	CPS-Familial	3655874	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
9/2/2023	CPS-Familial	3654333	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

CF307A-V3 (08/22) Page 5 of 8

Figure 31. The agency's own CPS intake table (form CF307A). Each report shows its Screening Decision and Case Name — reports under "Penn, Ashle" are Mother's; those under "Davis, Alquan" are Father's. *(Source: 2025-09-08 Fact Findings Report, CF307A.)*

Oregon Department of Human Services

7/31/2023	CPS-Familial	3643998	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
5/19/2023	CPS-Familial	3621126	Assign	Davis, Alquan A	1007213	Physical Abuse	Unfounded	
4/20/2023	CPS-Familial	3609850	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
3/24/2023	CPS-Familial	3600170	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
2/21/2023	CPS-Familial	3588660	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
2/10/2023	CPS-Familial	3585445	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
1/4/2023	CPS-Familial	3570704	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
12/15/2022	CPS-Familial	3566430	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
11/20/2022	CPS-Familial	3559565	Closed at Screening	Lee, Devita L	375669	N/A	N/A	
1/31/2022	CPS-Familial	3459960	Closed at Screening	Penn, Ashle A	798764	Neglect, Threat of Harm	N/A	
10/19/2021	CPS-Familial	3429773	Assign	Penn, Ashle A	798764	Physical Abuse, Threat of Harm	Unfounded	
10/11/2021	CPS-Familial	3427006	Assign	Penn, Ashle A	798764	Physical Abuse, Threat of Harm	Unfounded	
10/7/2021	CPS-Familial	3426221	Closed at Screening	Davis, Alquan A	1007213	Physical Abuse	N/A	
9/17/2020	CPS-Familial	3313000	Assign	Penn, Ashle A	798764	Neglect	Unfounded	
3/20/2020	CPS-Familial	3268321	Closed at Screening	Lee, Devita L	375669	Threat of Harm	N/A	
1/27/2020	CPS-Familial	3250202	Assign	Penn, Ashle A	798764	Threat of Harm	Founded	Barry Washington, Ashle A. Penn
1/15/2020	CPS-	3245552	Closed at	Penn, Ashle	798764	Threat of	N/A	

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

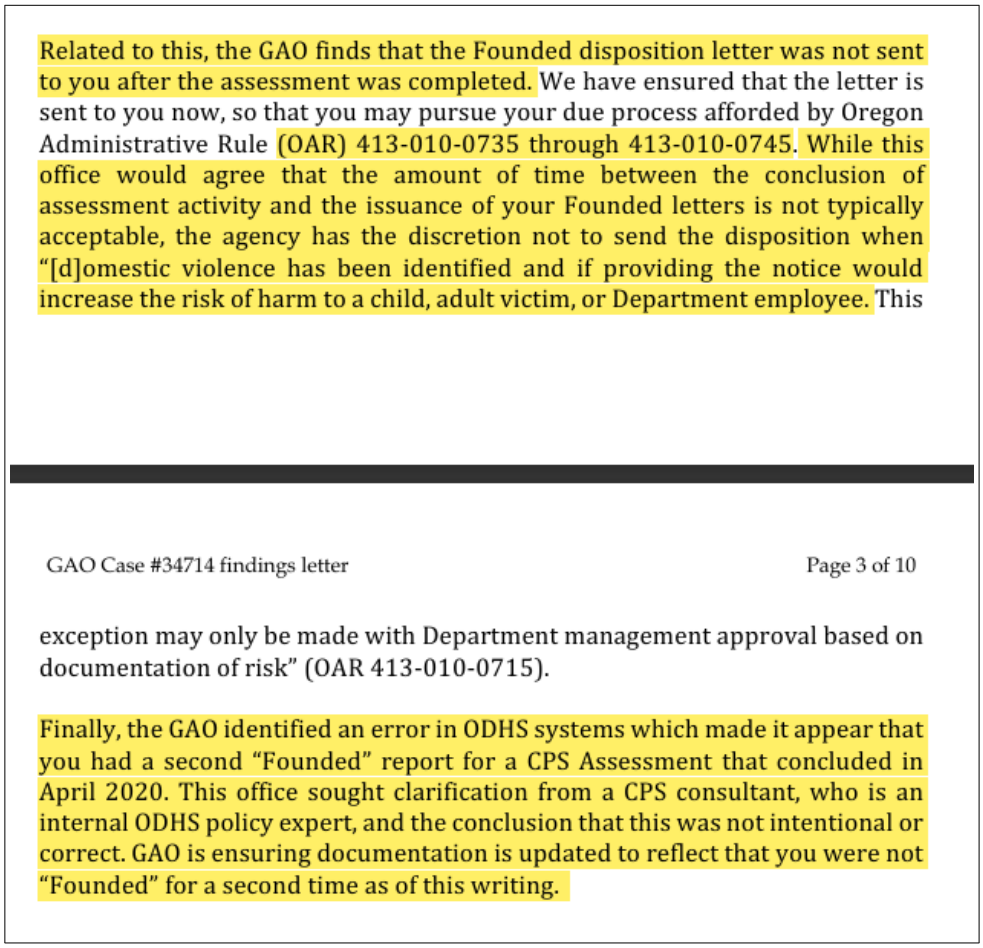
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Figure 32. Continuation of the CF307A intake table: the founded dispositions cluster in 2019 and name Barry Washington; the remaining assessments close unfounded or unable to determine. *(Source: 2025-09-08 Fact Findings Report, CF307A.)*

23. **False "refused to pick up the child" testimony.** Marquand testified that Mother "refused to pick this child up from the hospital." The agency's own Protective Custody Report records the opposite: Mother "was finally able to be reached at 4:31pm and indicated that she was in the community and couldn't get to the hospital except by bus and that would be several hours," that she "couldn't get the time off work like she thought she could *but was sending the uncle instead*," and that worker Bennett "attempted to make plans to meet with and transport Ashle to her daughter." The uncle Mother sent was certified by the agency as the child's relative placement within twenty-four hours. Mother did not refuse; she arranged the relative resource the agency then approved. The agency omitted each of these facts from its testimony to the court. *See* Protective Custody Report figure, below.

24. **Inaccurate sworn testimony about Mother's warrants, confirming the absence of firsthand knowledge.** Marquand testified that Mother "failed to appear to her hearing on June 23 of 2025 for the theft of the first degree but there was no warrant issued in my understanding for that case," attributing the active warrant instead to a separate "possession of meth and theft" charge. The law-enforcement record is otherwise: a single felony failure-to-appear warrant issued on the theft-in-the-first-degree and unlawful-possession-of-methamphetamine charges together. Hillsboro Police Dept. GO 2025-17657. Marquand's

"in my understanding" qualifier, and her misdescription of the warrants, confirm she testified from second-hand paperwork she had not accurately reviewed — the same absence of personal knowledge, OEC 602, that infects her testimony throughout.



Related to this, the GAO finds that the Founded disposition letter was not sent to you after the assessment was completed. We have ensured that the letter is sent to you now, so that you may pursue your due process afforded by Oregon Administrative Rule (OAR) 413-010-0735 through 413-010-0745. While this office would agree that the amount of time between the conclusion of assessment activity and the issuance of your Founded letters is not typically acceptable, the agency has the discretion not to send the disposition when "[d]omestic violence has been identified and if providing the notice would increase the risk of harm to a child, adult victim, or Department employee. This

GAO Case #34714 findings letter Page 3 of 10

exception may only be made with Department management approval based on documentation of risk" (OAR 413-010-0715).

Finally, the GAO identified an error in ODHS systems which made it appear that you had a second "Founded" report for a CPS Assessment that concluded in April 2020. This office sought clarification from a CPS consultant, who is an internal ODHS policy expert, and the conclusion that this was not intentional or correct. GAO is ensuring documentation is updated to reflect that you were not "Founded" for a second time as of this writing.

Figure 33. Governor's Advocacy Office (#34714): no founded-disposition letter against Mother could be located. *(Source: GAO correspondence.)*

25. **Sworn fabrication — the 20 hotline calls / 10 assessments regarding Father's case since 2021.** Marquand, Timecode 11:17–11:31. ODHS did not open a dependency case on Father until the September 6, 2025 assault. The agency's own failure to open a case is not Mother's failure to protect.

26. **Sworn fabrication — blaming Mother for not modifying a custody order she was jurisdictionally barred from modifying.** Marquand, Timecode 12:59–13:04. Mother did attempt to modify custody after the April 2024 arraignment; the Washington County court declined jurisdiction on jurisdictional grounds unrelated to Mother.

27. **Sworn fabrication contradicted by A.D.'s own recorded preference.** Marquand, Timecode 20:14–20:36 (see Item 22 above for the direct contradiction).

S. Judge Rini's Ordered Services Contradict Dr. Tongue's Court-Ordered Expert Evaluation

28. **Dispositional order requiring Mother to "participate in parent education classes."** Judge Rini's disposition order, Timecode 27:29–27:35.

    Contradiction — Dr. Tongue's court-ordered evaluation, Recommendation 2: "Ms. Penn, in my opinion, does not merit referral for parent training. She seems to have an adequate understanding of child development and parenting practices which would likely not be improved by attending the typical parenting class." Ordering redundant, unnecessary services in direct contradiction of the agency's expert violates ORS 419B.343(1)(a), which requires ordered services to be "rationally related to the jurisdictional findings." Under OEC 702–703, a social-worker lay opinion cannot substitute for a psychologist's controlled clinical testing.

29. **Judge Rini's ruling, Timecode 16:33–16:52:** "Ms. Penn has attempted to file habeas corpus motions to get him out of custody."

    Contradiction: The judge cited no source. The actual predicate: Washington County Sheriff's deputies entered Mother's home based on an administrative order signed by a Washington County Community Corrections officer — not a judicial warrant. Deputies did not have consent to enter. The State could not produce the document at the time of arrest. The State produced an "order of arrest" only 73 days later, signed by a person laid off shortly thereafter and whom the State refused to call as a witness. The habeas filing raised the Fourth Amendment violation of Mother's own home. To describe it as an attempt to "get him out of custody" strips the Fourth Amendment predicate and imports an association-based innuendo.

    Independent corroboration of the retaliatory posture — Washington County HR (Exhibit K): September 19, 2025 fee-waiver denial letter from Aaron Mendes cites — as Ground (c) — the County's belief that Mother intends to "provide legal assistance to the «convicted» perpetrator of the crimes she is the victim of." That admission on the face of the County's own denial confirms that Mother's constitutionally protected legal activity is being used against her across at least two county departments.

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8. Neither Absolute Nor Qualified Immunity Shields This Conduct

The Ninth Circuit forecloses *both* forms of immunity for the conduct documented here. **Absolute immunity** does not apply: social workers may enjoy it when performing functions "critical to the judicial process itself," but they are "not entitled to absolute immunity from claims that they fabricated evidence during an investigation or made false statements in a dependency petition," because such acts "aren't similar to discretionary decisions about whether to prosecute." *Beltran v. Santa Clara County*, 514 F.3d 906, 908 (9th Cir. 2008) (en banc).

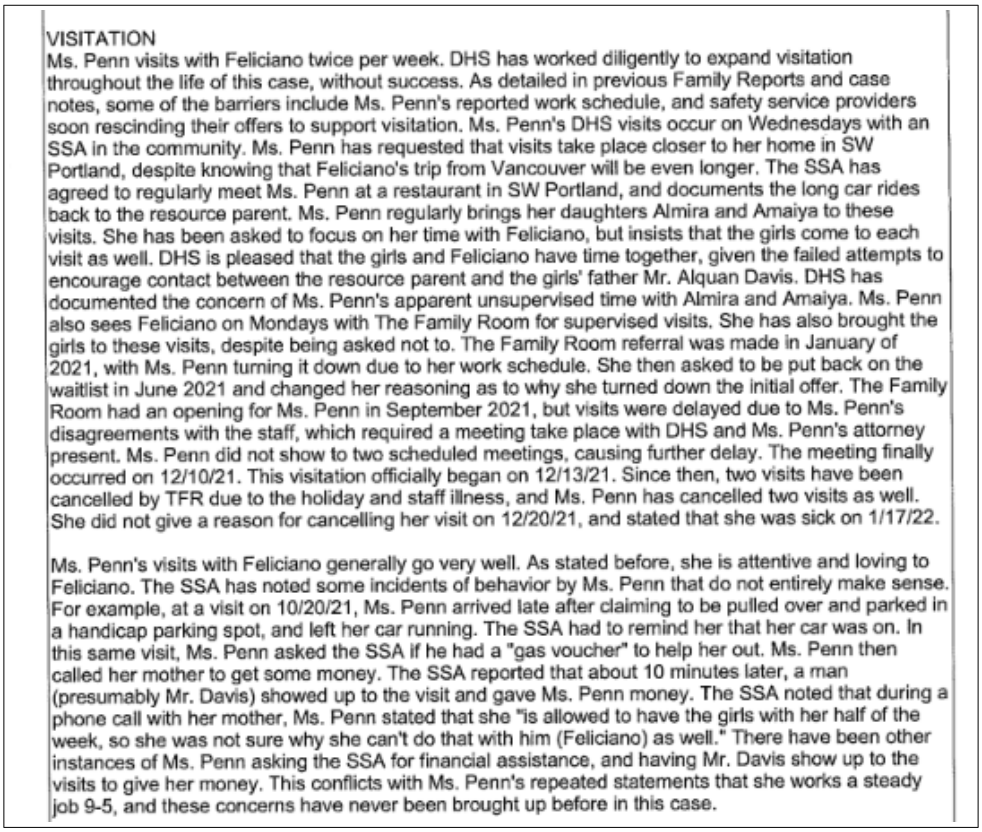
Qualified immunity does not apply either, because the right at issue was clearly established years before this case. Sitting en banc in *Devereaux v. Abbey*, 263 F.3d 1070, 1074–75 (9th Cir. 2001), the court held that "there is a clearly established constitutional due process right not to be subjected to criminal charges on the basis of false evidence that was deliberately fabricated by the government," adding that "[a]nyone who acts on behalf of the government should know that a person has a constitutional right not to be 'framed.'" The court extended that rule to the civil child-welfare context in *Costanich v. Department of Social & Health Services*, 627 F.3d 1101, 1108 (9th Cir. 2010), holding that "deliberately fabricating evidence in civil child abuse proceedings violates the Due Process [Clause] of the Fourteenth Amendment," and that the right is "sufficiently obvious" to deny a social worker qualified immunity. Deliberate fabrication may be proven by circumstantial evidence. *Spencer v. Krause*, 857 F.3d 789 (9th Cir. 2017).

Witness immunity does not shield this conduct from correction. Absolute immunity for testimony, *Briscoe v. LaHue*, 460 U.S. 325, 341–46 (1983), limits *civil damages* against a witness for the act of testifying; it does not reach the fabrication of the written reports on which the testimony rested, or the investigative conduct that produced them. *Beltran*, 514 F.3d at 908 (social workers "are not entitled to absolute immunity from claims that they fabricated evidence during an investigation or made false statements in a dependency petition"). Nor does witness immunity bar the corrections this letter requires: it does not immunize a caseworker from referral for Perjury or False Swearing, ORS 162.065; ORS 162.075; it does not bar professional discipline; and it does not preserve a judgment procured by false testimony, which the court retains authority to set aside. The witness stand is not a sanctuary for the reports the agency's own files disprove.

The Pattern Extends Beyond ODHS

The fabrication and retaliation pattern documented above is not confined to ODHS. Washington County Human Resources (Exhibit K) has denied fee waivers on the basis of Mother's constitutionally protected legal activity. Washington County District Attorney (Exhibit L) has, on appeal, adopted the same view. Judge Rini has imported that view onto the record of the dependency proceeding through the habeas mischaracterization above. A supervisor with knowledge of a cross-department retaliation pattern cannot claim, in good faith, that the record reflects a good-faith mistake.

The record above is not a series of isolated errors. The agency's diligent-efforts certification omitted mother's still pending objection to referee jurisdiction. Without the court having identified lawful basis for rejecting Mother's submission, the court clerk had no authority to reject it. The agency's "no relative available" posture at removal is refuted by the agency's own certification of the maternal relative provided by mother, prior to protective custody being taken, as placement within twenty-four hours. The agency's "unwilling to engage" characterization is refuted by the agency's own notes recording mother's arrangement of this family presence and her direction of communication to a supervisor in writing. The agency's coaching allegation is temporally impossible on the agency's own contact log. The agency's finding that mother "does not understand" her child's needs was rendered by a witness who is not clinically credentialed to make that finding and who ignored a licensed neuropsychologist's contrary evaluation of the same capacity while claiming the very record quoted and mischaracterized, didn't exist. The agency restricted the child's disclosure to her mother, and suspended mother's contact with her child, without a court order authorizing either restriction. **The agency's shelter presentation substituted 285 pages of historical case material, or material directly related to father's incident which caused Al-mira's entry into care, for the present-danger predicate ORS 419B.180 requires.** Each defect is documented in le. Amelioration and restorative actions are, at this juncture not discretionary.



VISITATION
Ms. Penn visits with Feliciano twice per week. DHS has worked diligently to expand visitation throughout the life of this case, without success. As detailed in previous Family Reports and case notes, some of the barriers include Ms. Penn's reported work schedule, and safety service providers soon rescinding their offers to support visitation. Ms. Penn's DHS visits occur on Wednesdays with an SSA in the community. Ms. Penn has requested that visits take place closer to her home in SW Portland, despite knowing that Feliciano's trip from Vancouver will be even longer. The SSA has agreed to regularly meet Ms. Penn at a restaurant in SW Portland, and documents the long car rides back to the resource parent. Ms. Penn regularly brings her daughters Almira and Amaiya to these visits. She has been asked to focus on her time with Feliciano, but insists that the girls come to each visit as well. DHS is pleased that the girls and Feliciano have time together, given the failed attempts to encourage contact between the resource parent and the girls' father Mr. Alquan Davis. DHS has documented the concern of Ms. Penn's apparent unsupervised time with Almira and Amaiya. Ms. Penn also sees Feliciano on Mondays with The Family Room for supervised visits. She has also brought the girls to these visits, despite being asked not to. The Family Room referral was made in January of 2021, with Ms. Penn turning it down due to her work schedule. She then asked to be put back on the waitlist in June 2021 and changed her reasoning as to why she turned down the initial offer. The Family Room had an opening for Ms. Penn in September 2021, but visits were delayed due to Ms. Penn's disagreements with the staff, which required a meeting take place with DHS and Ms. Penn's attorney present. Ms. Penn did not show to two scheduled meetings, causing further delay. The meeting finally occurred on 12/10/21. This visitation officially began on 12/13/21. Since then, two visits have been cancelled by TFR due to the holiday and staff illness, and Ms. Penn has cancelled two visits as well. She did not give a reason for cancelling her visit on 12/20/21, and stated that she was sick on 1/17/22.

Ms. Penn's visits with Feliciano generally go very well. As stated before, she is attentive and loving to Feliciano. The SSA has noted some incidents of behavior by Ms. Penn that do not entirely make sense. For example, at a visit on 10/20/21, Ms. Penn arrived late after claiming to be pulled over and parked in a handicap parking spot, and left her car running. The SSA had to remind her that her car was on. In this same visit, Ms. Penn asked the SSA if he had a "gas voucher" to help her out. Ms. Penn then called her mother to get some money. The SSA reported that about 10 minutes later, a man (presumably Mr. Davis) showed up to the visit and gave Ms. Penn money. The SSA noted that during a phone call with her mother, Ms. Penn stated that she "is allowed to have the girls with her half of the week, so she was not sure why she can't do that with him (Feliciano) as well." There have been other instances of Ms. Penn asking the SSA for financial assistance, and having Mr. Davis show up to the visits to give her money. This conflicts with Ms. Penn's repeated statements that she works a steady job 9-5, and these concerns have never been brought up before in this case.

Figure 34. ODHS's own note that visits went well—contradicting the "zero visits" entries in the judgments.

23

What Your Commitment Now Requires

Consistent with your January 28, 2026 recorded standard, I request that within **seventy-two (72) hours** of receipt of this letter — i.e., before the scheduled CRB hearing — you:

1. Review Exhibits A through S and this case's full record;
2. Produce the October 31, 2025 trial transcript in full for internal review;
3. Handle the false statements identified above with the responsible employees, as you said you would;
4. Notify the court, as you said you would;
5. Refer Rylan Duffy, Kayla Miller, and Emily Marquand to the Oregon Department of Justice, Criminal Justice Division, for review under ORS 162.065 (Perjury) and ORS 162.075 (False Swearing);

ODHS visit notes

6. Correct the agency records that state I completed no services and that misstate my custody history;
7. Cause ODHS to return to the court and correct the false information it presented — including the recantation of the September 6, 2025 self-harm attribution, the actual date of the safety-plan offer, the omitted contact channels, the full Tongue evaluation, and Al-mira's own statement to worker Bennett;
8. Refer the systemic pattern documented above to the Oregon Foster Care Ombudsperson;
9. Consider and, if in agreement, execute the Proposed Stipulation to Vacate attached as Appendix A, which offers ODHS a mutually agreed procedural path forward that does not require formal motion practice and does not require the agency to litigate what its own records establish; and
10. Respond to me in writing stating the action you have taken.

Preservation and Litigation Hold
This letter and its enclosures are preserved. Your response — or your inaction — will become part of the record in this matter. You are directed to preserve all documentation, communications, records, transcripts, evidence, and electronically stored information related to this matter through the resolution of this and any related civil action. Spoliation of this material will support adverse-inference instructions, sanctions, and independent tort liability. This letter supplements the tort claim notice and litigation-hold demand previously served.

Reservation of Rights
I reserve all rights and remedies. Nothing in this letter constitutes a general appearance in Case No. 25JU04261 or a waiver of any jurisdictional objection.

/s/ 

AshLe' Penn
17548 NW Springville Rd #9, Portland, OR 97229
424.242.3374 | ashlepenn.ap3@gmail.com

APPENDIX A

PROPOSED STIPULATION TO VACATE ORDERS AND CORRECT THE RECORD

Offered Without Prejudice for the Purpose of Compromise and Correction Under Faulkner Recorded Standard of January 28, 2026

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY, JUVENILE DEPARTMENT

In the Matter of AL-MIRA AMIRA JAZMINE DAVIS, a Child.
Case No. 25JU04261

JOINT STIPULATION TO VACATE ORDERS AND CORRECT THE RECORD
(ORS 419B.923; ORS 419B.803(1)(a); OEC 801(4)(b)(D))

Recitals

A. The parties to this stipulation are AshLe' Antoinette Penn ("Mother"), by and through her signature Without Prejudice, and the Oregon Department of Human Services — Child Welfare ("ODHS"), by and through its District 16 Interim Manager Sonya Faulkner and its counsel of record.

B. On January 28, 2026, on a recorded call, District 16 Interim Manager Sonya Faulkner stated: "If I were to find any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the court."

C. Mother has delivered to Faulkner a formal record of the fabrications, material omissions, and internal contradictions identified in the accompanying letter, together with the October 31, 2025 jurisdictional trial transcript, the Neuropsychological Evaluation of Christopher K. Tongue, Ph.D. of October 30, 2021, and Father's letter to Mother of January 15, 2023.

D. ODHS acknowledges that upon review of that record ODHS has identified fabrications, material omissions, and material misquotation of a court-ordered expert evaluation, and that the record before the court on which jurisdiction was found does not accurately reflect the agency's own contemporaneous documentation.

E. ODHS acknowledges that Mother's ORS 419A.150 written objection to referee jurisdiction, filed at 1:44 PM on September 8, 2025 and received by the juvenile clerk but not docketed on that date, remains unresolved.

F. ODHS acknowledges that service of summons under ORS 419B.812 was not accomplished within the thirty-day statutory window and that the first service attempt occurred October 14, 2025.

G. ODHS acknowledges that Attorney Ireland Mahoney's appearance at the September 8, 2025 shelter hearing was unauthorized under *Dep't of Human Servs. v. S.C.T.*, 281 Or App 246, 253 (2016).

H. ODHS acknowledges that the September 6, 2025 conditional self-harm attribution was recanted the same day at the hospital and that the recantation was not included in the shelter petition or the shelter order.

I. ODHS acknowledges that no safety plan was offered to Mother until October 1, 2025 — twenty-five days after removal — and that the September 8, 2025 shelter-hearing representation that Mother "refused a safety plan" was materially inaccurate.

Stipulation
Based upon the foregoing acknowledgments, the parties JOINTLY STIPULATE as follows:

1. The September 8, 2025 Shelter Order shall be VACATED as to Mother.

2. The September 10, 2025 Order to Appoint CASA, the October 14, 2025 Order Re Jurisdiction, the October 31, 2025 jurisdictional findings as to Mother, the February 23, 2026 Review Judgment, the March 18, 2026 Order on Mother's Motion, and the June 29, 2026 Permanency Judgment shall each be VACATED as to Mother.

3. Mother's September 8, 2025 written filing shall be docketed *nunc pro tunc* as of 1:44 PM on that date.

4. The parties agree that if ODHS seeks jurisdiction as to Mother going forward, ODHS shall accomplish personal service of a summons and petition on Mother in the manner prescribed by ORS 419B.812 prior to any hearing.

5. Pending fresh service and adjudication on a corrected record, A.D. shall be placed with Mother subject to reasonable and mutually agreed safety planning that identifies specific parental conduct establishing current risk of harm — not, as previously, based on the fabrications and omissions catalogued in the record delivered under this stipulation.

6. ODHS shall file with the court an errata addressing (a) the recantation of the September 6, 2025 self-harm attribution; (b) the actual date of the safety-plan offer; (c) the omitted contact channels in the diligent-efforts submissions; (d) the full Tongue evaluation, including its exculpatory findings on cognitive functioning, parent-training, and risk of harm; and (e) Al-mira's own September 6, 2025 statement that "if she couldn't go home to her dad she wanted to go home with her mom."

7. Mother reserves all rights, claims, and remedies not expressly settled by this stipulation, including but not limited to claims under 42 U.S.C. § 1983 and the Oregon Tort Claims Act. This stipulation resolves the pending dependency proceeding only; it does not settle or release any other claim.

8. This stipulation is executed Without Prejudice and for the purpose of compromise and correction under OEC 408. It is not admissible against Mother in any other proceeding.

DATED this _____ day of _____, 2026.

/s/ 

AshLe' Penn
17548 NW Springville Rd #9, Portland, OR 97229
424.242.3374 | ashlepenn.ap3@gmail.com *Signature — Without Prejudice*

Natural Mother of A.D.

Oregon Department of Human Services

_____

Sonya Faulkner, District 16 Interim Manager

Approved as to form:

_____

Yazmin Wadia, Assistant Attorney General

#	Violation / ODHS statement	Contradiction (the record)	Source	Legal effect
Engagement & services				
1	Marquand (sworn): "did not engage in *any* services"	Tongue eval completed; 2018 Lifeworks parenting; 17 DV sessions (Blanton); self-initiated DV grant; signed ROIs; 20+ contacts	10/31/25 Tr.; Fact Finding p.14; Milne call pp.2–3	Fabrication (*Devereaux*)
2	"Did not engage in the assessment; pattern of non-engagement"	Same report, p.13: 3/26/24 two-hour in-home interview, cooperative	Fact Finding pp.44,45,96 vs. p.13	Internal contradiction
3	"Not able to make meaningful contact; overtly avoided"	Kitto reached her by text/phone 9/6, 5:39–5:40 PM ("we can release custody to you")	10/23/25 Report; Exs. D, N	Fabrication
4	"Phone number not operational" (pp.69,100)	Same line used by Kitto 9/6; Crafton emailed her 9/8, 9/9, 10/1	Fact Finding pp.69,100	Fabrication
5	"Choosing not to have any contact"	Recorded-call admissions; report's own p.9: "Face-to-Face Contacts: 1"	2/12/26 Report pp.9–10	Internal contradiction
Safety plan				
6	Shelter: "refused a safety plan"	First plan offered 10/1/25 (25 days post-removal)	Shelter Tr.; Milne writing; 1/28 call	Fabrication; cannot refuse what was not offered
7	C4R "Not Met" based on "refusal to engage"	3/26/24 in-home interview; right to decline non-ordered services	C4R; Fact Finding p.13; *J.C.* 258 Or App 328	ORS 419B.100
Parenting capacity				
8	Allegation A: "does not understand needs; lacks skills to parent"	Tongue: "does not merit referral for parent training"; "adequate understanding"; no difficulty w/ dev. stages	10/31/25 Tr.; Ex. A	OEC 702–703; fabrication
9	Selective quotation + material misquotation of Tongue	Omitted FSIQ 116, PSI 140, no diagnosis, no risk of harm; excised "prolonged distress" clause	Fact Finding p.22; 10/23 Report p.19	Omission / misquotation
10	"Not active parenting role; does not discipline"	"Girls do exactly what she tells them; undermine Alquan"	Fact Finding pp.71,102 vs. p.48	Internal contradiction
Mother's home				
11	"Amusement park fun" vs. "prison"	Father: p.70 vs. child returned to dad, p.17	Fact Finding pp.70,17	Internal contradiction
12	"Homeless"	Stable address of record; "resides close to family"	Fact Finding pp.96 vs. 133, 58	Internal contradiction
13	"In hiding"	"Constantly showing up"	Fact Finding pp.24,142 vs. 143	Internal contradiction
Presence at father's home				
14	"Shows up sporadically; takes children without permission"	Father's 1/15/23 letter invites and regulates her presence	Fact Finding pp.47,72,74; Ex. B	Omission (letter withheld)
15	Father wants more contact vs. father is victim of unauthorized contact	Same page, both positions	Fact Finding p.47	Internal contradiction
16	(Implied legal barrier to her presence)	Screener: "not aware of any no-contact order"; "police would not forcibly remove"	Fact Finding pp.197,181	Contradiction
Failure to protect				
17	Allegation B: "unwilling/unable to protect from father"	ODHS endorsed father as "safe placement," moved to lift no-contact order; father then arrested for strangling child	10/31/25 Tr.; ODHS records	Agency-created risk; fabrication
Recantation				
18	19-min reversal; recantation concealed from court	Kitto 5:40 vs. 5:59; Sathrum note ("not what child said initially"); Faulkner acknowledged recantation on 1/28 call	Exs. D,N; 10/13 Report; 1/28 call (19:18, 20:08)	Concealment / fabrication
Diligent-efforts affidavits				
19	Duffy Decl. (10/10) & Miller Aff. (10/28): mother unlocatable	Omit 5 known channels (filing; Beck email; 3:34 email to Kitto; telephonic contact at hearing; text/email)	Duffy Decl.; Miller Aff.; Initial Rejected Filing	Judicial deception (*Hardwick*); ORS 162.065/162.075
Visitation				

#	Violation / ODHS statement	Contradiction (the record)	Source	Legal effect
20	"Zero visits"	No visitation plan ever provided; contact restricted w/o court order (Kitto 9/7); same report: "0" vs. "visited twice"	2/23, 6/29 Jgs; 6/18 Report p.5; Penn Supp. p.4	Internal contradiction; ORS 419B.090(3)
Child's preference				
21	Hopkins: "Almira does not want to go to mom"	Marquand: "will go live with her mother… willing and wanting"; child to Bennett: wanted mom	2/12 Report p.30 vs. 10/31 Tr. 20:14; Prot. Custody Rpt. p.6	Internal contradiction
Criminal-activity allegation				
22	Allegation C: "criminal activities interfere with parenting"	Marquand: "not had meaningful contact… to fully assess… substance use"	10/31/25 Tr. 13:35	Unassessed inference; *A.W.* standard
DV grant				
23	"Refused DV grant"	"I initiated that DV grant on my own… never offered, nor refused"; ODHS: she applied and received one	Milne call pp.2–3; 10/7 Report p.131	Fabrication
Records access				
24	(Implied) mother adequately served with case information	May 2025 records request unfulfilled; inspection conditioned on courthouse appearance (arrest risk); obtained record via child's attorney	10/7 Report p.14; Register	Denial of access; ORS 419A.255
Clerk rejection & service				
25	"Failure to appear" treated as voluntary default	Timely special appearance 1:44 PM 9/8; rejected by Beck w/o citation; identical filing later accepted; no Webex (PJO 343)	Initial Rejected Filing pp.13,29; Shelter Tr.	ORS 419B.851; access to courts
26	Service timely	ORS 419B.812 (30 days, by 10/8); first attempt 10/14 (36 days late); Milne acknowledged defect	Register; Milne calls 12/8, 12/25	No jurisdiction (ORS 419B.815(1))
Marquand testimony (10/31/25)				
27	"Mother coached the child to recant"	No record evidence; Sathrum note is speculation, not a finding	Tr. 6:56, 9:56	Fabrication (*Beltran*)
28	"Did not engage in any services"	Same witness: "has engaged in those assessments… limitedly"	Tr. 7:53 vs. 12:37	Self-contradiction
29	(No engagement)	"The agency… motioned to dismiss the case"	Tr. 8:41	Undermines "no engagement"
30	"32 calls" offered as Mother's "history"	CF307A: sole founded finding v. Mother is 2019 failure-to-protect (Barry Washington DV; no disposition letter); rest unfounded/unable/pending; 0 substance allegations; Father's case equal volume (19/9)	Tr. 7:24, 11:17; Fact Findings CF307A	False aggregation
31	"20 calls / 10 assessments re father since 2021"	DHS did not open a case on father until 9/6/25 assault	Tr. 11:17	Fabrication
32	Mother faulted for not modifying custody order	She was jurisdictionally barred from modifying it	Tr. 12:59	Fabrication
Ordered services vs. expert				
33	Rini ordered parenting classes	Tongue: "does not merit referral for parent training"	10/31 Tr. 27:29; Ex. A	ORS 419B.343(1)(a); OEC 702–703
Habeas mischaracterization				
34	Rini: "attempted to file habeas to get him out of custody"	No source; actual filing was 4th-Am. challenge to warrantless entry of her home; HR letter cites her "legal assistance" as fee-waiver ground	10/31 Tr. 16:33; Ex. K	Retaliation; mischaracterization
Reasonable efforts / bypass				
35	AAG Wadia: "reasonable efforts have been made"	Report Section 9 = bypass ("option available"); Shelter Order box: "no services were provided"	Shelter Tr.; Prot. Custody Rpt. §9,13; Shelter Order	Candor RPC 3.3(a)(1); voided finding
36	Bypass: "no services would have eliminated the need"	Uncle present that night; ODHS certified him as placement within 24 hrs	Prot. Custody Rpt.; placement cert.	*J.G.K.* 298 Or App 398
37	"Not open to engaging" used to excuse efforts	Not a statutory exception; duty is the agency's	ORS 419B.340(5); 42 U.S.C. 671(a)(15)(D)	No valid bypass
Fabricated witness statement				

#	Violation / ODHS statement	Contradiction (the record)	Source	Legal effect
38	Grandmother "said mother is not fit"	Grandmother denies; will attest by affidavit	8/19 Fact Finding (Crafton) p.22; Ex. ___	Fabrication (*Spencer*)
Assess vs. danger				
39	Faulkner: cannot assess functioning/home	Danger requires assessment; inability to assess is absence of evidence; 3/26/24 assessment was satisfactory	Faulkner 6/2 email; Fact Finding p.13	Internal contradiction; ORS 419B.100 burden